

Request for Tender

Document Number: 2026-142T

Document Title: CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Date Issued: Tuesday, March 17, 2026

ELECTRONIC BID SUBMISSIONS ONLY shall be received by the Agency through the Bidding System no later than:

**12:00 noon local time
Wednesday, April 8, 2026**

It is the Bidder's sole responsibility to ensure that:

- the submission is received electronically by the Agency through the Bidding System by the date and time specified above
- the submission is accompanied by all required documentation including but not limited to a digital bid bond in the amount of \$200,000.00

The following General Contractors and Subcontractors have been prequalified for this Project in accordance with prequalification document 2025-102PQ:

- **General Contractors for CIPP Lining**
 - Aqua Tech Solutions Inc.
 - Capital Sewer Services Inc.
 - Insituform Technologies Ltd.
 - PipeFlo Contracting Corp.
 - Clearwater Structures Inc.
- **Bypass Subcontractors**
 - Aqua Tech Solutions Inc.
 - Capital Sewer Services Inc.
 - Insituform Technologies Ltd.
 - Michels Canada Co.
 - 614128 Ontario Ltd o/a Trisan Construction
- **Open-Cut Replacement Subcontractors:**
 - Bar-Quip Construction Limited
 - Capital Sewer Services Inc.
 - CG Construction Services Ltd.
 - DESO Construction Limited.
 - Michels Canada Co.
 - 2708286 Ontario Inc. o/a Nelli Construction
 - Pachino Construction Co. Ltd. JC Infrastructure Ltd. & Machina Construction Ltd. (Joint Venture)
 - Sam Rabito Construction Ltd
 - 614128 Ontario Ltd o/a Trisan Construction

Procurement Representative:

Diane Oliveira, Procurement Advisor

diane.oliveira@peelregion.ca

The Regional Municipality of Peel

Document 2026-142T

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Index

For **CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K**, as required, and as specified within this Document.

1. Cover Sheet
2. Index
3. Instructions to Bidders
4. Special Provisions
5. Appendices:
 - 5.1 Agreement to Bond
 - 5.2 Digital Bid Bond
 - 5.3 Form of Release at Substantial Performance of the Work
 - 5.4 Form of Agreement
 - 5.5 Performance Bond substantially in the form required under the *Construction Act* - This is not attached but forms part of the Contract
 - 5.6 Labour and Material Payment Bond substantially in the form required under the *Construction Act* - This is not attached but forms part of the Contract
 - 5.7 OPSS.MUNI.100: Ontario Provincial Standards General Conditions of Contract (2006)
 - 5.8 Peel Region Supplemental General Conditions, Vol. 2.1, Revision Date: January 1, 2022
 - 5.9 Peel Region Standard Specification for CIPP using Hot Water or Steam Cured-in-Place Pipe
 - 5.10 Peel Region Standard Specification for CIPP using Ultraviolet Light Cure
 - 5.11 Peel Region Standard Specification for CIPP Spot Repair
 - 5.12 Peel Region Standard Specification for Chemical Injection Grouting in Sewer and Maintenance Holes
 - 5.13 Region of Peel CCTV MH Flushing Specifications
 - 5.14 OPSS.MUNI.465: Construction Specification for Sewer Pipeline and Culvert Rehabilitation by PVC Fold and Form Liner
 - 5.15 Supplemental Standard Specification for CIPP Spot Repair
 - 5.16 Supplemental Standard Specification for CIPP Lining using Hot Water or Steam Cured
 - 5.17 Supplemental Standard Specification for Chemical Injection Grouting in Sewers and Maintenance Holes
 - 5.18 Supplemental Standard Specification for PVC Fold and Form Liner
 - 5.19 Credit Valley Conservation Authority (CVC) Permit Approval No. 24/183
 - 5.20 Toronto Regional Conservation Authority (TRCA) Permit Approval No. PER-IPP-2024-00383
 - 5.21 List of Repairs
 - 5.21a List of Repairs - Sanitary Lining
 - 5.21b List of Repairs - Storm Lining
 - 5.22 Contract Location Maps (SAN Full Length Lining)
 - 5.23 Contract Location Maps (STM Full Length Lining)
 - 5.24 Contract Drawing for Culvert Rehabilitation and Replacement
 - 5.25 Property Impact Plan on Birch Cres
 - 5.26 Peel Region Hydrant Permit
 - 5.27 Peel Region Form of Invoice
 - 5.28 Online Bidding System Forms
 - 5.29 Hauling Record Template
 - 5.30 Region of Peel Approved Product List – Wastewater
 - 5.31 Region of Peel Approved Product List – Road and Storm

The Regional Municipality of Peel

Document 2026-142T

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND
REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE
REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

PREVIEW

Instructions to Bidders

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CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

1. INFORMATION AND COMMUNICATIONS

- 1.1 Any questions or information required regarding this Document must be submitted through the Bidding System via peelregion.bidsandtenders.ca by clicking the 'Submit a Question' button for the selected bid opportunity at least four working days prior to closing. Do not submit your questions via e-mail. No oral communications will be considered binding.
- 1.2 Any Bidder who requests and/or receives any information, with regards to this Document, by any person(s) other than the Procurement Representative or designate, may be disqualified from further consideration.
- 1.3 It is recommended that vendors add noreply@bidsandtenders.ca to their "safe senders" lists in their e-mail systems and monitor their spam/ clutter/ junk filters to ensure they do not miss automatically generated messages sent by bidsandtenders.ca that relate to this bid opportunity.

2. DATE AND PLACE FOR RECEIVING BIDDER SUBMISSIONS AND ACCEPTANCE PERIOD

- 2.1 ELECTRONIC BID SUBMISSIONS ONLY shall be received by the Agency through the Bidding System and must be received **on or before 12:00 noon local time in Brampton, Ontario on Wednesday, April 8, 2026.**
- 2.2 The closing date and time shall be determined by the Agency's Bidding System.
- 2.3 This procurement is being advertised in accordance with the applicable procurement obligations outlined in the Canada-European Union Comprehensive Economic and Trade Agreement (CETA), Canadian Free Trade Agreement (CFTA), and the Ontario-Quebec Trade and Cooperation Agreement (OQTCa).
- 2.4 Bidder Submissions submitted and/or received by any other method will be disqualified by the Agency unless instructed otherwise by published addenda in respect of the Document.
- 2.5 Only documents found on the Region of Peel's website at peelregion.bidsandtenders.ca are to be considered "official" documents. The Region of Peel accepts no responsibility for the accuracy or completeness of information found on other websites. The onus is on the Bidder to check the Region of Peel's website to verify they have received all relevant information. The Bidder risks submitting a non-compliant bid if addenda or other required information is missing, and disqualification could result.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

- 2.6 It is the Bidder's sole responsibility to ensure their Bidder Submission is received by the time and date specified in the Agency's Bidding System. The receipt of Bidder Submissions can be delayed due to a number of factors including, but not limited to, "internet traffic", file transfer size, and transmission speed. The Bidder should allow sufficient time to upload its Bidder Submission, including any attachments. Late Bidder Submissions will not be accepted by the Agency's Bidding System.
- 2.7 A Bidder Submission will only be considered to be submitted once it has been RECEIVED by the Agency in its Bidding System, regardless of when the Bidder Submission was submitted by the Bidder.
- 2.8 Bidders will be sent a confirmation e-mail by the Agency's Bidding System to the e-mail address provided by the Bidder when it registered as a Plan Taker in the Bidding System for the Document advising that its Bidder Submission was submitted successfully. Bidders should **not** consider its Bidder Submission to have been submitted until it has received the confirmation e-mail.
- 2.9 The Bidder is solely responsible for the delivery of its Bidder Submission in the manner and by the closing date and time prescribed in the Agency's Bidding System. Each Bidder is responsible for the actual delivery of its Bidder Submission prior to the closing time and closing date.
- 2.10 The Agency is not responsible for any incomplete or misdirected Bidder Submissions due to electronic technical problems arising out of the Bidder's use of the Agency's Bidding System.
- 2.11 Bidder Submissions received by the Agency in accordance with the terms and conditions of the Document shall be irrevocable and open for acceptance for a period of 90 days following the date of the Bidder Submission closing.
3. **PREQUALIFIED GENERAL CONTRACTORS AND SUB-CONTRACTORS**

3.1 **General Contractors for CIPP Lining**

- 3.1.1 The following General Contractors have been prequalified for this Project in accordance with the prequalification document 2025-102PQ:
- Aqua Tech Solutions Inc.
 - Capital Sewer Services Inc.
 - Insituform Technologies Ltd.
 - Pipe Flo Contracting Corp.
 - Clearwater Structures Inc.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

3.1.2 The Agency will only accept Bidder Submissions in response to this Document from the prequalified General Contracting firms stated above. Any Bidder Submissions from Bidders not prequalified through document 2025-102PQ, as stated above, shall be deemed non-compliant and not considered for contract award.

3.2 Sub-Contractors

3.2.1 General Contractors shall carry a sub-contractor prequalified for this Project in accordance with prequalification document 2025-102PQ to perform the respective work.

3.2.2 General Contractors (Bidders) shall complete the table titled Prequalified Subcontractors under Step 3 in the Online Bidding System Forms to identify the subcontractors from the list of prequalified subcontractors below who will perform the work for each category.

3.2.2.1. Bypass Subcontractors

- Aqua Tech Solutions Inc.
- Capital Sewer Services Inc.
- Insituform Technologies Ltd
- Michels Canada Co.
- 614128 Ontario Ltd o/a Trisan Construction

3.2.2.2. Open Cut Replacement Subcontractors

- Bar-Quip Construction Limited
- Capital Sewer Services Inc.
- CG Construction Services Ltd.
- DESO Construction Limited.
- Michels Canada Co.
- 2708286 Ontario Inc. o/a Nelli Construction
- Pachino Construction Co. Ltd. JC Infrastructure Ltd. & Machina Construction Ltd. (Joint Venture)
- Sam Rabito Construction Ltd
- 614128 Ontario Ltd o/a Trisan Construction

3.2.3 The Agency will only accept subcontractors from the prequalified subcontractor list above. Any Bidder Submission from prequalified General Contracting firms carrying speciality subcontractors not prequalified for the respective category of work through Document 2025-102PQ, as stated above, shall be deemed non-compliant and not considered for Contract award.

Instructions to Bidders

4. **ADDENDA**

Addenda, if required, issued by the Procurement Representative and related to this Contract shall hereby form part of the Contract.

Any addenda related to this Contract will be posted through the Bidding System at peelregion.bidsandtenders.ca. Although the Bidding System will attempt to notify registered Bidders of when addenda are posted on the Bidding System, the Agency does not guarantee any receipt of notifications by Bidders and waives any responsibility. **It is the sole responsibility of Bidders to check the Bidding System often to inform themselves of any posted addenda.**

Bidders shall acknowledge receipt of any addenda when submitting their Bidder Submission through the Bidding System. Bidders shall check a box for each addendum and any applicable attachments that have been issued before a Bidder can submit their Bidder Submission online all in accordance with the terms and conditions of the Document and the Bidding System.

The Agency encourages Bidders not to submit their Bid Submission prior to forty-eight hours before the Document closing time and date, in the event that an addendum is issued. If a Bidder submits their Bid Submission prior to this or at any time prior to the Document closing and an addendum is issued by the Agency, the Bidding System shall WITHDRAW their Bid Submission and change their Bid Submission to an INCOMPLETE STATUS (NOT accepted by the Agency) and the withdrawn Bid Submission can be viewed by the Bidder in the "MY BIDS" section of the Bidding System. The Bidder is solely responsible to:

- i) make any required adjustments to their Bid Submission;
- ii) acknowledge the addendum/addenda; and
- iii) ensure the re-submitted Bid Submission is RECEIVED by the Agency through the Bidding System no later than 12:00 noon local time on the Document closing date.

NOTES TO BIDDERS: Additional company contacts are recommended for the reasons outlined below:

- Do not invite any additional contacts that you do not want to have access to view, edit, submit and/or withdraw or who may be in direct competition, for example a company may have two divisions that could compete for the same bid opportunity.
- You are strongly urged, when creating or updating a Bidding System Bidder account, to add additional company contacts to create their own login to the Bidding System. This will permit your invited contacts that have created their own login to manage (register, submit, edit and

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

withdraw) Bids which your company is a Registered Plan Taker for. In the event you are on vacation, or due to illness, etc., these additional contacts may act on your company's behalf and have the authority to receive addendum notifications from the Bidding System and where permitted by the terms and conditions of the Document, to submit Bidder Submissions electronically through the Bidding System and/or withdraw and/or edit and/or acknowledge addendum/addenda, on your behalf.

- If you are an invited company contact, it is imperative that you create your login from the link contained in the e-mail invitation. Do NOT go directly to peelregion.bidsandtenders.ca website and create a separate Bidder account.

5. CONTRACT AWARD

The Agency reserves the right to award the Contract in its entirety or in part to one or more Vendors in accordance with its requirements. Prior to award, the Agency reserves the right to perform a site visit at the Bidder's facilities for the purpose of evaluating the Bidder Submission.

Without limiting, and in addition to all other rights to which the Agency is entitled pursuant to this Document, the Agency shall be entitled to fully evaluate the Bidder Submission, which evaluation may include, without limitation, a review of references provided by the Bidder and of those that may be obtained by the Agency independently, past performance history of contracts between the Bidder and the Agency and/or between the Bidder and third parties, past completion history (including completion of full contract term, late or extended completion of contract and late delivery of goods or services), litigation and claims history of the Bidder (including previous, existing or potential litigation with the Agency or others and construction liens filed by the Bidder or subcontractors), delivery of incorrect services, customer service and responsiveness, or history of bidding unrealistic pricing, any of which may result in higher ultimate costs or other difficulties for the Agency, and to reject a Bidder Submission if the same is, in the Agency's sole opinion, unsatisfactory, or would not provide the best value to the Agency.

6. PRIORITIZING CANADIAN GOODS AND SERVICES

Bidders shall note that in response to trade tariffs imposed in 2025 by the United States of America ("U.S.") on Canadian goods and retaliatory tariffs imposed by Canada on U.S. goods, Peel Regional Council has endorsed the prioritization of Canadian and other non- U.S. goods and services over those of the U.S. in the Agency's procurement of goods and services, for such time as such tariffs are in effect.

6.1 Definitions

For the purposes of this Document and Contract, the following definitions shall apply:

Instructions to Bidders

6.1.1 "Canadian Business Subsidiary" means a corporation operating in Canada, that acts as a Bidder, Vendor, supplier, subcontractor, subconsultant, manufacturer or distributor of goods and services and is controlled by a parent corporation outside of Canada, and where:

- the business subsidiary has permanent offices or production facilities in any province or territory of Canada, and
- a minimum of 70% of the deliverables will be provided by employees based in Canada.

6.1.2 "Canadian Vendor" means a Bidder, Vendor, supplier, subcontractor, subconsultant, manufacturer or distributor of any business structure that conducts its activities on a permanent basis in Canada. The business either:

- has its headquarters or principal place of business in any province or territory of Canada; or
- has at least 70% of its employees in Canada at the time and date of bid closing of the applicable procurement process; or
- is a Canadian Business Subsidiary.

6.1.3 "Non-U.S. Business Subsidiary" means a business subsidiary controlled by a parent corporation operating on a permanent basis in the U.S., that acts as a Bidder, Vendor, supplier, subcontractor, subconsultant, manufacturer or distributor of goods, where:

- the business subsidiary has permanent offices or production facilities outside of the U.S.; and
- a minimum of 70% of the deliverables will be provided by employees based outside of the U.S.

6.1.4 "Non-U.S. Vendor" means a Bidder, Vendor, supplier, subcontractor, subconsultant, manufacturer or distributor of any business structure that does not meet the definition of "U.S. Based Vendor".

6.1.5 "Trade Partner Vendor" means a Bidder, Vendor, supplier, subcontractor, subconsultant, manufacturer or distributor of any business structure that conducts its activities on a permanent basis within a country that is a party to an international trade agreement applicable to municipalities in Canada. The Trade Partner Vendor either:

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

- has its headquarters or main office within a country that is a party to an international trade agreement applicable to municipalities in Canada, or
- has at least 70% of its employees based in a country that is a party to an international trade agreement applicable to municipalities in Canada at the time and date of bid closing of the applicable procurement process.

6.1.6 “U.S. Based Vendor” means a Bidder, Vendor, supplier, subcontractor, subconsultant, manufacturer or distributor of any business structure that conducts its activities on a permanent basis in the U.S. The business either:

- has its headquarters or principal place of business in any state or territory of the U.S.; or
- has at least 70% of its employees in the U.S. at the time and date of bid closing of applicable procurement process.

U.S. Based Vendor does not include a Non-U.S. Business Subsidiary.

6.2 Bidder Eligibility

6.2.1 The Agency’s intent is to award the Contract to a compliant Bidder Submission meeting the requirements of the Document and where the Bidder origin meets the definition of a Canadian Vendor or Canadian Business Subsidiary or Non-U.S. Business Subsidiary or Trade Partner Vendor, unless otherwise deemed not feasible in the sole and absolute discretion of the Agency.

6.2.2 In order to be considered for Contract award, Bidders must complete in full the Bidder Origin Attestation table in the Online Bidding System Forms.

6.2.3 A Bidder’s failure to provide accurate information in the Bidder Origin Attestation table may result in disqualification of the Bidder Submission and/or termination of any resulting Contract.

6.2.4 The Agency reserves the right to award the Contract to a compliant Bidder Submission meeting the requirements of the Document, where the Bidder origin meets the definition of a U.S. Based Vendor, only under circumstances where no Canadian Vendor or Canadian Business Subsidiary or Non-U.S. Business Subsidiary or Trade Partner Vendor are available to satisfy the requirements of the Agency, as determined in the sole and absolute discretion of the Agency.

6.3 Subcontractors, Subconsultants, and Suppliers

6.3.1 The awarded Vendor shall only be permitted to carry, utilize, and contract with subcontractors, subconsultants, and suppliers to

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

perform the Work and provide deliverables, that meet the defined requirements of a Canadian Vendor or Canadian Business Subsidiary or Non-U.S. Business Subsidiary or Trade Partner Vendor, unless otherwise deemed not feasible in the sole and absolute discretion of the Agency.

6.3.2 The awarded Vendor shall ensure that its subcontractors, subconsultants, and suppliers also comply with the requirements of subsection 6.3.1.

6.3.3 The Agency reserves the right to permit the awarded Vendor to subcontract with a U.S. Based Vendor to perform the Work and provide deliverables only under circumstances where no viable Canadian Vendor or Canadian Business Subsidiary or Non-U.S. Business Subsidiary or Trade Partner Vendor are available to satisfy the requirements of the Contract and the Agency, as determined by the Agency in its sole and absolute discretion.

7. **QUANTITIES**

Quantities in the Document are approximate only and are based on information available to the Agency at the time of tendering. Final quantities for payment of tender items supplied on a unit price basis shall be based on actual field measurements as determined by the Agency.

8. **BID PRICING CHANGES**

The legislation and regulations governing the workplace in Ontario, including, without limitation, the Canadian *Income Tax Act*, the Canadian *Immigration and Refugee Protection Act*, Ontario *Employment Standards Act, 2000*, *Employer Health Tax Act*, *Labour Relations Act, 1995*, *Occupational Health and Safety Act* and *Workplace Safety and Insurance Act, 1997* may change at any time and may impact upon Bidders' pricing and overhead costs. In submitting its Submission, each Bidder hereby acknowledges that it has considered any proposed changes to legislation and regulations, and any impact such changes, if any, may have on its pricing. Bidders are advised that the Agency will not entertain requests to change submitted bid prices for this Document based on changes to the minimum wage or other legislative or regulatory amendments made under any statute. It is each Bidder's obligation to operate according to all applicable law at all times. For clarity, each Bidder takes on all risk and responsibility for cost increases due to legislative and regulatory changes. For further clarity, each Bidder takes on all risks due to health, environmental, social, emergency or other factors which may arise and which may result in unforeseen or otherwise uncalculated costs or legal circumstances to the Bidder in order to complete the Work, to keep its workers or the public safe according to applicable law and government order, or to address other intervening circumstances. The Bidder is required to arrange its own contractual and subcontractor obligations for labour, materials or other matters related to this contract so as to minimize or eliminate extra costs or circumstances which may jeopardize its ability to fulfill its contractual obligations to the Agency under this Document or Contract award.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

9. TARIFFS

9.1 Bidder Submissions shall include all costs associated with only those tariffs that are in effect as of the Document closing date and time indicated in the Bidding System. If additional tariffs come into force after the Document closing date and time that increase the Vendor's costs of performing the work the Vendor shall notify the Agency in writing within 15 calendar days of the enactment of the additional tariffs. Such notice shall include a detailed description of the tariffs, including the rates and amounts of the tariffs and the specific products or components thereof that are affected. The Vendor shall take commercially reasonable steps to mitigate the costs and damages it may incur as a result of such tariffs by consulting with the Agency to determine whether:

- the goods can be sourced from countries to which the additional tariffs do not apply; and/or
- the goods can be shipped and imported into Canada prior to the effective date of the additional tariffs.

9.2 If the goods can only be sourced from a country subject to the additional tariffs and cannot be shipped before the additional tariff's effective date, the Agency will reimburse the Vendor, and the Contract price shall be adjusted accordingly, for the reasonable direct costs the Vendor incurs as a direct result of the additional tariffs, provided sufficient documentary evidence is submitted that substantiates such costs. No claims for costs the Vendor incurs as an indirect result of the tariffs (such as, without limitation, due to fluctuations in the cost of materials caused by general market conditions, supply chain disruptions, or geopolitical events—even if such factors are influenced by the tariffs at issue), markups, or administrative charges will be considered. The Agency must approve the submitted documentary evidence before any Contract price adjustment may be authorized. Examples of documentary evidence which may be acceptable to the Agency include:

- Official manufacturer notice outlining the price increase and reason (e.g., tariff changes).
- Updated price list from the manufacturer showing the revised rates and effective date.
- Government-issued tariff documentation (for example, Canadian Border Services Agency notice).
- Supplier/Contractor or distributor correspondence with supporting manufacturer documentation.
- Customs documentation showing applicable tariff rates and their impact on costs.

Instructions to Bidders

- 9.3 This entitlement to a potential increase in the Contract price does not apply to price increases for factors that the Vendor could have reasonably anticipated, accounted for or avoided as of the Document closing date and time. Such factors include, but are not limited to, fluctuations in the cost of fuel, delivery costs, or inflation.
- 9.4 The Agency reserves the right to deny the Vendor's claim for a Contract price adjustment if the documentary evidence provided by the Vendor does not meet the Agency requirements, as determined by the Agency in its sole discretion. The Agency may refuse the Vendor's claim for an adjustment to the Contract price or approve an amount less than what was requested if the Agency, in its sole discretion, determines that the price adjustment request is unreasonable or exceeds the Agency's budgetary limits.
- 9.5 This price adjustment is the Vendor's sole and exclusive remedy in relation to the imposition of additional tariffs. For clarity, the Vendor shall not be entitled to an extension to the Contract time/Contract term on account of the additional tariffs (including, without limitation, on account of any delays, disruptions, cost increases, economic or market conditions, or supply chain impacts arising directly or indirectly from the additional tariffs). Upon receiving payment for the price adjustment, the Vendor agrees to waive its entitlement to, and release the Agency from, any claims for additional compensation, schedule extensions, or other relief (including, without limitation, an increase in the Contract price and/or extensions of the Contract time/Contract term) arising out of the imposition of the additional tariffs.
- 9.6 If a tariff that was in effect at the Document closing date and time is subsequently reduced or eliminated, resulting in a decrease of the Vendor's costs of performing the work, the Contract price shall be adjusted downward to reflect the reduction or elimination of the tariff and the associated decrease in the Vendor's costs.
- 9.7 In addition to any other audit rights available to the Agency under the Document, the Agency shall have the right to audit, inspect, and examine the Vendor's records necessary to verify any required Contract price adjustment pursuant to these paragraphs, including without limitation invoices, receipts, purchase orders, customs documentation, supplier quotations, supplier payment terms, and any other relevant financial or transactional records. The Vendor shall cooperate fully with any such audit, inspection, or examination and provide access to such records promptly upon request.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

10. TARIFF IMPACTS

- 10.1 The Agency is committed to understanding the impacts of tariffs on procurement costs. In support of this commitment, the Agency is collecting information from Bidders regarding the impact of tariffs on the prices of goods and services.
- 10.2 Further to the Tariffs section of the Instructions to Bidders, and to better understand how tariffs are impacting different commodity categories, Bidders are requested to provide an estimated percentage range (0%, 0-10%, 10-20%, 20-30%, >30%) of their pricing that is attributable to tariffs in effect, as of the Document closing date and time.
- 10.3 This requested information provided by Bidders in the Online Bidding System Forms, Tariff Impact table, is solely for the Agency's internal analysis and will not be taken into consideration in the bid evaluation. The Agency shall treat all tariff impact data as confidential and shall use it exclusively for the purpose of enhancing procurement strategies and identifying tariff-related impacts.
- 10.4 The Agency is aware of the United States Surtax Remission Order (2025) established by the Government of Canada to provide relief from surtaxes from tariffs on goods imported into Canada. This temporary remission, in effect from April 16, 2025, to October 16, 2025, is granted for public health, public safety, national security, health care, and manufacturing, processing and food and beverage packaging purposes. The Remission Order allows the relief of surtaxes paid or payable by the United States Surtax Order (2025-1), the United States Surtax Order (Steel and Aluminum 2025), or the United States Surtax Order (Motor Vehicles 2025).
- 10.5 When submitting a Bidder Submission to this Document, the Agency expects Bidders to consider their eligibility with regards to the United States Surtax Remission Order (2025) within pricing submissions. Bidders shall indicate if the goods being provided are eligible for claim relief under the Remission Order.
- 10.6 Bidders should note that the application for surtax relief from the Government of Canada is the responsibility of the importer.
- 10.7 The Agency shall bear no responsibility for any application or claim for surtax relief from the Government of Canada.

11. DIGITAL BID BOND

To be considered, the Bidder's Submission must include a digitally created and electronically delivered bid bond in the form of bond included in Appendix 5.2 herein, naming the Agency as Obligor, in the amount of \$200,000.00.

The bond must be issued by a surety company licensed to issue surety bonds in the Province of Ontario.

The bond must be delivered by means of a service or application recognized as meeting in whole or in part the Surety Association of Canada's mandatory

Instructions to Bidders

requirements for e-bonding solutions. Photocopies, images or scanned facsimiles will not be accepted.

It is to be noted that the digital bid bonds of all Bidders will not necessarily be verified by the Agency. Prior to award of the Contract, the Agency will verify the digital bid bond of the Bidder who is proposed to be awarded the Contract by the Agency. Where the digital bid bond is not verifiable, the bid will be deemed non-compliant and disqualified. In such a case, the Agency will proceed to verify the digital bid bond of the next Bidder proposed to be awarded the Contract, and continue the process as necessary, until a digital bond is verified by a fully compliant Bidder whose bid is proposed to be awarded the Contract by the Agency.

If a digital bid bond and an Agreement to Bond are requested by the Agency and the surety company only provides the Bidder with a merged version, the Bidder is required to upload the merged document in both applicable fields of the online Bidding System forms.

The digital bid bond of the Bidder whose submission is accepted shall be called upon should the Bidder fail to execute a Contract and provide the necessary documents as required within this Document (such as a satisfactory bond, insurance certificate, Workplace Safety and Insurance Board letter of clearance) within seven days after receiving written notice from the Agency of the award of the Contract to the Bidder.

12. **ELECTRONIC AGREEMENT TO BOND**

In order to be considered for award, the Bidder shall submit through the Bidding System as part of their Bidder Submission, an Agreement to Bond in the form attached in Appendix 5.1, completed by a Bonding Company permitted to issue performance bonds and labour and material payment bonds in Ontario and with an A.M. Best rating of B+ or better. Any others will not be accepted. Each Bidder must submit the completed Agreement to Bond as part of their Bidder Submission in order to validate their Bidder Submission.

If a digital bid bond and an Agreement to Bond are requested by the Agency and the surety company only provides the Bidder with a merged version, the Bidder is required to upload the merged document in both applicable fields of the online Bidding System forms.

Upon receipt of written notice from the Agency that it has been awarded the Contract, the successful Bidder shall provide, within seven days of such notice, a digitally created and electronically delivered Performance Bond and a Labour and Material Payment Bond, each for the amount of **50 per cent** of the total lump sum price, substantially in the forms required under the *Construction Act*, to guarantee the performance of all obligations of the Contract.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

The Performance Bond and a Labour and Material Payment Bond must be submitted by the successful Bidder in a digital format that meets the following Surety Association of Canada (SAC) criteria:

- 12.1 The version of the bond submitted by the successful Bidder must be verifiable by the Agency with respect to the totality and wholeness of the bond form including: the content, all digital signatures, and all digital seals with the Surety Company, or an approved verification service provider of the Surety Company.
- 12.2 The version of the bond submitted by the successful Bidder must be viewable, printable and storable in pdf format or other standard electronic file format acceptable to the Agency, and in a single file.
- 12.3 Photocopies, images or scanned facsimiles of bonds will not be accepted.
- 12.4 The verification of the successful Bidder's submitted bonds may be conducted by the Agency immediately or at any time during the life of the bond and at the discretion of the Agency, with no requirement for passwords or fees.
- 12.5 The results of the bond verification must provide a clear, immediate and printable indication of pass or fail regarding item 12.1.
- 12.6 Bonds failing the verification process will NOT be considered to be valid and will NOT be accepted by the Agency as satisfying the requirements of the Contract.

Following award, the Vendor shall be required to execute an agreement with the Agency in the form attached in the Appendices (the "Form of Agreement"). The tender documents, including all issued addenda, shall be included with and will form the agreement between the Agency and the Vendor, whether mentioned specifically by reference in the executed Form of Agreement or not.

13. INSURANCE

The insurance shall be maintained continuously from the commencement of the Work until the end of warranty period established within these contract documents following the date of the completion certificate.

The Agency's Certificate of Insurance shall be completely filled in with the required information. No other form shall be accepted.

A deductible clause is only acceptable if the Contractor submits a signed and sealed letter stating the following:

"We (insert Contractor's name) authorize the Region of Peel to appoint an independent adjuster to settle any claims arising from this Contract which are for amounts less than our insurance deductible figure. Furthermore, the Agency can deduct any amounts of justifiable claims from monies owing to the Contractor."

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

14. **TENDERED PRICES**

The lump sum prices or unit prices quoted in the Bidder Submission shall, unless otherwise stated or specified, include the furnishing of all materials, supplies and equipment and providing of all expertise, labour, construction tools and equipment, utility and transportation services necessary to perform and complete all the Work required under the Contract.

Claims for compensation for additional tax cost shall be submitted by the Contractor to the Agency. Such claims for additional tax costs shall be submitted not later than 30 days after the date of substantial performance of the Work.

Where the Contractor benefits from a change in the Canadian Federal or Provincial Government taxes, the Contractor shall submit to the Agency a statement of such benefits. This statement shall be submitted not later than 30 days after the date of substantial performance of the Work.

The Agency reserves the right to make deductions from regular progress payment to compensate for the estimated benefit from decreased tax costs. Such deductions will be set-off from contract payments pending receipt of the statement itemizing the benefits which have resulted from a decrease in tax costs, at which time the final payment adjustment will be determined.

15. **ACCESSIBILITY FOR ONTARIANS WITH DISABILITIES**

The Vendor shall comply with the *Accessibility for Ontarians with Disabilities Act* 2005, and its Regulations thereunder with regard to the provision of goods or services to persons with disabilities. The Vendor acknowledges that pursuant to the *Accessibility for Ontarians with Disabilities Act* 2005, the Region of Peel must, in deciding to purchase goods or services through its procurement process, consider accessibility for persons with disabilities to such goods or services. This legislation can be accessed through the following link to the Government of Ontario's website: ontario.ca/laws/statute/05a11. You may also access this link at peelregion.ca/procurement, "Bids and tenders. Additional information for bidders" and view the accessibility standards.

16. **INVOICING AND ELECTRONIC PAYMENT INSTRUCTIONS**

16.1 **All invoices must be sent to the individual ordering the goods/ services or as directed at the time of the order placement. Failure to do so will result in a delay of payment.**

16.2 The Agency's method of payment is by Electronic Funds Transfer (EFT). The Vendor will be required to provide the Agency with the Application for Vendor Direct Deposit form containing original signatures in ink, by return mail, fax or hand delivered, the following banking information:

16.2.1 Names of two Company Officers, their titles, e-mail addresses, fax numbers, and phone numbers. Note: Both Company Officers must

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

sign off on any subsequent changes to the Vendor's banking information.

16.2.2 Company mailing and remittance addresses.

16.2.3 Banking information including a void cheque.

16.2.4 The Vendor is required to notify the Agency of any changes to this information immediately.

17. **DEFINITIONS**

The following capitalized terms have the meanings set out next to them:

"Agency" means The Regional Municipality of Peel, Peel Regional Police, Peel Housing Corporation o/a Peel Living and any other government or agency or board on behalf of which The Regional Municipality of Peel is acting and for the purposes of the performance of the Contract shall mean the municipality or entity awarding the Contract. For purposes of the Contract, "Agency" shall include "Owner".

"Bidder" means any proponent, respondent or other person or entity who has obtained official procurement documents for the purpose of submitting, or who has submitted a Bidder Submission in response to the Document. Furthermore, the definition of "Bidder" shall include any entity affiliated or related to the Bidder (including any entity with the same directing mind as the Bidder) as determined in the discretion of the Director of Procurement, in consultation with the Regional Solicitor.

"Bidder Submission" means the document as completed by the Bidder for the purpose of offering to sell to the Agency the goods and/or services specified in the Document, and includes but is not limited to quotations, tenders and proposals.

"Bidding System" means the electronic system used by the Agency for its public tenders, bids and request for proposals at the following website: peelregion.bidsandtenders.ca, which is required to be used for all dissemination of information by or on behalf of the Agency and all submissions from Bidders for this Document.

"Contract" has the definition given to it in the Ontario Provincial Standards Metric OPSS.Muni 100 (2006 edition).

"Document" means the document issued by the Agency describing the goods and/or services to be purchased and the terms upon which the goods and/or services are to be purchased and includes, without limitation, those documents

Instructions to Bidders

referenced in the index of the Document and such addenda as may be issued by the Agency from time to time.

“Procurement Representative” means the person named as the Procurement Representative or designate in the Document.

“Region of Peel” has the same meaning as the Region or the Agency.

“Vendor” means the successful Bidder and includes the term “Contractor” who enters into the Contract with the Agency for the provision of the goods and/or services set out in this Document.

“Work” means the work to be undertaken by the Vendor pursuant to the provisions of the Contract.

18. **MANDATORY OCCUPATIONAL HEALTH AND SAFETY MANAGEMENT SYSTEM (OHSMS) CERTIFICATION**

18.1 Bidders must possess a valid Acceptable OHSMS Certification at the Document closing date and time to be considered for Contract award.

18.2 In accordance with O. Reg. 364/25: Health and Safety Management Systems and Procurement, “Acceptable OHSMS Certification” shall include any health and safety management system accredited by the Chief Prevention Officer under section 7.6.1 of the *Occupational Health and Safety Act*.

18.3 In the appropriate section of the Online Bidding System Forms, Bidders shall confirm valid standing of an Acceptable OHSMS Certification in the full legal corporate name of the Bidder or, in the case of a joint venture or consortium Bidder Submission, for, and in the name of, each member of the joint venture or consortium Bidder team.

18.4 For the purposes of this Document and Contract, “Acceptable OHSMS Certification” shall include:

- ISO 45001:2018 – Occupational Health and Safety Management Systems, issued by a certification body that is accredited by an accreditation body recognized by the International Accreditation Forum (IAF).
- CSA Z45001 19 – Occupational Health and Safety Management Systems.
- Infrastructure Health and Safety Association (IHSA) COR™ 2020 – Certificate of Recognition or COR™ Equivalency granted and verifiable by the IHSA.
- COR™ Registration granted and verifiable by the IHSA.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

- Responsible Care® RC14001:2023 – Health, Safety & Environmental Management System.
- Responsible Care® RCMS:2023 – Health, Safety & Environmental Management System.
- Any other OHSMS accredited by the Chief Prevention Officer under section 7.6.1 of the *Occupational Health and Safety Act*.

18.5 The Agency reserves the right to, and may require, the submission of a Bidder/Contractor's current valid Acceptable OHSMS Certification, including all supporting documentation specified by the Agency, at any time, prior to Contract award and during the Contract, which shall be provided by the Bidder/Contractor within 48 hours of Agency request. The Agency further reserves the right to verify a Bidder/Contractor's submitted OHSMS certification by any means deemed appropriate by the Agency.

18.6 If and when requested by the Agency, and within 48 hours of such request, any Bidder/Contractor with a COR™ certification or COR™ Registration issued in a jurisdiction other than the Province of Ontario must submit to the Agency a Letter of Reciprocity from the IHSA along with their COR™ certification or COR™ Registration to be deemed an Acceptable OHSMS Certification and be considered for Contract award.

18.7 The Bidder/Contractor's valid Acceptable OHSMS Certification must include:

- Proof of COR™ Registration, consisting of written confirmation from the IHSA, in the form of a "Letter of Intent" or "COR Status Letter", demonstrating that the Bidder/Contractor is Registered for COR™; OR
- Certificate of Recognition (COR™) or certification of COR™ Equivalency, issued by IHSA; OR
- CSA Z45001 19 – Occupational Health and Safety Management Systems certificate of conformity issued by an accredited certification body (e.g., CSA-accredited or SCC-accredited bodies); OR
- ISO 45001: 2018 certificate containing the following:
 - a) the OHSMS standard for which the certificate has been issued (ISO 45001: 2018);
 - b) name and address of the certified organization which must match the legal corporate name of the Bidder;
 - c) appropriate scope for Ontario based operations (the scope provided must match the scope of the Contract Document);
 - d) original registration date, latest revision date, and expiry date;
 - e) name and address of auditing firm who issued the certificate;

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

- f) printed name, job title, and signature of a representative from the auditing firm who issued the certificate;
- g) insignia of the certification body and, where applicable, the insignia of the accreditation body, and the IAF; and
- h) certificate number.

- Valid Responsible Care® RC14001:2023 – Health, Safety & Environmental Management System certificate; OR
- Valid Responsible Care® RCMS:2023 – Health, Safety & Environmental Management System certificate; OR
- Valid proof of any other OHSMS accredited by the Chief Prevention Officer under section 7.6.1 of the *Occupational Health and Safety Act*.

18.8 Failure of the Bidder to comply with the above requirements will result in the Bidder Submission being deemed non-compliant and not considered for Contract award.

18.9 The Contractor's valid Acceptable OHSMS Certification shall be maintained throughout the duration of the Contract. For the duration of the Contract, the Contractor shall be required to notify the Agency immediately if there are any changes to the Contractor's Acceptable OHSMS Certification. If the Contractor's Acceptable OHSMS Certification expires, is revoked, or otherwise becomes invalid, the Contractor shall be deemed in breach of the Contract and the Agency will utilize the appropriate remedies available, which may include termination of the Contract.

19. HEALTH AND SAFETY ACKNOWLEDGEMENT FORM

19.1 As a condition of Contract award, and when requested by the Agency, the successful Bidder shall complete, sign, and submit the Agency's [Health and Safety Acknowledgement](https://www.peelregion.ca/sites/default/files/2025-06/health-safety-acknowledgement-form.pdf) form at [peelregion.ca/sites/default/files/2025-06/health-safety-acknowledgement-form.pdf](https://www.peelregion.ca/sites/default/files/2025-06/health-safety-acknowledgement-form.pdf)

19.2 Failure to submit the completed and signed Health and Safety Acknowledgement form as requested by the Agency shall result in the Agency rescinding the Contract award and deeming the Bidder Submission non-compliant.

19.3 The Agency's Health and Safety Acknowledgement form serves as a formal acknowledgment by the Contractor of their legal obligations to provide a safe and healthy workplace for all employees, subcontractors, and authorized visitors. It reinforces the Contractor's responsibility to comply with all applicable provisions of the *Occupational Health and Safety Act* (OSHA) its regulations, applicable law, and relevant industry standards.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

- 19.4 In the event of any inconsistency or conflict in the provisions of this Health and Safety Acknowledgment Form and the Document, the provisions of the Document shall take precedence and govern.

20. VENDOR PERFORMANCE EVALUATIONS

Under this Contract, the requirements of Procedure F35-27, Vendor Performance Management (VPM) (the "Procedure"), as amended, shall be in full force and effect. **The Procedure supersedes the previous versions of F35-27 Contractor Performance Evaluations and F35-39 Consultant Performance Evaluations.** The Procedure and all related information and documentation may be amended from time to time and the most recent version shall form part of this Contract. If awarded this Contract, the Bidder(s) shall be evaluated in accordance with the Procedure.

The Procedure provides guidance on vendor performance evaluations for Vendors under Contract with the Agency. Evaluations provide a summary of a Vendor's performance on any awarded Contract and will become an official record. Vendor performance evaluations will serve the following purposes:

- Provide feedback to Vendors for performance improvements and / or acknowledgement of Satisfactory performance, and
- Inform Bidders/Vendors eligibility or ineligibility to be awarded future Agency Contracts.

The complete Procedure, guidelines and information regarding Vendor Performance Evaluation criteria can be found on the Agency's website at peelregion.ca/business/procurement, "Vendor Performance Management Program" or <https://peelregion.ca/business/procurement/vendor-performance-management-program/>.

21. SUBCONTRACTORS

It is the responsibility of Bidders to ensure any subcontractors they retain are in good standing with the Agency under the Procedure and meet all requirements of this Document and are thus eligible to perform work on Agency contracts. Prior to bidding on this Document, Bidders shall contact the Agency at 905-791-7800 ext. 7538 to obtain a list of Contractors suspended from performing work on any Agency contracts as a subcontractor. Should a Bidder name any subcontractor in its Bidder Submission that is suspended as a subcontractor under the Procedure, the Bidder shall be required to name a replacement satisfactory to the Agency, acting reasonably, at no additional cost to the Agency, failing which the Bidder shall be deemed non-compliant and not given consideration for Contract award. By submitting a Bidder Submission, the Bidder accepts that the Agency has no liability to the Bidder or any subcontractor or third party related to the rejection of a subcontractor who is ineligible to be considered, or otherwise unsatisfactory to the Agency.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

The Bidder agrees, that if awarded the Contract, it will only carry, utilize, and contract with subcontractors and suppliers to perform the Work and provide deliverables, that meet the defined requirements of a Canadian Vendor or Canadian Business Subsidiary or Non-U.S. Business Subsidiary or Trade Partner Vendor, unless otherwise approved in writing by the Agency in its sole and absolute discretion.

22. BIDDER SUBMISSION

- (a) The Bidder Submission must be submitted electronically using the Bidding System.
- (b) A person or persons with authority to bind the Bidder must electronically declare on the online Bidding System that their Bidder Submission has been made entirely in accordance with the Document.
- (c) All pricing in the Bidder Submission must be expressed in figures, and must be in Canadian Dollars.
- (d) Prices in the Bidder Submission must include all costs necessary to complete the Work in accordance with the Document including customs and duties.
- (e) The Bidder represents, warrants and confirms that no oral or written alterations or variations in the Document and/or Contract have been made by the Bidder and none shall be valid or binding upon the Agency unless authorized by the Agency in writing.
- (f) Bidder Submissions which are qualified or subject to any conditions, limitations or restrictions shall be rejected by the Agency.
- (g) The Bidder acknowledges that it is solely responsible for obtaining and reviewing all Contract documents and all addenda issued by the Agency pertaining to the Document.

Only Bidders that are registered as a Plan Taker for this Document with Bids and Tenders at peelregion.bidsandtenders.ca and have obtained this Document from Bids and Tenders or the Agency, may submit a Bidder Submission.

Should the Agency receive a Bidder Submission that is subsequently found to be from a Bidder that is not a registered Plan Taker with Bids and Tenders at peelregion.bidsandtenders.ca, and the Bidder did not obtain the Document from Bids and Tenders or the Agency, the Agency reserves the right to reject the Bidder Submission as non-compliant and give it no further consideration for contract award.

23. AGENCY RIGHTS

The Agency reserves the right, in its sole and absolute discretion to:

- (a) deem a Bidder Submission to be unbalanced and may reject any and all Bidder Submissions, which it so deems, and for this purpose, "unbalanced" shall include, without limitation, a Bidder Submission which does not reflect a realistic breakdown of the costs of each or any portion of the Work;

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

- (b) adjust the totals in a Bidder Submission where there are errors in extensions, additions or computations. In such cases, the unit prices shown shall govern;
- (c) reject any or all Bidder Submissions, accept a Bidder Submission which is not the lowest price, reject a Bidder Submission even if it is the only one received by the Agency; and cancel or suspend or delay this request for Bidder Submissions at any time either before or after the receipt of Bidder Submissions, following which the Agency may proceed as it determines in its sole discretion, including without limitation, negotiating with any one or more of the Bidders or any other person or entity for the performance of the Work under such terms and conditions as the Agency may decide in its sole discretion, or issuing a new request for Bidder Submissions on the same or modified terms, all without liability to itself;
- (d) if making an award of the Contract in its entirety or in part, to one or more Vendors, make changes to the content of the Contract to address unforeseen circumstances which may have arisen during the bidding period, including but not limited to health, environmental, social or emergency events including but not limited to the COVID-19 pandemic, which require responses to ensure the health and safety of workers, the health of the public and of Agency staff, and the efficacy of the project are maintained at all times, if in doing so the best interests of the Agency will be served, and the Agency will assess the expected costs of such changes and make a contingency allowance for same, which the Vendor may claim costs against on a zero mark-up basis upon proof sufficient to the Agency, unless such changes are expected to be able to be accommodated by the Vendor without change to the Contract Price;
- (e) award the Contract in its entirety or in part, to one or more Vendors, if in doing so the best interests of the Agency will be served;
- (f) inspect and have a demonstration of the goods and/or services offered prior to award of a Contract and request evidence of experience, ability or financial standing;
- (g) waive formalities, technical defects, irregularities and omissions in a Bidder Submission, and may accept a Bidder Submission which does not comply with the formal requirements of the Document, if in doing so the best interests of the Agency will be served;
- (h) remove from the Agency's list of vendors the name of any vendor and/or Bidder for failure to accept a contract or for unsatisfactory performance or non-performance of a contract;
- (i) fully evaluate the Bidder Submission, which evaluation may include, without limitation, a review of references provided by the Bidder and of those that may be obtained by the Agency independently, past performance history of contracts between the Bidder and the Agency and/or between the Bidder and third parties, past completion history (including completion of full contract term, late or extended completion of contract and late delivery of goods or services), litigation and claims history of the Bidder (including previous, existing or potential litigation with

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

the Agency or others and construction liens filed by the Bidder or subcontractors), delivery of incorrect services, customer service and responsiveness, or history of bidding unrealistic pricing, any of which may result in higher ultimate costs or other difficulties for the Agency, and to reject a Bidder Submission if the same is, in the Agency's sole opinion, unsatisfactory, or would not provide the best value to the Agency;

- (j) reject and disqualify any or all Bidder Submissions based on a Bidder's Vendor Performance Rating, status and standing as per the Agency's Vendor Performance Evaluations procedures, as amended from time to time;
- (k) seek further information and/or clarification, including without limitation a detailed price breakdown, from any Bidder after the closing time, for the purposes of assisting the Agency in interpreting and evaluating any Bidder Submission and in interpreting any inconsistencies which may appear in any Bidder Submission, and the Agency shall have the right to consider and rely on such further information and clarifications in evaluating the Bidder Submissions and awarding the Contract; and
- (l) verify any Bidder statement or claim in a Bidder Submission by whatever means the Agency deems appropriate, and reject any Bidder Submission containing any such statement or claim if, in the judgment of the Agency, the statement or claim is unwarranted, not credible, or false; and
- (m) either before, after or as a change to the terms of the Contract award, to temporarily suspend or to alter the timelines of the Contract delivery schedule or any other terms of the Contract in its sole discretion, in response to circumstances beyond the Agency's control or legislative changes or orders of a government, related to health (such as public health, occupational health and safety or construction safety), environmental, social or other emergent or unforeseen circumstances such as epidemics and pandemics.

24. **CONFIDENTIAL INFORMATION/OWNERSHIP AND DISCLOSURE OF BIDDER SUBMISSIONS**

- (a) The Vendor agrees to protect and maintain the confidentiality of all personal or other information, including all personal health information, that the Vendor accesses or of which the Vendor acquires knowledge of as a result of the services in this Contract, and agrees to use, collect, disclose, retain, protect and dispose of the personal (health) information only in accordance with all privacy legislation applicable to the Agency where it is acting on behalf of the Agency. Disclosure of any information shall be done only with the Agency's prior written consent. The provisions of the indemnity clause in this Contract apply to any breach of privacy or confidentiality in this clause. The Vendor shall ensure that its directors, officers, employees, agents, subcontractors and anyone else for whom it is responsible in law all adhere to the requirements of this section regarding privacy and confidentiality.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

- (b) The Agency, and the Agency's responsibilities under this Contract, are subject to all applicable privacy legislation including the *Municipal Freedom of Information and Protection of Privacy Act*, R.S.O. 1990 c.M.56, as amended ("MFIPPA") and/or the *Personal Health Information Protection Act*, 2004 ("PHIPA") with respect to the collection, use, disclosure, retention and protection of confidential, sensitive or personal (health) information under the Agency's custody and control. Under an MFIPPA request, all documents provided to the Agency by the Vendor pursuant to the procurement process which led to this Contract, and the Contract itself and associated documents, may be required by law to be made available to a requesting member of the public, with the possible exception that the party submitting certain information requests that it be treated as confidential and that there is an appropriate exemption to disclosure in MFIPPA, or a non-disclosure requirement in either MFIPPA or PHIPA.
- (c) The Bidder Submissions, along with all correspondence, documentation and information provided to the Agency by any Bidder in connection with or arising out of the Bidder Submission, once received by the Agency, shall become the property of the Agency and may be appended to any agreement and/or purchase order with the successful Bidder. Bidders must identify in their Bidder Submissions any scientific, technical, proprietary, commercial or other confidential information, the disclosure of which could cause them injury.
- (d) In public bids, the name of each Bidder and the lump sum price contained in their Bidder Submission shall be published on the Bidding System.
- (e) Where award is to be made by Regional Council, the Peel Police Services Board or the Board of Directors of Peel Housing Corporation, information regarding all Bidder Submissions, including names of each Bidder, lump sum prices and the annual or overall value of the Contract and/or Bidder Submissions shall be included in public reports to Regional Council or the relevant Boards such that the information is released publicly. The Bidder acknowledges that the Agency cannot guarantee it can honour requests to keep Bidder information confidential in light of applicable law requirements, and also in light of the need for transparency and public disclosure where release of Bidder information in public Council reports related to a specific project or procurement process is necessary.
25. **COLLUSION AND CONFLICT OF INTEREST**
- (a) By submitting a Bidder Submission, each Bidder represents and warrants that no member, officer or employee of the Agency or Council has or will have an interest, directly or indirectly, in the performance of the Contract, or in the supplies, work or business in connection with the said Contract, or in any portion of the profits thereof, or in any monies to be derived therefrom; the Bidder Submission is not made in collusion with any other Bidder making a Bidder Submission for the same goods and services and

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Instructions to Bidders

is, in all respects, fair and without fraud; and that neither it nor any of its subcontractors nor any of their respective representatives has any actual, apparent or potential conflict of interest or existing business or other relationship with the Agency or any or any other party or person providing advice or services to the Agency with respect to the Document or the Work or any of their respective representatives that gives rise or might give rise to an unfair advantage (a "Conflict of Interest"). Each Bidder acknowledges that it is within the Agency's discretion to determine whether a Conflict of Interest exists.

- (b) Should the Bidder give or offer any gratuity to or attempt to bribe any member of the Agency, or to commit collusion or fraud, the Agency shall be at liberty to reject the Bidder Submission or, if a Contract has been awarded, terminate the Contract forthwith, without liability to itself, and to rely upon the sureties as provided for.
- (c) By submitting a Bidder Submission for this Document, each Bidder thereby releases and forever discharges the Agency from any and all liability related to any determination the Agency may make regarding Conflicts of Interest, including any disqualification, prohibition, rejection or contract termination which may result therefrom.
- (d) In addition to all other rights in this Document or otherwise available at law or in equity, the Agency may, in its discretion, immediately disqualify a Bidder Submission or may terminate any contract entered into in connection with or resulting from the Document, without liability, penalty or cost, upon giving notice to the Bidder if the Bidder or any of their respective representatives fails to disclose or has failed to disclose any Conflict of Interest.

26. INCONSISTENCY, CONFLICTS AND OMISSIONS

- (a) In the event of any inconsistency or conflict in the Document, the vendor shall notify the Agency prior to the closing time.
- (b) The vendor shall not take advantage of any apparent error or omission in the Document. Any work not specified which is necessary for the proper performance and completion of any part of the Work contemplated, which may be implied as included in the Work, shall be done by the vendor as if it had been specified and shall not be construed as a variation in the Work to be done, and shall not be subject to any claim by the vendor for additional compensation.

27. DRINKING WATER QUALITY MANAGEMENT SYSTEM AND WASTEWATER INTEGRATED MANAGEMENT SYSTEM

The Agency has implemented quality and environmental management systems to ensure the delivery of safe, clean drinking water to our communities, and to protect the environment by effective collection and treatment of wastewater,

Instructions to Bidders

while maintaining compliance with applicable legislation and regulatory requirements.

The systems' policies provide a foundation for the Agency's commitments to delivery of water and wastewater services and through these commitments, the Agency assures the quality and availability of supplies and services necessary for the operation of the drinking water systems and wastewater systems under both normal conditions and in emergency situations.

All activities of the awarded Bidder and where applicable, its subcontracted specialized companies, will adhere to the defined and documented policies and be performed with integrity. Compliance with the management systems' principles is essential in ensuring that risks to public health and to the natural environment are eliminated or minimized.

Drinking Water Quality Management System (QMS) was established in accordance with the requirements of the [Drinking Water Quality Management Standard \(DWQMS\)](http://ontario.ca/page/ontarios-drinking-water-quality-management-standard-pocket-guide#section-4) at ontario.ca/page/ontarios-drinking-water-quality-management-standard-pocket-guide#section-4 developed by the Ministry of Environment, Conservation and Parks to aid in the provision of safe drinking water.

The QMS Policy declares the Agency's commitment to supplying safe and clean drinking water to the consumer, in compliance with all applicable legislative and regulatory requirements, and the maintenance and continual improvement of the QMS.

Wastewater Integrated Management System (WWIMS) enables a systematic approach towards pollution prevention and the implementation of quality work principles. Based on the principles of ISO 9001 (Quality Management Systems) and ISO 14001 (Environmental Management Systems), the WWIMS aims to apply best management practices to the operation of the Peel-operated wastewater collection and treatment systems.

The WWIMS Policy outlines the Agency's commitment to protecting and preserving the environment, quickly addressing incidents that pose a risk to the public and/or the environment, complying with regulations, working with our stakeholders and continually improving our programs.

The awarded Bidder must be aware of the QMS and WWIMS policies and understand how their practices and work activity impact the safety of drinking water and the environment.

In providing a submission response, Bidders shall be aware that, should they be awarded the contract, they will deliver their services in accordance with the

Instructions to Bidders

relevant regulatory requirements and regional standards while working on the Agency's water and wastewater infrastructure.

The Agency's responsibilities and expectations, and the awarded Bidder's role in supporting the QMS and WWIMS are available on the Agency's web page, [Resources for contractors - peelregion.ca](http://peelregion.ca) at peelregion.ca/construction/resources-contractors

PREVIEW

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The Regional Municipality of Peel

Document 2026-142T

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND
REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE
REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

PREVIEW

Special Provisions

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Special Provisions

1. **DESCRIPTION**

1.1. This Contract encompasses the trenchless rehabilitation of sanitary sewers, storm sewers, and culverts utilizing cured-in-place and fold-and-form pipelining technologies. The scope of work also includes external point repair and partial/full-length replacement as specified herein at various locations within the Regional Municipality of Peel.

1.2. Scope items involve trenchless rehabilitation and replacement of existing sanitary sewers, storm sewers, and culverts, which include:

- Full-length structural rehabilitation of approximately 2300 linear meters of sanitary sewers in sizes from 250mm to 375mm diameter.
- Full-length structural rehabilitation of approximately 2350 linear meters of storm sewers and culverts in sizes from 200mm to 1050mm diameter.
- Full-length structural rehabilitation of approximately 17 linear meters of non-circular storm sewer in size 850x1325mm diameter
- Partial and Full-length replacement of approximately 95m linear meters of storm and culverts in sizes from 300mm to 600mm diameter.
- Installation, reinstatement, and modification of maintenance holes and catch basin, including all necessary appurtenances.

1.3. The Work shall include, but is not limited to, the provision of all necessary labour, materials, and services required to perform rehabilitation, repair, and associated open-cut operations. This includes saw cutting and removal of asphalt pavement, concrete sidewalks, curbs and gutters, and vegetated surfaces; excavation and disposal off site of excess materials, including rock and construction surplus material. All excavation work shall include shoring; dewatering; protection of above-ground and underground structures and utilities; backfilling and compaction; placement and jointing of asphalt; traffic control; and site restoration to existing or improved conditions.

1.4. The above description is general and shall not be construed as limiting the scope.

2. **TIME OF COMPLETION AND LIQUIDATED DAMAGES**

2.1 **Time of Completion**

The Contractor shall diligently complete Work on this Contract within 180 Working Days from notification to commence work by the Agency .

Special Provisions

2.2 **Definition of Completion**

For greater certainty, and in reference to this Special Provision, contract completion shall be in accordance with the definition provided in the *Construction Act*. Accordingly, the contract shall be deemed to be completed when the price of completion, correction of a known defect or last supply is not more than the lesser of (a) 1% of the contract price; and \$5,000.

2.3 **Liquidated Damages**

It is agreed by the parties to the Contract that if all the work called for under the Contract is not completed within the time specified or any enlargement thereof by the Engineer, damage will be sustained by the Agency, and that it is and will be impracticable and extremely difficult to ascertain and determine the actual damage which the Agency will sustain in the event of and by reason of such delay and the parties hereto agree that the Contractor will pay to the Agency \$500 for liquidated damages for each and every calendar day's delay in finishing the work beyond the date of completion or number of days prescribed. It is agreed that this amount is an estimate of actual damage to the Agency which will accrue during the period in excess of the prescribed date of completion and is not a penalty.

The Agency may deduct any amount under this paragraph from any monies that may be due or payable to the Contractor on any account whatsoever. The Liquidated Damages payable under this paragraph are in addition to and without prejudice to any other remedy action or other alternative that may be available to the Agency.

2.4 **Other Constraints**

- The Contractor shall be responsible for scheduling the work to include additional crews, overtime/extended hours, weekend and overnight work as required to complete all Work by the stipulated completion dates in a manner that satisfies all conditions of this Contract. All costs associated with additional crews, overtime/extended hours, weekend and overnight work shall be included in the bid price; no separate payment shall be made.
- The Contractor is permitted to submit requests to carry out work on statutory holidays in advance if required to complete the Work. Work on statutory holidays will be subject to the approval of the Engineer.
- The Contractor shall supply a schedule and work plan at the pre-construction meeting that demonstrates how the Work will be completed by the stipulated completion dates in accordance with Special Provision, *Contractor's Schedule of Work*.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

- The Contractor shall be responsible for coordinating with other Contractors involved in construction projects not part of the Contract which are scheduled to take place within or around the Construction Limits in order to avoid conflicts.
- With regards to the City's traffic related constraints, the Contractor shall provide traffic control in accordance with Special Provision *Traffic Control*.
- All Work shall be carried out in accordance with the terms, conditions, and specific requirements of procured permits as specified in Special Provision *Permits and Approvals*. In addition, all work on sanitary MHs located within regulated lands shall be completed prior to the expiry of the associated permit issued by the relevant Conservation Authority.
- In accordance with Special Provision *Restoration*, all asphalt, concrete, topsoil and seed/sod restoration shall be completed immediately following completion of repair, rehabilitation and replacement work and prior to the Vendor moving to any subsequent MH(s). All asphalt restoration must be completed under the temperature restriction as specified in OPSS MUNI 310. The Vendor shall organize all Work according to these restrictions.
- Depictions of potential site access routes provided on the Contract Drawings are for reference only. The Contractor is responsible for determining most feasible access route to MH locations within constraints set out in these specifications. Proposed access routes shall be confirmed by the Vendor and submitted to the Engineer prior to commencement of Work.
- The Vendor shall take note and be responsible for scheduling the work during weather conditions that ensure existing surfaces along proposed access routes to non-ROW MHs are firm, stable, and capable of facilitating access of equipment and materials to carryout MH Works. Work at affected locations shall be postponed until such conditions are met. The Contractor's schedule shall include the necessary buffer, concurrent works, and other provisions to comply with this requirement and ensure the Work is completed within the contract time specified.
- All costs associated with the above requirements shall be included in the Bid Price. No extensions or additional payment will be made for any delays that occur as a result of complying with these requirements.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

3. **FORM OF RELEASE AT SUBSTANTIAL PERFORMANCE OF THE WORK**

Where required by the Supplemental General Conditions to the Ontario Provincial Standards Metric OPSS.Muni 100 (2006 edition), the Contractor shall use substantially the form of release set out in Appendix 5.3.

4. **FORM OF INVOICE**

Where required by the Supplemental General Conditions to the Ontario Provincial Standards Metric OPSS.Muni 100 (2006 edition), the Contractor shall use the form of invoice set out in Appendix 5.27.

5. **CONTRACT DOCUMENTS**

Notwithstanding the definition of Contract Documents set out in the Supplemental General Conditions to the Ontario Provincial Standards Metric OPSS.Muni 100 (2006 editions), Contract Documents means the executed Agreement between the Owner and the Contractor, Tender, the Document and appendices thereto, addenda issued by the Owner in respect of the Document before execution of the Agreement, Contract Drawings, Special Provisions, Ontario Provincial Standard Drawings (latest edition), Ontario Provincial Standard Specifications (latest edition), Ontario Provincial Supplemental Specifications (latest edition), Ontario Provincial Standards Metric OPSS.Muni 100 (2006 edition), Region of Peel Materials Specifications and Standard Drawings (latest edition), Instructions to Bidders, these Supplemental General Conditions, Region of Peel Standard Contract Documents (Volume 2), M.T.O. Traffic Control Manuals (latest edition), and M.T.O. Roadside Safety Manual (latest edition), such other documents as may be listed in the Document, subsequent amendments to the Contract Documents made pursuant to the provisions of the Agreement. The Vendor shall note the following locations for obtaining latest version of Region of Peel standard documents:

- a) Region Standard Construction Specifications (Sanitary, Restoration and etc.)
This Contract will mandate all requirements outlined in the most recent version of Region's Standard Specifications. The latest versions are available at:

<https://www.peelregion.ca/public-works/design-standards/>

- b) Region Standard Drawings – Sanitary Sewer and Appurtenances:

This Contract will mandate all requirements outlined in the most recent version of Region's Standard Drawings for Sanitary Sewer and Appurtenances. The latest versions are available at:
<https://www.peelregion.ca/public-works/design-standards/drawings/sewer/>

- c) Region Standard Drawings – Roads and Traffic:

This Contract will mandate all requirements outlined in the most recent version of Region's Standard Drawings for Roads and Traffic for all work

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

on Regional Roads. The latest versions are available at: <https://www.peelregion.ca/public-works/design-standards/drawings/roads/>

d) City of Mississauga – Roads and Traffic:

This Contract will mandate all requirements outlined in the most recent version of City of Mississauga's Standard Drawings for all work on City of Mississauga Roads. The latest versions are available at: <https://www.mississauga.ca/publication/transportation-and-works-standard-drawings/>

e) City of Brampton – Roads and Traffic:

This Contract will mandate all requirements outlined in the most recent version of City of Brampton's Standard Drawings for all work on City of Brampton Roads. The latest versions are available at: <https://www.brampton.ca/EN/residents/Roads-and-Traffic/Engineering-and-Construction/Pages/Engineering-Resources.aspx>

f) Town of Caledon – Roads and Traffic:

This Contract will mandate all requirements outlined in the most recent version of Town of Caledon's Standard Drawings for all work on Town of Caledon Roads. The latest versions are available at: <https://www.caledon.ca/en/town-services/standards-policies-and-guidelines.aspx#200-Roads>

g) Ontario Provincial Standard Specifications:

This Contract will mandate all requirements outlined in the most recent version of Ontario Provincial Standard Specifications (OPSS) as referenced in the document. The latest versions are available at: <https://www.library.mto.gov.on.ca/SydneyPLUS/TechPubs/Portal/tp/opsVIEWS.aspx>

6. ORDER OF PRECEDENCE

Notwithstanding the order of precedence set out in the Supplemental General Conditions to the Ontario Provincial Standards Metric OPSS.Muni 100 (2006 editions), in the event of any inconsistency or conflict in the contents of the following documents, such documents shall take precedence and govern in the following descending order:

- 6.1 Addenda issued by the Owner prior to Agreement execution
- 6.2 Form of Agreement
- 6.3 Special Provisions
- 6.4 Repair List / List of Repairs
- 6.5 Contract Drawings for Culvert Rehabilitation and Replacement
- 6.6 Contract Location Maps for Sanitary Sewer and Storm Sewer Full Length Lining

The Regional Municipality of Peel

Document 2026-142T

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

- 6.7 Region of Peel Standard Drawings
 - 6.8 Ontario Provincial Standard Drawings (OPSD)
 - 6.9 Property Impact Plan on Birch Crescent
 - 6.10 Credit Valley Conservation Authority (CVC) Permit Approval No. 24/183
 - 6.11 Toronto Region Conservation Authority (TRCA) Permit Approval No. PER-IPP-2024-00383
 - 6.12 Supplemental General Conditions, Vol. 2.1 (Peel Region), Revision Date: January 1, 2022
 - 6.13 OPSS.MUNI.100: Ontario Provincial Standard General Conditions of Contract (2006)
 - 6.14 Supplemental Standard Specification for CIPP Lining using Hot Water or Steam Cure
 - 6.15 Peel Region Standard Specification for CIPP using Hot Water or Steam Cure
 - 6.16 Peel Region Standard Specification for CIPP using Ultraviolet Light Cure
 - 6.17 Supplemental Standard Specification for CIPP Spot Repair
 - 6.18 Peel Region Standard Specification for CIPP Spot Repair
 - 6.19 Supplemental Standard Specification for Chemical Injection Grouting in Sewers and Maintenance Holes
 - 6.20 Peel Region Standard Specification for Chemical Injection Grouting in Sewers and Maintenance Holes
 - 6.21 Supplemental Standard Specification for PVC Fold and Form Liner
 - 6.22 OPSS.MUNI.465: Construction Specification for Sewer Pipeline & Culvert Rehabilitation by PVC Fold and Form Liner
 - 6.23 Region of Peel CCTV / MH Flushing Specifications
 - 6.24 Instructions to Bidders
 - 6.25 Form of Release at Substantial Performance of the Work
 - 6.26 Performance Bond
 - 6.27 Labour and Material Payment Bond
 - 6.28 Bidder Submission
7. **ROAD CUT PERMIT AND TRAFFIC REQUIREMENTS**
All streets are under the jurisdiction of the City of Brampton, City of Mississauga, and/or Town of Caledon. The Vendor is required to obtain Road Cut Permits from the City/Town and is to adhere to the conditions of the Permits.
8. **MAINTENANCE OF VEHICULAR TRAFFIC OPERATIONS**
The Contractor shall ensure that traffic movement is not unduly restricted due to the presence of their vehicles and equipment on the highway. All traffic signalling as outlined in the Ontario Traffic Manual's Book 7-Temporary Conditions shall be maintained during the course of the Work. The Contractor shall submit a completed Traffic Protection Plan to the Agency before field work commences.
9. **SERVICES PROVIDED BY THE AGENCY**

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

The Agency will provide the following field services to the Contractor for the duration of the Contract either at no charge or on a time and materials basis as indicated below:

a) **Survey layout**

The Contractor shall provide sufficient notice to the Agency regarding its work schedule and survey layout requirements.

No Charge

The Agency will provide sufficient survey markers and grade sheets to the Contractor as may be required for the proper execution of the works. All stakes, markers and reference permits shall be carefully preserved by the Contractor.

NOTE: This service will not be provided where Contractor layout is included as a pay item in the Schedule of Prices.

Time and Materials Charge

Resetting of survey markers, stakes or reference points that have been destroyed, altered or removed as a result of negligence by the Contractor.

b) **Inspection**

No Charge

The Agency will provide an on-site inspector, either full or part-time, for the duration of the Contract. This includes a final inspection and preparation of deficiency list and a re-inspection when the Contractor advises that it has completed the repair of all deficiencies.

Time and Materials Charge

All subsequent re-inspections to confirm repair of outstanding deficiencies.

c) **Stake-Outs**

No Charge

The Agency will provide stake-outs for existing Regional watermains and services and sanitary sewer mains. Stake-outs shall be carefully preserved by the Contractor.

Time and Materials Charge

Resetting of stake-outs that have been lost as a result of negligence by the Contractor.

10. **PERMITS AND APPROVALS**

10.1. All streets are located in the Regional Municipality of Peel under the jurisdiction of the Region of Peel, City of Brampton, the City of Mississauga

Special Provisions

or the Town of Caledon. The Vendor shall procure all Road Occupancy/Cut Permits from the respective municipality and adhere to all the terms and conditions of the issued permit.

- 10.2. The websites containing relevant information to obtain the road occupancy permit applications from various municipal and Regional Road Authorities can be found available at the following websites:

Region of Peel:

https://www.peelregion.ca/services/transportation/road-occupancy-permit/?gad_source=1&gclid=CjwKCAjwmYCzBhA6EiwAxFwfgAJg9J398BATWOgFjO0DzHi_mdA-wox_Ybr92xGts9FXrMINIOZ1dhoClxoQAvD_BwE

City of Mississauga:

<https://www.mississauga.ca/services-and-programs/transportation-and-streets/roads-and-sidewalks/apply-for-a-road-occupancy-permit/>

City of Brampton:

<https://www.brampton.ca/EN/residents/Roads-and-Traffic/Permits-and-Applications/Pages/Road-Occupancy-Permit.aspx>

Town of Caledon:

<https://www.caledon.ca/en/town-services/road-permits.aspx>

- 10.3. Where work is located in close proximity to Provincial Highways, the Vendor shall also obtain needed approvals from associated authorities (MTO, 407 ETR and etc.) and adhere to rules and conditions outlined within the obtained permits and approvals.
- 10.4. Additionally, it shall be the responsibility of the Vendor to procure the following permits as required, prior to the start of the affected Work:
- Park Access Permits from the relevant Municipality for MHs and/or sewers located in public parks
 - Hydrant Permit from the Agency
 - Noise Exemption Permits from the relevant Municipality, as required
 - Night Work permit, as required
 - Tree Removal and Injury Permits from the relevant Municipality, as required.

Special Provisions

- 10.5. Any costs associated with the procurement or delay of these permits shall be borne by the Vendor; no separate payment shall be made.
- 10.6. The Vendor shall be responsible for ensuring that conditions of all permits and approvals are achieved and maintained throughout the duration of the Work.
- 10.7. Copies of all permits and approvals shall be stored on site by the Vendor for the duration of the Contract.
- 10.8. All costs associated with the above requirements shall be included in the Bid Price. No extensions or additional payment will be made for any delays that occur as a result of complying with these requirements.
- 10.9. The following environmental permits from the relevant regional conservation authority have been procured by the Agency. The Vendor shall schedule their operations such that MH Works at within each regulated area is completed prior to the date of expiry of the permit. Copies of permit documents are provided in Appendices 5.19 and 5.20.
- Appendix 5.19 - Credit Valley Conservation Authority (CVC) Permit No. 24/183
 - Appendix 5.20 - Toronto Regional Conservation Authority (TRCA) Permit Approval No. PER-IPP-2024-00383
11. **PRIVATE PROPERTY WORKS, ACCESS RESTRICTIONS**
- 11.1. The following scope of work listed in the table below are located on private properties that do not have an easement and require Permission to Enter (PTE) agreements which are currently being pursued by the Agency. These works are included in the Contract; however, the Vendor shall not access or undertake any work on these properties until written authorization is provided by the Agency. The Agency reserves the right to cancel this portion of the work without cost to the Agency, should PTEs not be obtained within the Contract timeframe. Additionally, the Vendor shall:
- Consider these works as part of the overall scope, but without assigning specific timing or execution of these works.
 - Not claim delay, standby, or mobilization costs associated with the timing or execution of these works.
 - Include all necessary pricing and associated costs in the base bid. Unit rate pricing will be used for progress payments once work is authorized to proceed.

The Regional Municipality of Peel

Document 2026-142T

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

Asset ID	U/S SMH	D/S SMH	Municipality	Street name	Location Map No.	Scope of Work
SMH1785801-SMH1785795	1785801	1785795	Mississauga	Birch Cres	12	Lining
SMH1785803-SND6522345-SND6522345-SMH1785802	1785803	1785802	Mississauga	Birch Cres	12	Lining
SMH1785804-SMH1785803	1785804	1785803	Mississauga	Birch Cres	12	Lining

11.2. In other locations, access MHs may be located within existing easements through private property, City-owned parkland, and non-paved portions of the ROW. It shall be the Vendor's responsibility to identify these locations, secure and coordinate access with the property owner, as well as the protection and restoration of any private or City-owned property that may be damaged as a result of the work.

11.3. All costs associated with these requirements shall be considered incidental to the work; no separate payment shall be made.

12. **TRAFFIC CONTROL**

12.1. In addition to the requirements set out in the Supplemental General Conditions related to Maintaining Roadways and Detours, the Vendor shall be responsible for all work related to the provision of traffic control in accordance with the requirements of this specification for the duration required to successfully carry out the Works.

12.2. The Vendor shall ensure that traffic movement is not unduly restricted due to the presence of their vehicles and equipment on the roadway. All traffic signalling as outlined in the Ontario Traffic Manual's Book 7-Temporary Conditions shall be maintained during the course of the Work. The Contractor shall submit a completed Traffic Protection Plan in accordance with O.Reg. 213/91 to the Agency before field work commences. The Traffic Protection Plan shall:

- outline traffic hazards;
- specify all measures being used to protect workers;
- be kept at all project locations; and be made available to the inspector or workers upon request.

12.3. The Vendor shall supply, place, and maintain all barricades, jersey barriers, warning signs, delineators, and flashing lights necessary for the protection of the public and the Work Area, including warning signs of construction operations at all ends of Contract locations, for the duration of the Contract,

Special Provisions

in accordance with the Manual of Uniform Traffic Control Devices, Ministry of Transportation (latest issue) and as outlined in the Ontario Traffic Manual's Book 7 – Temporary Work, the Ministry of Labour's (MOL) Occupational Health and Safety Act, O.Reg. 213/91, Traffic By-Laws of the relevant Municipality in which the Works are taking place, and all amendments thereto.

- 12.4. Prior to commencement of work, the Vendor shall submit Traffic Control Plans (TCPs) to the relevant Road Authority in conjunction with Road Occupancy/Cut Permit Applications. The submission shall be prepared in accordance with the above-mentioned regulations and specific requirements of the relevant Road Authority for their approval. The Agency and Engineer shall be copied on all TCP and Road Occupancy/Cut Permit applications made by Vendor for their records. Where, due to the nature and duration of the work being completed, changes in proposed TCPs or different TCP setups for non-working hours are required, the Vendor shall be responsible for submission of revised and/or supplemental TCPs for Road Authority approval.
- 12.5. Where detours or road closures are required, detour plans will require submittal, review and approval by the applicable Road Authority prior to implementation. All costs associated with the supply, installation, maintenance and removal of the detour routes and/or custom signage required by the Agency or the Municipality shall be included in the Vendor's bid price.
- 12.6. The cost of all equipment and materials including but not limited to signs, barricades, flashers, delineators, safety fencing and flaggers shall be at no additional cost to the Agency.
- 12.7. All signs, flashers, barricades, and delineators shall be cleaned and maintained throughout the duration of the Contract, at the Vendor's expense. The Vendor shall perform daily inspections of all TCP equipment, materials and actual installations and keep a daily log of any deficiencies, adjustment or corrections. The Agency or the Engineer reserves the right to review the Vendors log from time to time. Logs shall be kept onsite and made available upon request by the Agency or Engineer.
- 12.8. The Vendor shall have a competent person on duty at all times for emergency calls after construction hours and during weekends. It shall be the Vendor's responsibility to supply the Agency with the name and telephone number of the person to be contacted during these periods.
- 12.9. The Vendor shall, in any event and in particular when directed by the Engineer, shall supply an adequate number of flag persons to direct traffic during construction, in accordance with the recommended procedures outlined in the "Handbook for Construction Traffic Control Persons" issued by the Infrastructure Health and Safety Association (IHSA). No work will be

Special Provisions

permitted if there are not the requisite number of flag persons on full time duty when two lanes of traffic cannot be maintained.

- 12.10. The Vendor shall ensure that through vehicular and pedestrian traffic is allowed around the construction site at all times. In any times of inactivity, a minimum of two (2) lanes, one in each direction shall remain open. No road closures can be implemented without the written approval of the applicable road authority.
- 12.11. Pedestrian traffic is to be detoured safely around all work zones and the Vendor shall be responsible for ensuring the necessary signage, equipment, and temporary pathways to safely detour all pedestrian traffic around the work zone is provided at all times. Any temporary pathways shall meet any accessibility guidelines of the applicable Municipality where the work area is located.
- 12.12. If, in the opinion of the Engineer, proper traffic control is not maintained, the Vendor shall immediately modify their operations to the satisfaction of the Engineer. If the Vendor fails to take immediate action, the Engineer may take such action necessary and required and deduct the cost from monies owing the Vendor. The performance of such Work under the direction of the Engineer shall in no way relieve the Vendor from any responsibility or damages which may occur during its performance or after such precautions have been carried out by the Engineer.
- 12.13. When activities carried out under this contract impact signalized intersections, the Vendor shall advise the Agency a minimum of five (5) business days prior to the start of any construction within the intersection to make necessary arrangements with the municipality to modify the operation of the traffic control signals as required to facilitate construction. The municipality shall be notified upon completion of all restoration Work in the intersection that the signals can be returned to normal operations.
- 12.14. Throughout the duration of the work, the Vendor shall:
 - Maintain access to all residential, institutional, and commercial properties at all times;
 - Stage and carryout Works near or across driveways in a manner that will ensure continuous and unimpeded flow of vehicular traffic;
 - Provide written notification and obtain consent from property owners/occupants at least 48 hours in advance of blocking and/or closing their driveways or obstruction of on-street parking for any construction purposes; blocked and/or closed driveways and parking shall be opened as soon as is practicable;
 - Where applicable, restrict materials and equipment to one side of the work area and store so as not to interfere with visibility, particularly around corners.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

- 12.15. Payment shall be made through the lump sum price item for Traffic Control and shall include the supply of all labour, materials and equipment required to carry out the Work in accordance with the above requirements, including cost of traffic control persons/flaggers, Paid Duty Officer (PDO), mobilization and de-mobilization for all locations as required by Book 7 and road occupancy permit terms and conditions.
- 12.16. Contingency items for additional PDO and traffic control persons/flaggers are reserved for circumstances where special requirements have been placed on the Vendor at specific sites by the Agency, Engineer or relevant traffic authority which are over and above the requirements set out by Book 7 or terms of the issued road occupancy permit.

13. PUBLIC SAFETY AND CONVENIENCE

- 13.1. Throughout the duration of the Work, safety and convenience of the public shall be given special consideration and provided for by the Vendor to the satisfaction of the Engineer and in accordance with all applicable provincial and municipal safety codes, standards, guidelines, and standards.
- 13.2. The Vendor must not, at any point, obstruct any street, thoroughfare, walkway or driveway longer or to greater extent than absolutely necessary.
- 13.3. The Vendor shall ensure that all residents have access to their properties at all times. If blocking access is deemed necessary for execution of the work, the Vendor shall make necessary arrangements to obtain permission from the homeowner, provide written notice at least 48 hours in advance, and limit the duration of blocked access ways.
- 13.4. Throughout all stages of work, where the Vendor either occupies a portion of driveway or works in the vicinity of private property, the Vendor shall take all reasonable precautions to prevent and protect against damage to driveways, laneways, curbing, fencing, landscape features, and adjacent buildings or structures. Any damage resulting from the work shall be repaired and restored by the Vendor to the satisfaction of the Engineer and provide compensation to the property owner, where necessary. Damaged suffered shall be reported to the Engineer immediately; any arrangements with the property owner regarding compensation, repair, or restoration work shall also be communicated.
- 13.5. The Vendor shall be attentive to the needs of pedestrians by directing them to sidewalks opposite to ongoing construction as well as to alternate park trails where necessary and shall provide safe means of doing so by use of signs and barricades in accordance with the Vendor's Traffic Control Plan.
- 13.6. Safe, ample, and convenient means of approach and entrance to adjoining lanes, driveways, and private properties shall be provided by the Vendor to both vehicles and pedestrians at all times. To achieve this, the Vendor shall construct and maintain, in good and serviceable condition, suitable

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

temporary platforms, approaches, crossings or other works to maintain access and shall be responsible for their removal upon completion of works including any restoration required.

13.7. The Vendor is to minimize open excavations left at the end of each working day. Where required to be left open overnight, the Vendor shall, in advance, obtain approval from the relevant road authority to do so. If approved, the Vendor shall completely block off the surrounding area by means of jersey barriers in accordance with the Vendor's Traffic Control Plan for that work area.

13.8. All costs associated with providing and maintaining the safety and convenience to pedestrians, nearby residents, and the general public throughout the entire duration of construction are considered incidental and shall be included in the bid price. No extensions or additional payment will be made for any delays that occur as a result of complying with the above requirements

14. TAKING OF PUBLIC WATER

14.1. The Vendor shall not operate any part of the Agency's water supply system. In the event the Vendor requires to have the existing valves operated, the Vendor is to submit a written request to the Agency or the Engineer a minimum of forty-eight (48) hours in advance of the workday it is to be performed.

14.2. The Vendor will be permitted to take water from the hydrant if it obtains a temporary hydrant permit and water meter from the Agency (hydrant permit information provided in Appendix 5.26). The Contractor will be responsible for the meter rental and any damages incurred to the meter while in their possession. The Agency will pay for the water used.

14.3. During winter conditions (November 1 to April 30) the Vendor shall supply, install, maintain and remove an insulated box and heater to prevent the hydrant from freezing. Any costs associated with the prevention of hydrant freezing shall be borne by the Vendor; no separate payment shall be made.

15. DAMAGE TO PRIVATE PROPERTY AND WORKING AREA

15.1. Any damage to lawns, driveways, or any other areas of private property as interpreted by the Agency's representative, shall be repaired or replaced immediately by the Vendor at its own expense. Failure to immediately comply with the direction provided by the Agency or the Engineer as it relates to issues on private property may result in the Agency or the Engineer resolving the issue utilizing outside forces and deducting the costs from any monies owed to the Vendor.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

15.2. No use of private property for any reason shall be allowed unless a written agreement with the property owner is obtained and is provided to the Agency/Engineer. For any work requiring access or interruption of service to a private property, the coordination and communication with private property owners shall be governed by the public notification requirements set out Region of Peel's Standard CIPP Specifications.

16. ON-SITE STORAGE

16.1. Any on-site storage of equipment and material must be kept to a minimum. The Vendor shall maintain traffic sight lines and also avoid any major inconveniences to stakeholders. The Engineer must approve the location and the size of any storage trailers in writing. In the event that a suitable location cannot be found for the Contractor's storage or equipment trailer, no additional compensation shall be made.

16.2. All storage trailer locations shall be defined within the Vendor's Road Occupancy Permit.

17. WORKING AREA

17.1. During construction, the Contractor is required to confine their construction operations within the existing road allowances and will not enter private lands adjacent to the construction with equipment and/or vehicles without written permission from the property owner. Vehicles and equipment are not allowed to enter any driveway. Any claims for damage will be the contractor's responsibility.

18. CONTRACTOR'S SCHEDULE OF WORK

18.1. The Vendor shall meet with the engineer and the Agency representative prior to the commencement of any work and shall submit for approval a schedule of the operations within 14 days of the award of the Contract. No work shall commence without an approved project schedule.

18.2. The schedule will identify the following:

- Contract Working days;
- Start and completion days for each major Contract item;
- Contract milestone dates (award date, commencement date, substantial performance date, completion date);
- Include all activities required for the completion of work in accordance with the Contract Documents including required submittals, review and approval periods;
- List activities in an orderly sequence as to reflect the logic, timing, and phasing of each activity for different stages of construction and for the various work areas;

Special Provisions

- All individual tasks and sub-tasks required to complete the work shall be listed separately on the Vendors schedule. (i.e. each MH/sewer shall be listed as well as preparation work, rehabilitation work, restoration, and deficiency resolution);
- Task duration with proposed start and end dates, and dependencies;
- Any non-working periods, weekend work, or extended shifts and any other appropriate allowances for inclement weather or unforeseen delays; and
- Critical path.

18.3. The Vendor shall supply schedule and schedule updates in both .pdf and .mpp format unless requested otherwise by the Agency or the Engineer. The Engineer will review the schedule, and when approved, it will be used as a baseline schedule for the work. The Engineer reserves the right to order specific work to be completed at times other than shown in the schedule if, in their opinion, this action is necessary.

18.4. Schedule updates shall be provided by the Vendor at each bi-weekly progress meeting. The schedule updates shall, in addition to the requirements above, include any known impacts to the construction schedule that may arise during the progress of the Work, mitigation measures and/or corrective actions to be taken in order to prevent schedule slippage. Failure to provide baseline schedule or schedule updates may result in the Agency or the Engineer withholding progress payments until such time that an acceptable schedule update is provided.

18.5. Progress of the work must be maintained on a continuous basis. Intermittent progress is not acceptable. All work for the project must be completed by the completion date indicated or within the working days stipulated in the Document.

18.6. If the completion date of the project (together with all other project constraints) specified, is not sufficient to permit completion of the work by the Contractor on a single daylight shift basis, it is expected that additional and/or augmented shifts will be required throughout the life of the Contract to the extent deemed necessary by the Contractor to ensure that the work will be completed within the specified time limit. No additional compensation shall be considered for the augmented shift requirements.

18.7. Any extension of working hours beyond those specified in this Contract will require written authorization of the Engineer.

18.8. The Contractor shall keep a competent Superintendent or a registered professional engineer (all referenced to as the Site Superintendent) on the site at all times to coordinate the work, in addition to Sub-Contractor's supervisory personnel.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

- 18.9. The site Superintendent/Engineer shall represent the Contractor and written directions given to them shall be deemed to have been given to the Contractor and the Superintendent shall have the authority to act upon these directions.
- 18.10. The Contractor shall have a competent person on duty at all times for emergency calls after construction hours and during weekends and holidays. It shall be the Contractor's responsibility to supply the Engineer with the name and telephone number of the person to be contacted during these periods.
- 18.11. All costs associated with preparation of the baseline construction schedule and schedule updates shall be considered incidental and included in the Bid Price; no separate payment shall be made for complying with the requirements above.
19. **CONTRACTOR SUBMITTALS**
- 19.1. The Vendor shall prepare and submit the following submittals in accordance with the Contract Documents to the Engineer for review:
- Baseline Construction Schedule and bi-weekly Updates
 - 24-Hour Emergency Contact List
 - Ministry of Labour Registration of Constructors and Employers Engaged in Construction
 - Ministry of Labour Notice of Project
 - Ministry of Labour Notice of Trench Work
 - Sewer Rehabilitation submittals in accordance with the Region's Standard CIPP Specifications
 - Management of Sewer Flow Plan
 - Traffic Control Plans
 - Open-cut EPR/Replacement and Restoration Plan
 - MH Modification Plan, as needed
 - Dewatering Plan, as needed
 - Material Specification and Safety Data Sheets for all proposed products and materials
 - QA/QC Plan
 - Hauling Record for soil disposal
 - All other submittals required by the applicable OPSS and Region of Peel Standards related to the Contract Works
- 19.2. At the pre-construction meeting, the Contractor shall provide the Contract Administrator with a submittal schedule which identifies when each of the required submittals will be submitted. The Contractor shall note that the list above may not include all required submittals and shall review the Contract Documents to ensure that all required submittals (relevant shop drawings,

Special Provisions

work procedures, methodologies, relevant records and documentation) are accounted for in the proposed schedule.

- 19.3. All submissions shall be made electronically to the satisfaction of the Agency or the Engineer. The Agency or the Engineer will review and return each submission within ten (10) working days of receipt of the submission in question unless otherwise noted in the Contract documents. The Vendor shall supply additional information, Work plans or methodologies and any submissions requested by the Agency or the Engineer to satisfy their review(s) of the Vendor's submittals.
- 19.4. Where the Vendor is proposing to deviate from any Contract requirements the Vendor shall supply the necessary technical and financial information, as requested by the Agency and Engineer, to facilitate the Agency or the Engineers review of the alternative(s) being proposed. Any deviations from the products or systems specified in the Region's Standard Drawings shall be clearly outlined and shall be accompanied by the necessary documentation required to demonstrate that proposed alternatives meet or exceed the technical requirements of products, systems and materials approved by the Region. All costs and issues related to the alternative(s), including performance of the installed alternative(s) during and after the maintenance period shall be the complete responsibility of the Vendor. The Agency or the Engineer's review in no way relieves the Vendor, or its Material Suppliers or Subcontractors, of all responsibility associated with the proposed alternative(s). The Agency/Engineer reserve the right to reject any contract deviations proposed by the Contractor.
- 19.5. All submittals shall have a cover page that includes, at minimum, the Contractor's name, contact name, contact title, submittal title, submittal number, related specification, and date submitted.
- 19.6. The Contractor shall not commence with any Work affected by a submittal until the submittal has been reviewed by the Engineer. Work shall not proceed unless the related submittal has been returned to the Contractor marked "Reviewed" or "Reviewed As Noted." Submittals marked "Reviewed As Noted" shall only proceed with the changes noted. Submittals marked "Revise and Re-submit" shall be revised and re-submitted within 5 working days.
- 19.7. The Engineer's review of the Contractor's submittals shall be for the purpose of determining general conformity with the requirements of the Contract Documents. The Engineer's review does not warrant or represent that the information contained in the Contractor's submittals are accurate nor does it relieve the Contractor of the responsibility for the proper installation and performance of any material, system, or product.

Special Provisions

19.8. Vendor shall not make any revisions to reviewed submittals without written permission from the Agency or the Engineer.

19.9. All costs associated with the above shall be considered incidental and included in the Bid Price; no separate payment shall be made for complying with these requirements.

20. PROJECT AWARD, ADJUSTMENT TO OVERALL SCHEDULE BY THE REGION

The Agency reserves the right to adjust the schedule to delay the start date until all approvals are obtained. Any delay in the commencement of the project caused by the Agency will result in the Contract schedule being extended by an equivalent period of time. In this case, the Vendor will not be eligible to claim extra for the delay and no additional costs will be considered including delay, loss of business, loss of profit or any other indirect or overhead costs.

21. PROJECT SIGNBOARDS

21.1. The Agency will prepare magnetic type or portable-erectable project information signs. The Contractor will be required to pick the signs up from the location confirmed by the Agency at the first pre-construction meeting.

21.2. Where the work requires excavation of any kind, the Vendor shall be responsible for installing, maintaining, and removing portable-erectable project signboards. Due to the various Work locations under this Contract project signboards shall be installed on bases which can be relocated to the various work locations. Signs shall be relocated to each Work location a minimum of seven (7) calendar days prior to physical work occurring at the new location unless otherwise authorized by the Agency or the Engineer. Bases shall be anchored in each location to ensure they are not toppled by weather and vandalism. As a minimum the Vendor shall secure the sign bases with sandbags. The Vendor shall be responsible for picking up the signs at a location designated by the Agency (Regional works yards in Brampton or Mississauga).

22. AGENCY'S CCTV INSPECTION SPECIFICATIONS

22.1. General

The following requirements shall be considered supplemental to the Region of Peel CCTV, Flushing, and MH Inspection Specification found in Appendix 5.13.

Special Provisions

22.2. The Material Provided by The Agency

The maintenance hole asset ID used for CCTV inspection shall correspond to those identified in the Contract Location Map (Appendices 5.22 and 5.23). The Vendor shall notify the Agency if any uncharted maintenance hole is encountered during the CCTV inspection.

22.3. Display

The display shall have suitable character size, type, style, and color to be clearly visible and easily readable. This display shall be placed in such a manner as not to interfere with the image of the video. The Region reserves the right to reject any video that does not meet its quality requirements, and the Vendor shall retake the video at no extra cost.

22.4. Operator Qualifications - Inspection

Each inspection unit shall have a minimum of one (1) operator on site at all times who has successfully attained the NASSCO Level of Qualification for PACP Operators. The operator shall perform accurate observations and recording of all conditions, which may be encountered in the sewers

23. MAINTENANCE HOLE INSPECTION

23.1. The Contractor shall be responsible for performing a pre-construction 360 degree video inspection for every MHs scheduled for modification due to the large diameter sewer lining. The video shall be submitted along with the shop drawing and work plan to the Engineer a minimum of two (2) weeks prior to commencement of MH work for review and approval. The purpose of the inspection is to allow the Engineer to provide comments on the shop drawings based on the proposed depth of removal.

23.2. After completion of the rebuilt MH and the new catch basin installation, the Vendor shall perform a post-construction 360-degree video inspection. The V3 inspection shall be submitted to the Engineer for review approval of the work. In the event that the Engineer identifies a deficiency in the work that requires repair/remediation, the Vendor shall carry out the required repair/remediation works to rectify all deficiencies to the satisfaction of the Engineer prior to carrying out a follow-up V3 for resubmission at no additional cost to the Agency.

23.3. 360-degree videos shall have a minimum of 1080p resolution and shall capture the entire MHs structure from 1m above the MH to the lowest elevation available (Invert of pipe or top of sewage flow depending on the MH). Proper lighting and ventilation shall be supplied to ensure the entire MH is captured in the video and that all aspects of the MH can be clearly

Special Provisions

observed on the video. Vendors should take note that substantial ventilation/special lighting efforts may be required as some of the MHs included in this assignment are associated with trunk sewers or are uniquely shaped structures which makes recording of a clear video difficult at times.

23.4. Videos shall be taken at a vertical pace which allows all elements of the MH to be observed. Special care to include the underside of all MH caps, tops, platforms and appurtenances will be required. Should the underside of these elements not be possible to be captured on the video of the entire MH, still photographs of these elements shall be provided with pre and post condition videos.

23.5. The video file format shall be MP4 and fully compatible with all mainstream video players (for Mac and Windows OS) including Windows Media Player, VLC Player, and QuickTime Player.

23.6. Should videos not meet Agency or the Engineer requirements the Vendor shall be required to retake the videos as many times as required at no additional cost until a clear video or photo are captured and submitted.

24. **CLEANING OF SEWERS**

24.1. **Scope of Work**

The Work to be done consists of furnishing all the necessary labour, tools and equipment to carry out:

- The necessary cleaning required to achieve full length sewer inspections and full depth MH inspections in accordance with the Region of Peel's Standard and Supplemental CIPP Lining Specifications.
- Cleaning of the existing sewers and MHs using hydro-flushing, reaming, cutting/milling, and Confined Space Entry (CSE) methods including removal of all materials resulting from cleaning operations, delivery, and disposal at the Vendor's designated site in accordance with the requirements below.
- All costs associated with cleaning and flushing, including reaming, cutting/milling, and CSE, shall be included in the unit price of Post-Cleaning CCTV (V2). No additional payment shall be made.

24.2. **Maintenance of Flow**

24.2.1. The sewers to be cleaned are in operation and carry sewage flow at varying depths. All sanitary sewer lines, lateral connections

Special Provisions

and maintenance holes must be cleaned prior to any liner installations or repairs. Storm sewers and culverts will require the removal of all sediment, rocks, roots, branches, and other deleterious materials prior to liner installation. Storm Sewer lining will be undertaken during dry weather conditions only. The successful Contractor is to maintain flow at all times and not block any line unless arrangements have been made with and approved by the Agency's Project Manager. In this instance, the successful Contractor shall supply all the necessary labour, tools, hoses, pumps, and portable power supply for an efficient pumping operation of sewage around the line to be cleaned. The successful Contractor is to submit to the Agency's Project Manager all the required data of the by-pass pumping system for approval.

24.2.2 The cost for supplying, utilizing and removing a by-pass pumping up to, but not including, a 150mm pump shall be included in the fee for cleaning the sewer. Where pumps 150mm and larger are required, the Contractor shall submit a proposal verifying the requirement as well as the total cost for supplying, utilizing, and removing the pump from the site.

24.3. Cleaning Procedure

24.3.1. The cleaning unit will be set up at the downstream maintenance hole of the sewer run to be cleaned. It will be up to the Contractor's discretion and expertise to select correct working pressure and size of nozzle to completely clean the sewer.

24.3.2. Using water pressure, the nozzle shall be run-up to the upstream maintenance hole at an appropriate speed deemed satisfactory by the Contractor and then pulled back, cleaning the sewer. The maximum speed of pull back shall be 10m per minute.

24.3.3. The procedure will be repeated, if necessary, until the sewer line is completely clean. No additional payment shall be made for repeated flushing to render the sewer line completely clean.

24.3.4. The cleaning unit shall vacuum up any and all debris, as required, at the downstream maintenance hole. At no time will debris from the cleaning operations be left in the pipe, maintenance hole or subsequent pipe lengths. If required, the successful Contractor shall provide manual removal of debris at no additional cost to the Agency.

24.3.5. The Contractor must use a calibrated gas detector, in good working order, to test the atmosphere in any maintenance hole before it is opened. The testing must be logged on the forms

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

provided, which must be submitted to the Agency's Project Manager on a weekly basis.

24.3.6. Additionally, the Vendor shall adhere to the specific sewer cleaning and pre-lining preparation requirements set out in the appended Region of Peel Standard Specifications for Sewer Rehabilitation using CIPP.

25. CONFINED SPACE ENTRY

25.1. The successful Vendor will ensure that all staff/sub-contractors performing Work involving a confined space are certified in confined space entry and are able to show valid proof thereof when requested by the Agency and must dutifully follow the Procedure's outlined in the Vendor's CSE (Confined Space Entry) Plan.

25.2. Vendors shall familiarize themselves with the specifics of each sewer and MH location during the bidding process and incorporate all CSE costs associated with the work. No requests for additional payment after the tender closing will be considered for any specialized procedures or equipment necessary to complete all work in accordance with contract documents.

25.3. As part of the submittals process the Vendor shall submit a Health and Safety plan to the Agency/Engineer which outlines and includes any specialized equipment and CSE procedures required, in accordance with Occupational Health and Safety Act and O.Reg.213/91 Construction Projects, and all amendments thereto.

25.4. The Vendor shall be responsible for providing the Site Inspector the necessary means to safely access the sewer/MH in order to facilitate inspection and measurement, as needed. The Vendor shall be required to support all activities (inspections, review of completed Work, observation of Work while it is ongoing etc.) of either the Agency or the Engineer's forces as requested by the Agency and Engineer prior to, during and after the contract works are completed. All necessary equipment and personnel to support these activities shall be supplied by the Vendor at no extra cost to the Contract.

25.5. As the designated Constructor, the Contractor shall maintain overall responsibility of the health and safety of their workers and sub-contractors. Accordingly, the Contractor shall ensure that all onsite personnel, including the Resident Site Inspector and any other Agency Representatives, are working under the Contractor's health and safety policy and confined space entry procedures.

Special Provisions

- 25.6. All costs associated with the above shall be considered incidental and included in the Bid Price; no separate payment shall be made for complying with the requirements above.

26. FLOW MONITORING EQUIPMENT

26.1. The Agency is regularly conducting flow monitoring studies throughout its sewer system. The equipment used for flow monitoring can be very valuable and expensive. Should the Vendor locate any flow monitoring equipment in any of the sewers/MHs included in the Contract, the Vendor shall immediately notify the Agency or the Engineer in writing and shall not proceed with the removal or adjustment of the flow monitoring equipment or proceed with any sewer/MH cleaning works until the flow monitoring equipment is removed by the Agency's forces. No additional payment or delay claims will be considered for delays that occur as a result of complying with this requirement.

26.2. Should the Vendor remove or relocate or modify any flow monitoring equipment without approval of the Agency or the Engineer, all costs associated with repair, reinstallation or replacement of the flow monitoring equipment will be the complete responsibility of the Vendor.

27. PRE-CONSTRUCTION/POST-CONSTRUCTION PHOTOGRAPHS

27.1. The Vendor shall take digital photographs and/or videos at each MH location or any other area impacted by the Vendors open-cut excavation activities prior to beginning any physical Work. This includes but is not limited to sidewalks, curbs, roadways, driveways, pathways, multi-use trails, sod, plants, trees, landscape features and structures. Photographs and/or videos shall be taken of the subject MH's surrounding surface area (25m radius from MH center) to baseline existing conditions prior to starting the work. The Vendor shall ensure that all existing surface features, observed issues or deficiencies are captured in the preconstruction media. All photos and/or videos shall have a time and date stamps. Photos and/or videos shall be taken during time periods when surface features are visible and are not covered by snow/ leaves or other physical obstructions unless unavoidable and approved by the Agency or the Engineer.

27.2. Vendors shall also be responsible for providing a set of post-construction photographs/video at each work location. Requirements for post-construction photographs are the same as the preconstruction photographs listed above. Photographs shall only be completed upon restoration work being completed at each location.

27.3. The documentation of existing condition will be used by the Contract Administrator to verify that all affected areas are restored to pre-construction condition or better upon completion of the Work.

Special Provisions

27.4. All media captured shall be provided in digital format following the site visits.

28. OVERHEAD LINES

28.1. When work requiring the use of crane boom or similar equipment is undertaken in close proximity to hydro power lines, regardless of line voltage, the Contractor shall give the appropriate authority advance notice prior to mobilization onsite.

28.2. Where interferences are possible, the Contractor shall be responsible for coordinating with the respective utility companies to relocate overhead utilities.

28.3. The need for cable insulation/protection shall be determined at the sole discretion of the authority.

28.4. The Contractor shall comply with the latest TSSA, ESA, and Cities of Mississauga, Brampton, Caledon and Peel Region Health & Safety Guidelines for working with or near overhead powerlines.

28.5. Charges for installation of protection measures shall be paid by the Contractor, considered incidental to the work, and included in the Bid Price. No separate payment shall be made for complying with these requirements or for failing to investigate each site location to account for these requirements prior to bid submission.

29. DIGGING NEAR HYDRO POLES, TRAFFIC POLES AND LIGHT POLES

29.1. The Vendor shall maintain a minimum 1.0m radius of horizontal excavation clearance around pole structures, including hydro poles, traffic poles, and light poles,

29.2. Maintain a minimum 0.6m of vertical clearance when crossing utilities by trenchless method.

29.3. Maintain a minimum 2.5m radius of excavation clearance around the pole anchors

29.4. If the required working clearance cannot be achieved, the Contractor shall be responsible for contacting the utilities agency for a temporary "Hold The Pole" request.

29.5. All costs associated with fulfilling these requirements shall be compensated according to the associated provisional line item.

30. UTILITIES AND SUPPORT OF EXISTING UTILITIES

30.1. The Vendor shall be held responsible for the protection of all services, whether aerial or underground, including telephone cables, hydro cables,

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

watermains, sanitary sewers, gas mains, etc., during the time of construction and will be held liable for any damage to same. Prior to commencing any excavation operations, the Vendor shall give 72 hours' notice to utility companies concerned and arrange for, at the Vendor's own expense, stake outs and any temporary relocations that may be required. The Vendor shall hand dig to accurately locate any underground utility if required, and this cost shall be included in the unit prices bid.

30.2. Once the Vendor has obtained all necessary locates, it is the Vendor's responsibility to verify the location, size, and depth of all underground services, including abandoned services, with the applicable utility owners prior to excavation and arrange for the appropriate protection as necessary. Should the Vendor elect to use vacuum excavation means for daylighting these utilities, the costs shall be borne solely by the Vendor.

30.3. It shall be noted however that not all utilities subscribe to utility location services (e.g., Ontario One Call) therefore it is the Vendor's responsibility to obtain all necessary locates and stakeouts from the individual utility owners or from private utility locating companies, or both to ensure that all utilities are identified and accounted for.

30.4. Existing services and utilities shall be supported with supports designed by the Vendor and stamped by a Professional Engineer licensed in Ontario and submitted to the Engineer for review prior to commencing excavation. Support designs shall also be approved by the appropriate operating authority or utility company.

30.5. All associated costs for fulfilling these requirements including but not limited to the locating, providing test pits, relocation, support systems, protection measures, for existing utilities and services, whether performed by the Contractor or the utility companies, shall be included in the bid prices for all affected construction items in the Schedule of Prices. No separate payment will be made.

31. GROUNDWATER CONTROL

31.1. Due to the nature of the existing soils and the groundwater levels in the soils, it is anticipated that the Contractor will encounter varying degrees of groundwater seepage into the construction area. To limit this, all work shall be carried out in dry weather conditions only.

31.2. Where dewatering is necessary to properly conduct excavation related Work, the Contractor shall provide appropriate dewatering procedures for the period of time required to successfully complete the Work in accordance with the Contract Documents.

31.3. All dewatering and control of water from dewatering operations shall be in accordance with OPSS 517 and OPSS 518, respectively.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

- 31.4. Prior to discharge, the Contractor shall be responsible for ensuring that water from dewatering operations meets the discharge criteria outlined in Municipal and Agency Sewer Use Bylaws and the MOECP's Provincial Water Quality Objectives for discharge to the surrounding environment.
- 31.5. Prior to carrying out any dewatering work, the Contractor shall submit a dewatering plan to the Contract Administrator for review. In addition to the contents required under OPSS 517, the plan shall also include general layout and characteristics of the proposed system, list of proposed equipment and materials and location of discharge points and proposed methods of groundwater control in accordance with municipal and provincial standards.
- 31.6. It is anticipated that neither an Environmental Activity and Sector Registration (EASR) or a Permit to Take Water (PTTW) per O.Reg. 387/04 (Water Taking and Transfer) will be required for the construction dewatering volumes expected at base scope sites. The contractor shall assume excavation can be dewatered by gravity drainage towards perimeter ditches surrounding the excavation and the removal of the collected water with sump pumps or vacuum trucks.
- 31.7. All costs associated with dewatering and control of groundwater in volumes managed through offsite disposal (including any necessary testing) shall be considered incidental for any work requiring excavation and shall be included in the affected lump sum bid prices; no separate payment shall be made.
32. **MH MODIFICATIONS FOR CIPP LINING**
- 32.1. Where required, the Vendor shall carry out any modification to existing MHs to facilitate insertion/inversion of CIPP liners for sewer rehabilitation. This includes removal and disposal of any existing MH components (frame/cover, adjusters, chimneys, risers, tapered tops, flat slabs, and appurtenances) in addition to the subsequent supply and installation of new MH components to match the existing structure, in accordance with Region of Peel Standards.
- 32.2. The work shall include traffic control, site preparation, removals, preservation and protection of existing facilities and utilities, flow control and bypass pumping, excavation, support systems, dewatering, protection systems, supply of all materials and equipment, backfilling and compacting, disposal of all waste and surplus or unsuitable excavated material, testing and site restoration, all as may be required plus any other work required for and incidental to the foregoing.

Special Provisions

- 32.3. Prior to proceeding with any MH modification work, the Vendor shall identify to the Engineer the number of MHs requiring modification to facilitate lining operation in the open-cut work plan. The work plan shall include:
- 32.3.1. Asset ID of the proposed MH requiring modification.
 - 32.3.2. Identified the proposed demolition depth and list of appurtenances to be removed.
 - 32.3.3. Shop drawings of all new MH components and appurtenances in accordance with the Region's Standards with accurate dimensions and details to relate the proposed work to surrounding and adjacent features and utilities as applicable.
 - 32.3.4. Method statement to document means, methods, techniques, sequences, and procedures to facilitate safe completion of the removal and replacement work in detail. The method statement shall include step-by-step processes for the removal of the existing structure, rebuilding to the existing grade, and restoration to preconstruction conditions or better.
 - 32.3.5. Where the existing MH is cast-in-place or masonry, the Vendor shall submit a design (signed and sealed by a Professional Engineer licensed to practice in the Province of Ontario) illustrating the detail of the new precast or cast-in-place components that tie into the existing MH structure.
 - 32.3.6. Material specifications and mix designs for all proposed products involved in the work.
- 32.4. All removals shall be in accordance with OPSS 510.
- 32.5. Rebuilding of the structure following temporary modifications shall be in accordance with OPSS 408.
- 32.6. MH components, fitting, and appurtenances shall be according to the applicable Peel Standard Drawings.
- 32.7. Any debris resulting from the work shall not be permitted to enter the sewer system. The Contractor shall employ a screen or other means acceptable to the Agency or Engineer to prevent any debris or material from entering the sewer. Such debris or material from the MH alteration work shall be removed and disposed of.
- 32.8. Final restoration shall be according to SP Restoration.

Special Provisions

**33. NEW MAINTENANCE HOLE INSTALLATION AND REBUILDING OF
EXISTING BURIED AND CAPPED MAINTENANCE HOLE CHAMBERS**

33.1. As identified in the repair list, the Vendor shall supply and install a new MH and rebuild an existing buried and capped MH to the ground surface for the purpose of facilitating lining of the mainline sewer.

33.2. The Vendor's work shall include all materials, labour, equipment, and services necessary for open-cut removal, disposal and replacement of the existing MH. This includes excavation, support systems, dewatering, sewer bypass, locate utilities, excavation, shoring, existing CIP chamber removal, disposal of all waste and surplus or unsuitable excavated material, new chamber installation, new connecting sewers, locating of buried chambers, raising to grade, bedding, backfill, compaction and testing, regrading, restoration to preconstruction conditions or better, and all other procedures required for and incidental to the foregoing.

33.3. The Vendor shall submit the following to the Engineer for review at least four (4) weeks prior to the commencement of replacement works:

- The Vendor shall verify dimensions, shape, materials, chainage, and other relevant measurements of the existing capped MH using pre-construction CCTV footage or any others means provided by the Vendor.
- Shop drawings of the new structure with associated appurtenance (ladder, platform, cover, frame adjusters, etc.) Where required by Peel Standard Drawing, shop drawing shall be signed and sealed by a Professional Engineer Licensed to practice in the Province of Ontario. The Chamber shop drawings shall include confirmation of dimensions as determined by the Vendor's site investigation to ensure the final grade of the MH matches the existing ground elevation upon completion of the re-building Works;
- For the raising and reconstruction of the existing MH, the Vendor shall submit a design (signed and sealed by a Professional Engineer licensed to practice in the Province of Ontario) illustrating the detail of the new precast or cast-in-place components that tie into the existing MH structure.
- Temporary shoring submittals in accordance with Special Provision shoring and Excavation.
- Method Statement describing the sequence of work.

Special Provisions

- Material specification for all proposed products including waterproofing of the new structures.
- 33.4. Removal and replacement Work shall only be carried out during dry weather conditions. The Vendor is responsible for reviewing the Environment Canada weather forecast prior to rehabilitation works and plan in-sewer works accordingly. No additional payment or delay claims will be considered for delays that occur as a result of complying with this requirement.
- 33.5. All removals shall be in accordance with OPSS 510.
- 33.6. Disposal of all materials shall be in accordance with the requirements of the Environmental Protection Act R.S.O 1990, Section 27, and subject to all terms and conditions related to Waste Management.
- 33.7. New precast concrete maintenance holes shall be supplied and installed in accordance with OPSS 407, OPSS 402 and the following Peel Standard Drawings:
- 2-5-1 General notes for precast MH;
 - 2-5-3 Typical 1200mm diameter precast circular maintenance hole details;
 - 2-5-13 Standard frame and cover system details;
 - 2-5-15 Typical flexible pipe wall connection details
 - 2-5-20 Maintenance hole benching detail
 - 2-5-25 Waterproofing details;
 - 2-6-1 Heavy duty 660mm circular frame and cover
 - 2-6-11 Step Details
 - 2-6-16 Typical frost strap details for precast MH.
- 33.8. Dewatering shall be carried out in accordance with Special Provision, *Groundwater Control*.
- 33.9. Vendor shall arrange a geotechnical engineer on-site to verify the bearing capacity of the existing soil prior to the installation of new MH.
- 33.10. Final restoration shall be according to Special Provision, *Restoration*.
34. **SEWER OPEN-CUT REPLACEMENT**
- 34.1. Open-cut removal and replacement shall be undertaken for the specified length of the existing sewer as indicated in the Schedule of Prices. Vendors shall note that there are several sewer segments that are specified for isolated External Point Repairs (EPRs) and full-length replacement complete with outfall treatment (inlet/outlet re-ditching) where specified. Where a sewer is scheduled for an EPR and CIPP lining, EPRs shall be carried out prior to lining in accordance with the requirements set out herein.

Special Provisions

- 34.2. The Contractor's work shall include all materials, labour, equipment, and services necessary for open-cut removal, disposal and replacement of the deformed, settled, or offset sections of pipe. This includes excavation, support systems, dewatering, bypass, excavation, shoring, deformed pipe section removal, disposal of all waste and surplus or unsuitable excavated material, new pipe installation, bedding, backfill, compaction and testing, outfall treatments where specified, regrading, restoration to preconstruction conditions or better, and all other procedures required for and incidental to the foregoing.
- 34.3. Prior to excavation works, the Vendor shall submit an Open-cut Sewer Replacement and Restoration Plan to the Engineer for review and approval; no open-cut works shall be undertaken without prior acceptance. The Plan shall include:
- 34.3.1. Shop drawings of the replacement pipe and associated fittings in accordance with the requirements set out herein including accurate dimensions and details to relate the proposed Work to surrounding and adjacent features and utilities as applicable.
 - 34.3.2. Method statement to document means, methods, techniques, sequences and procedures to facilitate safe completion of removal and replacement work in detail. The method statement shall include step-by-step processes for removal and replacement of the existing section of pipe, including restoration to preconstruction conditions or better.
 - 34.3.3. Sewer bypass arrangement (layout, suction/discharge piping and locations, pump size, capacity, power requirements, standby equipment, and spill control strategy)
 - 34.3.4. Material specifications for all proposed products involved in the work.
 - 34.3.5. Shop/Working drawings with details for shoring, bracing, and sloping for the proposed excavation and shoring methods bearing the Professional Engineers Ontario seal of the excavation support system designer.
- 34.4. The Vendor shall note that the EPR locations specified in the Contract Documents are approximate and are provided for information only. The accuracy and completeness of the information indicating approximate location of EPRs is not guaranteed nor shall the Engineer or the Agency be held liable for incorrectness or inadequacy thereof. The Vendor shall be ultimately responsible for determining the exact location of the specified EPR based on the Vendor's CCTV inspection and for carrying out any other investigations necessary. No separate payment shall be made as a result of the Vendor failing to satisfy themselves of the proposed EPR location prior to excavation.

Special Provisions

- 34.5. All removals shall be in accordance with OPSS 510.
- 34.6. Open cut storm sewer and culvert pipe installation shall be according to OPSS MUNI 410 and Peel Standard Drawing 5-2-18 using Granular 'A' bedding and surround (Class B) consisting of compacted to 100% SPMDD.
- 34.7. Open cut sanitary sewer installation shall be according to OPSS MUNI 410 and Peel Standard Drawing 2-3-1 using Granular 'A' bedding with 100% SPMDD compaction.
- 34.8. Replacement pipe for sewer EPRs and full-length pipe replacements shall be of equivalent diameter (to existing) Polyvinyl Chloride (PVC), SDR 35 pipe in accordance with OPSS 1841.
- 34.9. Replacement pipe for culverts (pipes discharging to outfalls) shall be of equivalent diameter (to existing) High Density Polyethylene (HDPE) with minimum pipe stiffness of 320kPa in accordance with CSA B182.8.
- 34.10. Both the inlet and outlet of the culvert shall be regarded in accordance with the repair list and the Contract Drawings. The ditch invert must align with the invert elevation of both the culvert inlet and outlet. The re-ditch area shall be stabilized using nonwoven geotextile fabric (Class II), 75-150um, and backfill 300mm thick layer of riprap (typically size 100-130mm diameter) as per the OPSD 810.010 Type B.
- 34.11. Replacement pipe shall be laid at a uniform gradient between the elevations of the pipe on either side with no offset at the adjoining ends and shall match the existing upstream and downstream grades of the original pipe.
- 34.12. For EPRs, Mechanical couplings shall consist of elastomer material with stainless steel hardware that is specifically designed to join mainline sewer pipes of various materials to provide a flexible, watertight seal. All products used for wastewater and storm sewer applications shall be in accordance with the latest edition of the Region of Peel Approved Product List (Appendices 5.30 and 5.31). Mechanical coupling installations shall be according to the manufacturer's recommendations.
- 34.13. Connections between the replacement pipe and existing MH or catch basins shall be set flush to the interior surface of the chamber using non-shrink grout, made watertight, and be supported in accordance with OPSD 708.020.
- 34.14. Tie-ins for sewer service, branch connections, or catch-basin leads at mainline sewer shall be completed using factory made tees or water-tight saddles identified in the latest Region of Peel Approved Product List (Appendices 5.30 and 5.31). The connection shall be supported using min. 15MPa concrete encasement to the first pipe joint of the replacement pipe.
- 34.15. The Contractor shall, where required, saw cut existing asphalt, excavate and remove native fill taking care not to affect the integrity of the existing

Special Provisions

structure. Excavated materials are to be disposed at an approved disposal site. All backfill in the traveled portion of the roadway shall be at minimum Granular B Type II and compacted to one hundred (100) percent of Standard Proctor Density (SPMDD). Full depth permanent restoration shall be performed in accordance with the requirements specified in SP Restoration.

- 34.16. EPRs shall only be carried out upon completion of preliminary sewer CCTV inspections (V1) in order to confirm there is no change in existing conditions with respect to the length of pipe requiring pre-lining EPR. The Vendor shall be responsible for all costs associated with EPRs of greater length than that specified in the Schedule of Prices should the existing sewer be damaged during open-cut excavation work.

35. SITE SECURITY AND WORKZONE MANAGEMENT

- 35.1. Work shall be planned, scheduled and executed in the minimum number of shifts possible to avoid unnecessary multi-day or overnight impacts. Where this cannot be avoided due to the required Scope of Work, the Vendor shall notify the Agency or the Engineer specifically and provide a specific work plan on how the overnight/multi-day schedule for the Work will be managed. Workplan to be provided specifically for each sewer section MH to MH where this occurs.
- 35.2. Under no circumstances can any excavation, trench or the like be left open overnight. Use of countersunk road plates shall be at the sole discretion of the road authority responsible for the Work area in question. Where excavations, trenches or the like are located off the travelled portion of the road the open excavation shall be fenced off using six (6) foot modular chain link fencing secured in place to prevent unwanted entry or displacement of the site fencing once installed.
- 35.3. Where trenches are adjacent to a travelled roadway or driveway (+/- 5m from the travelled portion of any right of way), the Vendor is responsible for protecting the trench area with concrete Jersey barriers along with approved end treatments acceptable to the Agency or the Engineer.
- 35.4. In all cases the Vendor is solely responsible for security of the various Work locations required under this Contract.
- 35.5. No materials shall be left on site overnight.
- 35.6. Excess material shall be removed and disposed of offsite, and no material stockpiles shall remain on site without the written agreement of the Agency or the Engineer.
- 35.7. Equipment left onsite shall be locked and secured at all times and shall be stored in a manner to not disrupt any normal use of the area during the execution of the Work.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

- 35.8. All costs associated with fulfilling these requirements shall be considered incidental and shall be included in the bid prices for all affected construction items requiring excavation in the Schedule of Prices; no separate payment shall be made.
36. **WINTER AND NON-WINTER WORK**
- 36.1. The Vendor shall ensure that the project site and works are properly maintained and protected throughout the duration of work. This includes winter maintenance of the roads, pathways, and access routes required to access the individual work locations.
- 36.2. Where Work is performed in cold weather, the Vendor shall provide suitable means for heating and protection of all repair/rehabilitation materials and bypass systems. The Vendor shall take all measures that are necessary for the performance and protection of such Work.
- 36.3. At a minimum, the Contractor shall ensure the temperature of all materials used, MH atmosphere and substrate are within the limits specified by the material manufacturer prior to application. The Contractor is responsible for providing means of achieving and maintaining the desired ambient air, substrate, and material temperatures throughout the entire installation and curing process such that rate of set and strength development is not compromised.
- 36.4. Where temperatures outside of the recommended ranges are encountered, the Contractor shall take additional protection measures as recommended by the manufacturer for hot and cold weather applications, respectively, in order to maintain the temperature of materials and substrates within the allowable range.
- 36.5. All costs associated with complying with the above requirements shall be considered incidental and included in the Schedule of Prices; no separate payment shall be made.
37. **WORKING WITHIN A SCHOOL AREA**
- 37.1. When work is conducted near a school area, the Contractor shall assign attendants to continuously monitor the movement of mobile equipment, ensuring the safety of children passing near the construction area.
- 37.2. The Contractor is responsible for scheduling lining work to prevent styrene odors from impacting school operations. All work in the vicinity of a school must be carried out only on weekends or during school break periods.
- 37.3. No separate measurement or payment will be made for any additional expense incurred by the Contractor in complying with these requirements and executing the specified work.

Special Provisions

38. SNOW REMOVAL

38.1. The Contractor is advised that the completion period of this Contract may extend into cold weather period depending on the project commencement date.

38.2. The Contractor shall be responsible for planning and coordinating work activities to mitigate potential impacts from cold weather conditions, ensuring that the project schedule is not delayed.

38.3. Any snow removal necessary to maintain access to work site or facilitate the execution of the work shall be considered incidental and included in the Schedule of Prices; No separate payment or additional compensation will be provided for snow removal activities.

39. DISPOSAL OF EXCESS MATERIALS

39.1. The following are in addition to the requirements set out in Supplementary General Conditions, SG. 47, Disposal of Surplus or Unsuitable Excavated Materials.

39.2. All excess materials not required for re-use on the project shall be disposed off-site. Prior to removing excess material, the Vendor shall provide OPSS 180 release forms. No form other than those included in OPSS 180 shall be acceptable unless authorized by the Agency or the Engineer. Costs to import material for backfilling and restoration shall be considered inclusive of the unit rate or lump sum provided for the work and additional payment for importing material to replace removed material will not be considered.

39.3. Only Class 1 Soil Management Facilities or landfill sites shall be considered accepted disposal locations. Prior to the commencement of excavation activities, the Vendor shall submit MOECP-issued Environmental Compliance Approval (ECA) license of the proposed site to the Agency and Engineer for their records.

- Class 1 Soil Management Facilities: These facilities are permitted to temporarily receive, manage, and process excess soil before it is transported to a reuse site or final disposal location. The Vendor shall also ensure that all materials intended for disposal at Class 1 facilities comply with the specific requirement outlined in the disposal site's ECA.
- Landfill Sites: Landfill sites are designated for the disposal of excess soil that cannot be reused and exceeds table 3/3.1 of the regulation standard.

Special Provisions

- 39.4. The Vendor shall provide for and pay for any chemical testing or other soils analyses if required by the Vendor's proposed disposal site. The Vendor shall also be responsible for the preparation, handling, dewatering, separation, treatment, transportation, and disposal costs; no separate payment shall be made.
- 39.5. All excavated shale and limestone, siltstone, and sandstone shall be removed from the site as excess material and shall not be used as backfill.
- 39.6. The Vendor shall ensure that the preparation, handling, transportation, and disposal of excavated material complies with all relevant Federal, Provincial, and Municipal Laws, Acts, Regulations, and Bylaws that may apply to the work.
- 39.7. The Vendor shall be responsible for ensuring the operator of any vehicle used for transporting excess soil from a source site to where the soil will be disposed maintains hauling records with the following information available at all times during transport (refer to Appendix 5.29 for a sample of hauling record):
- Location, date, and time at which the excess soil was loaded for transport.
 - Quality and quantity of excess soil in the load.
 - Contact information for individual responding to inquiries regarding the load.
 - Name of the company transporting the excess soil, name of driver, and number plates issued for the vehicle under the Highway Traffic Act.
 - Location at which excess soil is to be deposited.
 - Date, time, and name of owner, operator or representative who inspected the load to ensure it is appropriate for depositing at the site.
 - Date and time the load was deposited at disposal site.
 - Contact information of individual at disposal site who acknowledges that the excess soil was deposited.
 - Declaration of the individual who acknowledged soil was deposited.
 - A copy of the completed hauling record to be provided to the individual who acknowledged the soil was deposited.
- 39.8. The Vendor shall indemnify the Agency and the Engineer from and against all claims, losses, expenses, costs, damages, actions, suits, or proceedings by third parties directly or indirectly arising or alleged to arise out of the disposal activities.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

39.9. All costs associated with fulfilling these requirements shall be considered incidental and shall be included in the bid prices for all affected construction items requiring offsite disposal of excess soil in the Schedule of Prices; no separate payment shall be made.

40. VENDOR'S FLEET TRACKING GLOBAL POSITIONING SYSTEM (GPS)

The Vendor shall be equipped with, and maintain in good working order, a Fleet Tracking GPS for all crews working on the project for the duration of the Contract. The system shall be capable of providing real-time location information of crews, visible on a web-based online portal with shareable login information to facilitate site inspection services. At the pre-construction meeting, the Vendor shall provide login information to the Contract Administrator for tracking system's online portal and provide written authorization for the Owner and Contract Administrator to access crew location information for the duration of the Contract. No work shall be carried out without a fully functioning fleet tracking GPS system provided by the Vendor. All costs associated with these requirements shall be considered incidental and included in the Schedule of Prices; no separate payment shall be made.

41. VENDOR AS CONSTRUCTOR

The Vendor shall note that GC 7.0 of the Contract and Supplemental General Condition SG.18 are in full effect and are supplemented as follows:

41.1. The Contractor's obligations include but are not limited to making necessary response and change to operations required by any level of government pursuant to applicable law, regulation or special emergency order in the event of any health, environmental, social, emergency or other risk, including but not limited to response to municipal, provincial or federal orders related to pandemics. If the Agency assesses that the Contractor has not made sufficient response and change to operations to be in compliance with applicable law related to same, the Agency may, as a contractual obligation under this Document or Contract, require additional Work modifications or arrangements as part of the appropriate response by the Contractor to public health, occupational health and safety or construction safety or to the above-noted risks or other emergency circumstances, which the Contractor shall accommodate at no extra cost to the Agency in order to protect its workers, the public or the Agency's staff unless the Contractor can provide proof acceptable to the Agency of additional costs. In addition, the Agency may choose to set up a contingency allowance to draw from during the applicability of government orders or regulation related to public health, occupational health and safety or construction safety measures to deal with health, environmental, social, emergency or other extraordinary risks, meant to address future government orders or regulations which are not in place as of the date of

Special Provisions

closing of this Document but which arise in the course of the Work. For any change order related to the above circumstances, the Contractor shall submit details of extra costs and agrees to charge actual costs on a zero-mark-up basis.

42. **PANDEMICS OR OTHER EMERGENCY RESPONSE REQUIREMENTS**

In addition to the Contractor's obligations to follow all applicable laws, including but not limited to that applicable to public health, occupational health and safety and to construction safety, the parties acknowledge that there may arise circumstances, such as the COVID-19 pandemic, where they intend to cooperate in good faith with each other to resolve concerns which may arise related to health, environmental, social or other emergency circumstances, so as to continue the Work and to avoid any increases in Contract price or delay in progress of the Work wherever possible. There may also be circumstances which arise after Contract award and relate to any contingency allowance which the Region of Peel may have put in place or which a party believes are beyond or in addition to such contingency allowance terms and which the parties wish to discuss.

42.1. In such circumstances,

42.1.1. the parties may wish to discuss the following non-exhaustive list of topics:

- .1 stop Work;
- .2 suspend Work;
- .3 change Work;
- .4 change Substantial Performance Date or Contract Completion;
- .5 change critical path of Construction Schedule;
- .6 change subcontractors or suppliers per GC 3.09, and the parties agree
- .7 to use GC 3.13.04.01 to conduct amicable discussions or negotiations;
- .8 the Contractor may apply for an extension of Contract Time in accordance with the terms of GC 3.06, Extension of Contract Time; and
- .9 that in such circumstances, stoppage or delay as per GC 7.11.02 prior to termination by the Contractor shall be extended to 120 days or longer.

42.2. This section is to be distinguished from GC 3.07 and GC 3.10 as it is acknowledged that the circumstances for discussion in this regard relate to situations where health, environmental, social or emergency needs or government regulation related to same may dictate the Contractor's response to, within the terms of the Contract, request changes which will not result in a change to Contract price if they are discussed early and promptly or where a change to Contract price may be agreed between the

Special Provisions

parties on a zero mark-up basis, and where it is the preference of both parties that the Work continue, even though subject to differing or extra health or safety obligations.

42.3. In such discussions or negotiations, the following is applicable:

42.3.1. changes in the Work would preferably be made by agreement;

42.3.2. if changes are requested by the Contractor, there shall be no extra cost to the Owner or costs on a zero-mark-up basis as may be agreed upon with the Owner; and

42.3.3. if changes are requested by the Owner, there shall be no extra cost to the Owner unless the Contractor provides records as may be necessary to support a claim on a zero-mark-up basis to which the Owner could agree.

43. MUD AND DUST CONTROL

43.1. The Vendor shall be responsible for a prompt and complete cleanup of all dirt and mud deposited on the public and/or private property as a consequence of its operation on this Contract.

43.2. In the event the Contractor fails in this obligation, the Engineer may proceed with the necessary clean up and charge all the costs for the work to the Contractor.

43.3. The Contractor shall employ only wet type equipment for saw cutting or concrete grinding to control dust nuisance.

43.4. Throughout the duration of the work, the Vendor shall keep the site in an organized and well-kept condition and shall conduct the work in a neat and orderly fashion. The Vendor shall not deposit or store any material on any portion of a street, sidewalk, trail, or other public or private property outside the dedicated work zones.

43.5. All costs associated with the above shall be considered incidental and included in the Bid Price; no separate payment shall be made for complying with these requirements.

44. NOISE CONTROL

44.1. The Vendor shall observe local by-laws regarding noise. All Work, machinery and equipment used shall conform to Municipal Bylaws. For any work causing construction noise beyond the hours designated by the Road Authority, a noise exemption will be required. Requests for overnight work will be subject to the approval of the Engineer.

Special Provisions

- 44.2. The Vendor shall be responsible for scheduling the work to include additional crews, overtime/extended hours, weekend and overnight work as required to complete all Work by the stipulated completion dates in a manner that satisfies all conditions of this Contract. All costs associated with additional crews, overtime/extended hours, weekend, holiday and overnight work shall be included in the bid price; no separate payment shall be made.
- 44.3. The Vendor is permitted to submit requests to carry out work on statutory holidays in advance if required to complete the Work. Work on statutory holidays will be subject to the approval of the Engineer.
- 44.4. Where generators or other equipment is required to operate outside normal working hours, the Vendor shall provide, and erect noise dampening enclosures as directed by the Agency or the Engineer and at the Vendor's cost. Should equipment exceed applicable Municipal Noise Bylaw levels, equipment operations shall cease until the Vendor can demonstrate that the mitigation measure(s) to dampen the noise levels are effective.
- 44.5. All costs associated with the above shall be considered incidental and included in the Bid Price; no separate payment shall be made for complying with these requirements.

45. RESTORATION

- 45.1. A primary objective during execution of the Works will be to minimize inconvenience to the abutting businesses, residents and the travelling public. Accordingly, all restoration shall occur immediately unless otherwise authorized by the Agency or the Engineer. Restoration means complete permanent restoration of asphalt, concrete, or vegetation along roadways, driveways, sidewalks, ditches, and boulevards as well as any other areas damaged during construction.
- 45.2. In general, any construction related damage shall be restored to pre-construction conditions or better. This includes but is not limited to the restoration of all existing roads, driveways, pathways, sidewalks, shoulders, curbs, bus pads, grassy areas, hardscape, and any other natural or artificial landscape and surface features in and around construction work zones in accordance with the latest version of Regional Municipality of Peel Standard Specifications for Restoration (Vol 2.4).
- 45.3. The Vendor shall submit the following to the Engineer for review and approval prior to the commencement of any restoration work:
- a) Restoration Plan outlining all proposed methods and procedures that illustrate how restoration will be carried out in accordance with the requirements specified herein;

Special Provisions

- b) Materials specifications and mix designs for all proposed road, concrete, and landscape products, elements or components necessary for restoration work in accordance with the requirements specified herein; and
- c) Qualifications of the restoration Vendor or any other information that may reasonably be required by the Engineer to ensure the party carrying out restoration work is fully qualified.

45.4. Asphalt, concrete, topsoil and seed/sod restoration shall be completed immediately following completion of repair, rehabilitation and replacement work and prior to the Vendor moving to any subsequent location(s). All asphalt restoration must be completed between May 15 to November 15. The Vendor shall schedule the Work according to these restrictions.

45.5. Temporary asphalt or landscape materials shall be utilized during periods when permanent asphalt and or sod/seed are not available. Prior to completing any temporary restoration, the Vendor shall review the restoration specifics with the Agency or the Engineer and the relevant Road Authority prior to completion of any temporary asphalt. Permanent pavement repairs using hot-mix asphalt shall be made within 14 days. All roads having heavy traffic volumes must be repaired immediately with hot-mix asphalt. Between November 15th and May 15th, all cuts must be filled immediately with hot-mix. Under no circumstances shall a cut be left with a granular surface.

45.6. Permanent restoration of asphalt surfaces in the paved portion of the Regional Right of Way (ROW) shall be in accordance with Peel Standard Drawing 5-2-2A and 5-2-2B or relevant municipal standard as applicable based on existing site conditions, but shall, at a minimum, satisfy the following asphalt profile: 450mm Granular "B" Type 2, 150mm Granular "A", compacted to 100% SPMDD and up to 150mm HL8 HS and 50mm HL3HS.

45.7. Asphalt material specifications, quality assurance, and installation requirements shall be in accordance with OPSS 1150 and OPSS 310. Base and sub-base materials shall be compacted to 100% Proctor Maximum Dry Density (SPMDD).

45.8. No individual layer of the required restoration shall proceed until the Owner, or the Engineer has confirmed that the required compaction of the layer being completed has been confirmed unless this requirement is waived by the Owner or the Engineer. Granular base and asphalt thickness shall match existing conditions unless otherwise directed by the Owner or Engineer.

45.9. The Vendor is responsible for all testing costs to classify existing material for disposal associated with the requirements of their disposal facility. Vendors shall note that no asphalt testing was completed by the Agency or the Engineer prior to tendering the project.

Special Provisions

- 45.10. Following completion of all asphalt restoration the joints of the new asphalt and existing asphalt shall be routed and sealed in accordance with OPSS 341.
- 45.11. Restoration of curb and gutters style shall match existing according to OPSD 600.110, 600.030, and 600.040 as applicable. All curb and gutter work shall be carried out in accordance with OPSS 353. All impacted pavement markings shall be restored to match existing in accordance with OPSS 710.
- 45.12. Permanent restoration of damaged concrete sidewalks shall be in accordance with OPSS 351 and per OPSD 310.010, OPSD 310.020, and Peel Standard Drawing 5-2-6, or relevant municipal standard, as applicable based on existing site conditions.
- 45.13. All concrete restoration work shall be supplied, mixed, placed, consolidated, finished, and cured in strict accordance with CAN/CSA-A23.1.
- 45.14. For restoration of non-paved surfaces in the City's boulevard, all disturbed areas shall be reinstated with 100mm topsoil and nursery sod as per the contract drawing Detail 3 – Trench Restoration on off-road Cross Section.
- 45.15. As a minimum the Vendor shall assume watering is required for period of four (4) weeks at the frequency selected by the Vendor to ensure the performance of the installed sodding and seeding. Tackifier shall be included in the Vendors price and shall be used during any hydroseeding unless otherwise directed by the Agency or the Engineer. Planting or seeding shall only occur during periods when weather conditions are suitable. Any planting done outside of suitable environmental or seasonal times shall be repeated by the Vendor during an acceptable timeframe at no extra cost to the Agency.
- 45.16. Following culvert replacements, all disturbed ditches shall be carefully cleaned out and restored to a condition equal to or better than existing prior to construction. Slopes shall be made to match the existing grade. The manner of remaking the ditch shall be approved by the Project Manager or designate and a Gradall or similar machine should be used.
- 45.17. Seeding for restoration of sloped ditches and embankments shall consist of a Salt Tolerance Mix in accordance with OPSS MUNI 804.
- 45.18. For all seeded ditches, the inverts and slopes 300mm from the bottom shall be sodded.
- 45.19. For areas located within the Conservation Authorities (e.g. CVC & TRCA) that require surface restoration shall be in accordance with the specific seed mix design table provided in the contract drawing.

Special Provisions

46. **CONTRACT ITEMS**

Payment for each item shall be made at the unit price indicated in the Schedule of Prices on the Online Bidding System forms for the supply of all necessary materials, equipment, tools, labour and supervision to complete the item as specified and shown on the drawings. Where tender items are referenced by a payment specification (PW - Peel Water; PS - Peel Sewer; PR - Peel Restoration), the tendered unit price shall be compensation in full for all works outlined in the payment specification. The payment specifications are included in **Volume 2, Standard Contract Documents for Road, Watermain, and Sanitary Sewer Projects**.

Where tender items are referenced by a Special Provision (SP), the tendered unit price shall be compensation in full for all works as outlined below:

Part A – GENERAL ITEMS

46.1. **Item A-1 – Insurance and Bonding**

The Contractor shall take careful note that section GC 6.03 and GC 6.04 of the General Conditions, The Regional Municipality of Peel Supplemental General Conditions, Vol. 2.1, revision date: January 01, 2022, and applicable Instructions to Bidders clauses are in full force and effect except as amended herein:

The Contractor's liability insurance shall name the Agency, the Engineer (M.E Andrews and Associates Ltd. o/a Andrews.engineer), the City of Brampton, the City of Mississauga, and the Town of Caledon with no additional cost associated, as additionally insured with the Contractor.

Payment will be made according to the Lump Sum price bid and shall include the combined cost of the performance bond, labour and material bond and Insurance, and shall be included for payment on the Contractor's first monthly progress payment request. This lump sum should not exceed 2% of the total contract value.

46.2. **Item A-2 - Project Signboards**

Cost for this item shall include the pickup installation, relocation, maintenance, removal and return of project signboards as directed by the Agency/Engineer and in accordance with the requirements of the Contract Documents. The Agency will supply the signboards at no cost to the Vendor.

Payment shall be made at the Lump Sum price bid according to the following schedule:

Special Provisions

- 70% for pickup and installation; and
- the balance upon removal and return to the Agency.

46.3. Item A-3 - Traffic Control (All Locations and Phases of Work)

Cost for this item shall include all labour, materials, equipment, and services required to carry out Traffic Control in accordance with the responsibilities, obligations, and requirements set out in the Contract Documents including all other work required for and incidental to the foregoing. To clarify, this item also includes costs of flaggers and PDOs (personnel and cruiser) where required by Book 7 or the standard terms and conditions of municipal road occupancy permits (minimum requirements). Payment for costs related to requirements for additional flaggers or PDOs over and above minimum requirements, as directed by the Agency/Engineer or Municipal Road Authority shall be according to the respective contingency item in the Schedule of Prices.

Payment shall be made at the Lump Sum price bid according to the following schedule:

- 10% for submission and approval of Road Occupancy Permit Applications; and
- the balance being prorated over the duration of the Contract for installation, operation, and maintenance of traffic control activities.

46.4. Item A-4 - Pre-Construction and Post-Construction Site Photographs

Cost for this item shall include all labour, materials, equipment, and services associated with providing both pre-construction and post-construction photographs of all physical locations impacted by open-cut work in accordance with the Contract Documents.

Payment shall be made at the Lump Sum price bid according to the following schedule:

- 50% for submission and approval of pre-construction condition photos for all sites where open-cut work is specified; and
- 50% for submission and approval of post-construction condition photos for all sites where open-cut work is specified.

Part B – SANITARY SEWER REHABILITATION

46.5. Item B-1 - Preliminary CCTV Inspection for Sanitary Sewers (V1)

Cost for this item shall include all labour, materials, equipment, and services associated with undertaking a preliminary CCTV inspection in

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

accordance with the Contract Documents for all sewers scheduled for rehabilitation. This item includes the cost of reversal surveys (where downstream inspections are abandoned), preliminary cleaning, and flow control/bypass necessary to achieve a full-length inspection that is sufficiently clear enough to serve the purpose of recording initial conditions and determining if significant changed conditions exist in comparison with the CCTV inspection provided to the Vendor during the bidding stage.

Measurement for payment for the specified mainline sewer nominal diameter in the Schedule of Prices shall be per meter length of pipe inspected, as determined from the chainage indication on the CCTV video. In the event that a CCTV inspection is terminated due to a blockage or collapsed pipe, or the pipe is inaccessible, measurement shall be in meters for the actual length of pipeline inspected.

Payment shall be made at the unit price bid for the inspected length of pipe and due upon review and approval of submitted V1 inspection. Repeated CCTV inspections required to satisfy contract requirements shall be performed at the Contractor's own expense.

46.6. **Item B-2 - Sewer Cleaning/Preparation, and Post Cleaning/Preparation CCTV For Sanitary Sewers (V2)**

Cost for this item shall include all labour, materials, equipment, and services associated with undertaking sewer cleaning, preparation and post-cleaning and preparation CCTV (V2) in accordance with the Contract Documents. This includes flow control/bypass, reaming, cutting, grinding, flushing, void filling, intruding connection trimming and infiltration sealing required to prepare the sewer for rehabilitation. No additional payment shall be made for encrustation removal regardless of hardness encountered.

Measurement for payment for the specified mainline sewer nominal diameter in the Schedule of Prices shall be per meter length of pipe cleaned, prepared and inspected, as determined from the chainage indication on the CCTV video.

Payment shall be made at the unit price bid for the length of cleaned/prepared pipe and due upon review and approval of sewer cleaning, preparation and V2 inspection. Repeated cleaning, preparation and CCTV inspections required to satisfy contract requirements shall be performed at the Contractor's own expense.

Special Provisions

46.7. **Item B-3 - Structural Rehabilitation of Existing Sanitary Sewers, of Various Diameters Using CIPP Method at Various Locations in the Region of Peel**

Cost for this item shall include all labour, materials, equipment, and services required to carry out Sewer Rehabilitation in accordance with the responsibilities, obligations, and requirements set out in the Contract Documents, including all other work required for and incidental to the foregoing. No separate payment shall be made for any lining related items such as flow control/bypass, liner testing, site investigations, public notifications, connection reinstatement, expose identified buried MH covers or other work items according to Agency's standard specifications (see Appendix 5.9 or 5.10) and supplemental CIPP lining specifications (see Appendix 5.16). Special equipment and liner material considerations related to site specific requirements such as cranes, platforms, pre-liners shall be included in the cost of work.

Measurement for payment for the specified mainline sewer nominal diameter shall be per meter length of installed CIPP, as determined from the chainage indication on the CCTV V3 video.

Payment shall be made at the unit price bid for the length of rehabilitated pipe according to schedule below and due upon review and approval of the V3 inspection. Repeated inspections and deficiency rectification work required to satisfy contract requirements shall be performed at the Contractor's own expense.

- 80% upon liner supply, installation and approval of V3 inspection
- balance upon approval of liner test results and submission of QA/QC reporting (cure logs and wet out sheets)

46.8. **Item B-4 - Post-Rehabilitation CCTV for Sanitary Sewers (V3)**

Cost for this item shall include all labour, materials, equipment, and services associated with undertaking a post-rehabilitation CCTV inspection in accordance with the Contract Documents for all sewers scheduled for rehabilitation. This item includes the cost of flow control/bypass to ensure a clear view of the installed liner during V3.

Measurement for payment for the specified mainline sewer nominal diameter in the Schedule of Prices shall be per meter length of pipe inspected, as determined from the chainage indication on the CCTV video.

Payment shall be made at the unit price bid for the inspected length of pipe and due upon review and approval of the installed liner. Repeated

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

inspections and deficiency rectification work required to satisfy contract requirements shall be performed at the Contractor's own expense.

46.9. Item B-5 - Special Site Considerations – CIPP lining of 250mm Sewers in Private Property on Birch Cres, including Site Restoration

This item pertains to the rehabilitation of sewers located on private property and is contingent upon Permission to Enter (PTE) being granted by the Region of Peel. The following sewer segments are included under this item:

- 1785804 to 1785803
- 1785801 to 1785795
- 1785803 to 1785802

All costs associated with this item shall include labour, equipment, materials, and services necessary to complete the sewer rehabilitation within the private area, in accordance with the measurement and payment provisions under Items B-1 to B-4, and shall also be price inclusive of the additional consideration as identified in the Property Impact Plan (Appendix 5.25), including but not limited to:

- Coordination of multiple property owners and identifying restricted timing for construction.
- Styrene odor control planning and temporary site security after property fence removal.
- Site preparation and staging.
- Temporary relocation and reinstatement of the existing shed on 2625 Birch Cres, if required by the Vendor.
- Health and safety overhead hydro line protection, if required.

Measurement for payment and compensation for all direct and indirect costs required for and incidental to sewer rehabilitation, temporary road access, removals, site restoration, including landscaping re-planting of shrubs with similar species, and installation of disturbed property fences will be compensated at the associated unit price and lump sum items identified in the Schedule of Prices.

46.9.1. Item B-5, e) Site Preparation and Restoration, i) Supply Install, Maintain and Remove Construction Access Road and/or Mats for access and Staging Area

This item includes the supply, installation, maintenance, and removal of temporary construction granular roads and/or access timber mat required to provide safe access and staging areas for heavy vehicles, equipment,

Special Provisions

and machinery to be mobilized and demobilized on-site where soft ground conditions are encountered.

The installation detail of the temporary granular road or timber mat shall be in accordance with the Property Impact Plan.

All cost associated with maintenance of the temporary access road, including replacement of damaged mat sections, addition of granular materials, and regarding shall be included.

Payment shall be made at the Lump Sum price bid according to the following schedule:

- 10% for submission and approval of Work plans and/or shop drawing of timber mat;
- 70% for installation
- 20% for the removal.

46.9.2. **ii) Uncover and Raise Buried MH1785803 to Grade (<1m Deep)**

This item includes locating, excavation, raising, and installation of a new frame and cover for existing buried manholes with a cover depth of less than 1.0m below grade, where required to facilitate access for lining operations.

The work shall be completed in accordance with the following Region of Peel Standard Drawing as applicable:

- Standard Frame and Cover with penetrating lift holes option per STD DWG. 2-6-5
- Standard Frame and Cover system and Precast Grade Adjustment unit with Partial Excavation completed with External Waterproofing Protection per STD DWG 2-8-6
- Typical 1200mm Diameter Precast Circular Maintenance Hole Details per STD DWG. 2-5-3

Raise the manhole chimney with no more than three (3) adjustment units to match the existing grade. An appropriate height of concrete collar or pre-cast raise shall be utilized if the number of adjustment units exceeds more than 3 adjusters. Install frame and cover completed with External Waterproofing Protection Barriers as per the Region's standard.

Measurement of payment shall be paid for each of the buried manholes raised on grade

Special Provisions

Payment at the applicable Unit Price bid shall constitute full compensation for all labour, equipment, materials, and costs required to complete the work, including excavation, raising, reinstatement, and restoration.

46.9.3. **iii) Remove and Replace Property Line Fence to Match Existing (All Types)**

This item includes all labour, equipment, materials, and services required for the removal, site security, and reinstatement of existing property line fences to facilitate the rehabilitation of sanitary sewers within private property limits.

Where an existing fence is damaged beyond repair during removal, or is deemed unsuitable for reinstatement, the Contractor shall supply and install a new fence of similar type, material, height, and appearance to match the existing fence, to the satisfaction of the property owner and the Contract Administrator.

All work shall be completed in a manner that minimizes disturbance to adjacent properties.

Measurement for payment shall be made on a per linear metre (m) basis for fence removal, reinstatement, or new fence installation, measured along the fence line.

Payment shall be made at the applicable Unit Price bid and shall constitute full compensation for all labour, equipment, materials, and costs required to complete the work.

46.9.4. **iv) Restore Landscaping Area with Topsoil and Sodding**

This item includes all labour, equipment, materials, and services required for the supply, placement, grading, seeding, sodding, and maintenance of topsoil for the reinstatement of landscaping areas inside the private property disturbed as a result of construction activities.

The work shall be carried out in accordance with Special Provision SP-42 Restoration and shall include all incidentals necessary to achieve a complete and acceptable restoration.

Measurement for payment shall be made on a per square metre (m²) basis for the area of topsoil placement and seeding and/or sodding restored on site, as measured in the field.

Special Provisions

Payment shall be made at the applicable Unit Price bid and shall constitute full compensation for all labour, equipment, materials, and costs required to complete the work.

46.9.5. **v) Tree Pruning By Certified Arborists**

This item includes the pruning of existing trees carried out by the Contractor and must be under the supervision of a Certified Arborist, as required to facilitate the Works.

The work shall include all labour, equipment, materials, and incidentals necessary to complete the pruning, including proper disposal of all pruned material, site inspection and reporting by the Arborist.

Measurement for payment shall be made on a per-tree basis for each tree pruned on site.

Payment shall be made at the applicable Unit Price bid and shall constitute full compensation for all labour, equipment, materials, and costs required to perform the work.

46.9.6. **vi) Removal and Reinstatement of Shrubs along the Property Line as Specified**

This item includes the removal and reinstatement of existing shrubs along the property line, as required to facilitate access for sewer rehabilitation works identified in the Property Impact Plan.

The work shall include all labour, equipment, materials, and incidentals necessary to complete the removal and reinstatement, including excavation, disposal of removed vegetation, supply of replacement shrubs, planting, soil preparation, watering, and restoration of disturbed areas.

Replacement shrubs shall be of the same species and size as the existing shrubs removed, unless otherwise directed by the Contract Administrator.

Measurement for payment shall be made on a per linear metre basis of shrub removal and reinstatement, as measured in the field.

Payment shall be made at the applicable Unit Price bid and shall constitute full compensation for all labour, equipment, materials, and costs required to complete the work.

Special Provisions

Part C – STORM SEWER REHABILITATION

46.10. Item C-1 - Preliminary CCTV Inspection For Storm Sewers (V1)

Cost for this item shall include all labour, materials, equipment, and services associated with undertaking a preliminary CCTV inspection in accordance with the Contract Documents for all sewers scheduled for rehabilitation. This item includes the cost of reversal surveys (where downstream inspections are abandoned), preliminary cleaning, and flow control/bypass necessary to achieve a full-length inspection that is sufficiently clear enough to serve the purpose of recording initial conditions and determining if significant changed conditions exist in comparison with the CCTV inspection provided to the Vendor during the bidding stage.

Measurement for payment for the specified mainline sewer nominal diameter in the Schedule of Prices shall be per meter length of pipe inspected, as determined from the chainage indication on the CCTV video. In the event that a CCTV inspection is terminated due to a blockage or collapsed pipe, or the pipe is inaccessible, measurement shall be in meters for the actual length of pipeline inspected.

Payment shall be made at the unit price bid for the inspected length of pipe and due upon review and approval of submitted V1 inspection. Repeated CCTV inspections required to satisfy contract requirements shall be performed at the Contractor's own expense.

46.11. Item C-2 – Storm Sewer Cleaning/Preparation, and Post Cleaning/Preparation CCTV for Storm Sewers (V2)

Cost for this item shall include all labour, materials, equipment, and services associated with undertaking sewer cleaning, preparation and post-cleaning and preparation CCTV (V2) in accordance with the Contract Documents. This includes flow control/bypass, reaming, cutting, grinding, flushing, void filling, intruding connection trimming and infiltration sealing required to prepare the sewer for rehabilitation. No additional payment shall be made for encrustation removal regardless of hardness encountered.

Measurement for payment for the specified mainline sewer nominal diameter in the Schedule of Prices Form shall be per meter length of pipe cleaned, prepared and inspected, as determined from the chainage indication on the CCTV video.

Payment shall be made at the unit price bid for the length of cleaned/prepared pipe and due upon review and approval of sewer

Special Provisions

cleaning, preparation and V2 inspection. Repeated cleaning, preparation and CCTV inspections required to satisfy contract requirements shall be performed at the Contractor's own expense.

46.12. **Item C-3 - Structural Rehabilitation of Existing Storm Sewers and Culverts of Various Diameters Using CIPP Method at Various Locations**

Cost for this item shall include all labour, materials, equipment, and services required to carry out Sewer Rehabilitation in accordance with the responsibilities, obligations, and requirements set out in the Contract Documents including all other work required for and incidental to the foregoing. No separate payment shall be made for any lining related items such as flow control/bypass, liner testing, site investigations, public notifications, connection reinstatement or other work items according to Agency's standard specifications (see Appendix 5.9 or 5.10) and supplemental CIPP lining specifications (see Appendix 5.16). Special equipment and liner material considerations related to site-specific requirements, such as cranes, platforms, pre-liners, transition liners, and blind shot installation methods shall be included in the cost of work.

The Contractor is advised that the CIPP structural design for the existing non-circular sewer (850 × 1325 mm), located between STMHRR007-0545 and STMHRR007-0544 on Airport Road, shall be carried out in accordance with ASCE MOP 145.

The applicable design parameters are provided in the Supplemental Specifications for CIPP Lining Using Hot Water or Steam Cured, Appendix 5.16, and shall be incorporated into the Contractor's design submission unless such parameters are demonstrated to be superseded based on field-verified conditions.

The Contractor shall be solely responsible for validating and substantiating all design assumptions related to the existing pipe geometry, including but not limited to the horizontal-to-vertical (H:V) ratio and wall curvature. This shall be achieved through in-situ measurement and verification of the host pipe geometry before finalizing the design.

All field work associated with the verification of pipe geometry and confirmation of design assumptions shall be deemed incidental to the Contract. No additional payment or compensation shall be made for these activities.

Measurement for payment for the specified mainline sewer nominal diameter shall be per meter length of installed CIPP, as determined from the chainage indication on the CCTV V3 video.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

Payment shall be made at the unit price bid for the length of rehabilitated pipe according to schedule below and due upon review and approval of the V3 inspection. Repeated inspections and deficiency rectification work required to satisfy contract requirements shall be performed at the Contractor's own expense.

- 80% upon liner supply, installation and approval of V3 inspection
- balance upon approval of liner test results and submission of QA/QC reporting (cure logs and wet out sheets)

46.13. Item C-4 – Structural Rehabilitation of Existing Storm Sewer of Various Diameter Using UV or Styrene Free

Cost for this item shall include all labour, materials, equipment, and services required to carry out Sewer Rehabilitation in accordance with the responsibilities, obligations, and requirements set out in the Contract Documents including all other work required for and incidental to the foregoing. No separate payment shall be made for any lining-related items such as flow control/bypass, liner testing, site investigations, public notifications, connection reinstatement or other work items according to the Agency's standard specifications (see Appendix 5.9 or 5.10) and supplement CIPP lining specification (see Appendix 5.16). Special equipment and liner material considerations related to site-specific requirements such as cranes, platforms, and pre-liners shall be included in the cost of work.

The Vendor shall perform the work with a UV-cure CIPP lining system or utilize styrene-free resin if hot water or steam curing method is proposed. No other installation system or alternatives to this requirement shall be entertained.

Measurement for payment for the specified mainline sewer nominal diameter shall be per meter length of installed CIPP, as determined from the chainage indication on the CCTV V3 video.

Payment shall be made at the unit price bid for the length of rehabilitated pipe according to schedule below and due upon review and approval of the V3 inspection. Repeated inspections and deficiency rectification work required to satisfy contract requirements shall be performed at the Contractor's own expense.

- 80% upon liner supply, installation and approval of V3 inspection
- balance upon approval of liner test results and submission of QA/QC reporting (cure logs and wet out sheets)

Special Provisions

46.14. **Item C-5 - Structural Rehabilitation of Existing Storm Sewers Using CIPP Spot Repair (CIPPSR)**

This item shall include all costs for labour, equipment, materials, services, private property access coordination, and incidentals required to supply and install CIPP Spot repairs (CIPPSR) for the 300mm Diameter Storm Sewer: RR001-0315 to NODE on Erin Mills Pky as identified in the List of Repair (Appendix 5.21)

The work shall be carried out in accordance with the Region of Peel's Standard Specification for CIPP Spot Repair and the Supplemental Specification for CIPP Spot Repair (Appendices 5.11 and 5.15) and all other applicable requirements of the Contract Documents.

The Contractor's responsibilities under this item shall include, but are not limited to, all work required for and incidental to the CIPPSR installation, including mobilization and demobilization, preparation and submission of standard and field-verified liner designs, flow control and/or bypass pumping, liner installation, liner testing, site investigations, public notifications, reinstatement of service connections, grouting required to facilitate CIPPSR installation, and all other work items specified in the standard and supplemental CIPPSR specifications.

No separate payment shall be made for any CIPPSR-related activities, including but not limited to design submissions, preparation work, inspections, testing, traffic control, special equipment, or site-specific setup requirements such as limited or single access points. All such costs shall be deemed included in the Unit Price bid.

Measurement for payment shall be for linear meter of installed CIPPSR according to the specified mainline sewer nominal diameter and the length of repair as determined from the CCTV V3 inspection.

Payment shall be made at the unit price bid for the length of rehabilitated pipe according to schedule below and due upon review and approval of the V3 inspection. Repeated inspections and deficiency rectification work required to satisfy contract requirements shall be performed at the Contractor's own expense.

- 80% upon liner supply, installation and approval of V3 inspection
- balance upon approval of liner test results and submission of QA/QC reporting (cure logs and wet out sheets)

Special Provisions

46.15. Item C-6 - Structural Rehabilitation of Existing Storm Sewers of Various Diameters Using Fold and Form Method

Cost for this item shall include all labour, materials, equipment, and services required to carry out Sewer Rehabilitation in accordance with the responsibilities, obligations, and requirements set out in the Contract Documents, including all other work required for and incidental to the foregoing. No separate payment shall be made for any lining related items such as flow control/bypass, liner testing, site investigations, public notifications, connection reinstatement or other work items according to OPSS MUNI 465 and supplemental Fold and Form specification (Appendices 5.14 and 5.18). Special equipment and liner material considerations related to site-specific requirements shall be included in the cost of work.

Measurement for payment for the specified mainline sewer nominal diameter shall be the meter length of installed Fold and Form, as determined from the chainage indication on the CCTV V3 Video.

Payment shall be made at the unit price bid for the length of rehabilitated pipe according to schedule below and due upon review and approval of the V3 inspection. Repeated inspections and deficiency rectification work required to satisfy contract requirements shall be performed at the Contractor's own expense.

- 80% upon liner supply, installation and approval of V3 inspection
- balance upon approval of liner test results and submission of QA/QC reporting (cure logs and wet out sheets, etc)

46.16. Item C-7 – Modifications of Ex. MH (any type) to facilitate CIPP lining, as required.

Cost for this item shall include all labour, materials, equipment, and services required to modify the existing maintenance hole to facilitate rehabilitation for the large diameter sewer as outlined in the Contract Documents for the following location of storm sewer rehabilitation.

- STMHRR005-0253 to STMHRR005-0262 on Derry Rd W. Approx. at 1.0m deep below the ground surface.
- STMHRR007-0545 to STMHRR007-0544 on Airport Rd. Approx. at 1.0m deep below the ground surface

This item includes the cost of confirming the utilities, partial excavation, shoring, partially removing the chamber top portion (any type), tripping

Special Provisions

concrete, installing a new chamber chimney, including associated appurtenances, backfill, and restoration as specified from the associated special provision herein.

Payment shall be made at the Lump Sum Price bid according to the following schedule:

- 10% for shop drawing and work plan approval
- 40% for all necessary removals
- 40% for supply and installation of new MH pre-cast section, including appurtenances; and
- Balance upon approval of 360° MH Inspection videos and bedding and backfill tests.

46.17 Item C-8 – Rebuild Existing Capped Maintenance Hole on Grade

Cost for this item shall include all labour, materials, equipment, and services associated with rebuilding the existing capped maintenance hole to match the ground surface in accordance with the Contract Documents for the following location of the storm sewer rehabilitation, as identified in the map:

- STMHRR003-0051-STNDRR003-0050 at 146.5m from the USMH. approx. at 1.5m deep below the ground surface.
- STMHRR007-0108-STMHRR007-0109 at 26.8 from DSMH. approx. at 2.0 m deep below the ground surface

This item includes the cost of confirming the location of the capped MH, utilities locate, protection of existing utilities and structures, excavation, shoring, installation of the new section, completion of associated appurtenances, backfill, and restoration as specified from the associated special provision herein.

Payment shall be made at the Lump Sum Price bid according to the following schedule:

- 10% for shop drawing and work plan approval
- 40% for all necessary removals
- 40% for supply and installation of new MH pre-cast section, including appurtenances; and
- Balance upon approval of 360° MH Inspection videos and bedding and backfill tests.

Special Provisions

46.18. **Item C-9 – Remove and Reinstall the new 600x600mm Catch Basin (RR016-0099) as per Contract Drawings Plan C12 on Kennedy Rd and Queen St**

The requirement of OPSS 407 and OPSS.MUNI. 402 shall apply except as amended herein.

Cost for this item shall include all labour, materials, equipment, and services associated with removing and reinstalling a new 600x600mm catch basin in accordance with the Contract Drawing for the inlet location RR016-0099.

This item shall also include the cost of restoring the concrete curb, sidewalk and the interlocking boulevard to match the existing condition or better.

Payment shall be made at the Lump Sum Price bid according to the following schedule:

- 10% for shop drawing and work plan approval.
- 40% for all necessary removals.
- 40% for supply and installation of precast catch basin, including appurtenances and restoration.
- Balance upon approval of 360° MH Inspection videos and bedding and backfill tests.

46.19. **Item C-10 – External Point Repairs (EPR) prior to CIPP Lining, including Restoration**

Cost for this item shall include all labour, materials, equipment, and services required to carry out external point repairs for the approximate locations and depths specified in the List of Repairs (Appendix 5.21). Open-cut excavation and replacement works shall be carried out in accordance with the responsibilities, obligations, and requirements set out in the Contract Documents, including all other work required for and incidental to the foregoing.

Payment shall be made at the Lump Sum price bid for the approximate location, diameter of mainline sewer, approximate depth of construction and length of repair specified in accordance with the following schedule:

- 70% for removal and replacement
- Balance upon final acceptance of work, including post EPR V2 CCTV inspection, restoration, and approval of test for bedding and backfill.

Special Provisions

46.20. Item C-11 – Partial Sewer Replacement Prior to CIPP Lining

Cost for this item shall include all labour, materials, equipment, and services required to carry out partial-length for the specified asset in the Contract Location Map (Appendix 5.23) and Contract Drawings (Appendix 5.24) prior to facilitating lining. Open-cut excavation and replacement works shall be carried out in accordance with the responsibilities, obligations, and requirements set out in the Contract Documents, including all other work required for and incidental to the foregoing.

Final surface restoration, including asphalt reinstatement, shall not proceed until the CCTV inspection has been reviewed and accepted by the Contract Administrator.

Payment shall be made at the Lump Sum price bid for the approximate location, diameter of mainline sewer, approximate depth of construction and length of repair specified by the following schedule:

- 70% for removal and replacement
- Balance upon final acceptance of work, including post-replacement CCTV inspection, restoration, and submission of compaction tests for bedding and backfill.

46.21. Item C-12 – Standalone Full-Length Replacement as per Contract Drawings

Cost for this item shall include all labour, materials, equipment, and services required to carry out full-length replacement as per the Contract Drawings (Appendix 5.24). Open-cut excavation and replacement works shall be carried out in accordance with the responsibilities, obligations, and requirements set out in the Contract Documents, including all other work required for and incidental to the foregoing.

Final surface restoration, including asphalt reinstatement, shall not proceed until the CCTV inspection has been reviewed and accepted by the CA.

Payment shall be made at the Lump Sum price bid for the approximate location, diameter of mainline sewer, approximate depth of construction length of repair specified by the following schedule:

- 70% for removal and replacement
- Balance upon final acceptance of work, including post-replacement CCTV inspection, restoration, and submission of compaction tests for bedding and backfill.

Special Provisions

46.22. **Item C-13 - Re-Ditch Existing Culverts, both Inlet and Outlet as per OPSD 810.010-Type B as specified on Contract Drawings (Various Sites)**

Cost for this item shall include labour, material, equipment, and services associated with re-ditching the existing culvert inlet and outlet as specified in the repair list and the contract drawings.

Re-ditching of culvert inlet and outlet shall be carried out using 150mm diameter riprap in accordance with Type B per OPSD 810.010 including at least one layer of geotextile fabric. Geotextile shall be nonwoven, Class II, with a Filtration Opening Size (FOS) of 75-150 um, in accordance with OPSS 511.

The cost of removing existing vegetation, stone, debris, garbage, and unsuitable materials within the limits of re-ditching shall be deemed included in this item.

Measurement for payment shall be per square meter (m²) for the areas specified on the Contract Drawings where re-ditching of the culvert inlet or outlet is required.

46.23. **Item C-14 - Post-Rehabilitation CCTV (V3)**

Cost for this item shall include all labour, materials, equipment, and services associated with undertaking a post-rehabilitation CCTV inspection in accordance with the Contract Documents for all sewers scheduled for rehabilitation. This item includes the cost of flow control/bypass to ensure a clear view of the installed liner during V3.

Measurement for payment for the specified mainline sewer nominal diameter in the Schedule of Prices shall be per meter length of pipe inspected, as determined from the chainage indication on the CCTV video.

Payment shall be made at the unit price bid for the inspected length of pipe and due upon review and approval of the installed liner. Repeated inspections and deficiency rectification work required to satisfy contract requirements shall be performed at the Contractor's own expense.

46.24. **Item C-15 – Environmental and Erosion and Sediment Control Measures**

This item includes all costs related to supply, installation, maintenance and removal of the temporary ESC measure as for select sewer located

Special Provisions

within the TRCA regulated lands in accordance with the responsibilities, obligations, and requirements set out in the Contract Documents and the permits term and condition (Appendices 5.19 and 5.20), including all other work required for an incidental to the foregoing.

ESC measures shall be maintained in effective working condition for the duration of the construction activities and shall be repaired or replaced as required to ensure continued compliance with permit requirements.

Measurement for payment shall be per meter of ESC measures installed onsite.

Payment shall be made at the Unit Prices bid in the Schedule of Prices and in accordance with the following schedule:

- 50% for supply and installation; and
- Balance upon removal.

Part D - PROVISIONAL ITEMS

The following are identified in the Document as provisional items. These items require written consent from the Agency's Project Manager prior to undertaking the Work. The Agency may cancel provisional items at any time during the Contract. The Vendor shall have no claim for loss of overhead or profit should the Agency decide to delete any or all provisional item(s).

46.25. **Item D-1 - Additional Bypass Pump Requirements, per Diem (Provisional)**

During lining Works, the Contractor shall provide for by-pass and pumping of sewage to maintain sanitary sewage flow in upstream sections of the sewer being rehabilitated. The cost for this Work shall be included in the unit bid price for all sewer rehabilitation works. The Agency considers that the Contractor shall provide minimum flow control as part of base scope rehabilitation items, up to 63 litre/sec (1,000 usgpm) or up to the maximum flow volumes required to facilitate the liner installation (if provided in the Contract Documents), whichever is greater. Such flow control shall include bypass pumping and/or other means of effective flow control.

However, if bypass pumping requirements exceed the above value, the Contractor will be compensated through the provisional unit price bid for additional bypass pumping. Accordingly, this item shall apply only where flows in the mainline sewer exceed 63 litre/sec (1,000 usgpm) limit provision.

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

The Work shall include all labour, material, equipment, and services for the planning, supply and installation of a fully operational temporary sewer bypass system, mobilization and demobilization, commissioning, operation, and decommissioning. Additional operating requirements and incidentals shall be included such as (without limitation) fuel, flow monitoring, spill prevention and cleanup, traffic control all in accordance with the Contract Documents and requirements stated below:

- Additional temporary bypass capacity shall be provided in increments of 63 litre/sec (1,000 usgpm).
- Discharge piping shall be provided for a discharge point up to 250 m distant from the suction point.
- Prior to commencement, the Contractor shall submit an updated sewer bypass plan shall for approval
- The temporary sewer bypass system shall be monitored at all times by the Contractor. The Contractor's employees must have the knowledge, experience and skill to maintain and operate all additional equipment and to switch to standby equipment.

If the Contractor's Bypass Plan requires material or equipment substantially different than the requirements of this specification, the Contractor shall submit a proposal to verify the requirement and provide the total cost for supply and installation of the temporary bypass system.

Measurement for payment shall be for each installed increment of bypass capacity of 63 litre/sec (1,000 usgpm) for the duration of 24-hours, approximated to the nearest half-day. Payment at the contract price shall be full compensation for all labour, equipment and material to do the work.

46.26. Item D-2 - Hydro Vac Excavation (Provisional)

Unit price includes all costs related to hydro-vac excavation including removal and disposal of all material hydro-vac excavated. All costs for testing required for disposal of the material collected shall be at the Vendors expense and shall be included in the unit rate supplied.

Measurement for payment shall be for every hour spent by hydro-vac Equipment while onsite. Travel time and disposal costs shall be inclusive to the unit rate provided and shall not be approved over and above the onsite time the hydro-vac excavation equipment is onsite

Payment shall be made at the Unit Price bid in the Schedule of Prices.

Special Provisions

The Agency or the Engineer shall approve all use of hydro-vac excavation to be billed under this item in advance of the Work being completed. This item is intended to facilitate daylighting activities required to confirm the elevation of buried structures that may conflict with planned open-cut work. Failure to obtain the Agency or the Engineer agreement prior to use of hydro-vac excavation shall result in all costs being borne directly by the Vendor.

46.27. **Item D-3 – Additional Sealing of Infiltration at Mainline Joints, Crack, and Lateral Connections not Identified in the Contract Documents (Provisional)**

This item shall include all costs for labour, equipment and materials, including mobilization and demobilization to and from various locations to seal infiltration not identified in the Contract Documents or observed in the existing CCTV footage provided to the Vendor at the bid stage. Infiltration sealing shall be carried out in accordance with the Agency's Standard Specification for Chemical Injection Grouting and the Supplemental Specification for Chemical Injection Grouting in Sewers and Maintenance Holes provided in Appendices 5.12 and 5.17.

This item shall be reserved only for occasions where sealing of infiltration is required to successfully install the CIPP liner, as determined by the liner manufacturer, for joints, cracks, and lateral locations that exhibit signs of infiltration in the existing CCTV footage provided to the Vendor. No separate payment shall be made for sealing all other points of infiltration observed in the existing CCTV footage.

Measurement for payment shall be for each location where a mainline or lateral chemical grouting is deemed necessary, as determined by the liner manufacturer and authorized by the Engineer. Payment shall be made at the unit price bid and due upon acceptance of the work (review and approval of V2 inspection and submission of grout records)

46.28. **Item D-4 – Locate Buried Maintenance Hole, including Excavating and Reinstating Frame, Covers, and Adjustment Units up to 1m Deep, Not Identified in the Contract Documents (Provisional)**

This item shall include all costs for labour, equipment, and materials, including mobilization and demobilization to and from various locations to locate, excavate and reinstate buried MH to grade that were not identified in the Contract Documents or observed in the pre-tender CCTV footage at the bid stage. The work shall be performed at various locations as required to facilitate sewer rehabilitation.

Special Provisions

Upon completion of V2, the Contractor shall immediately notify the CA in writing of the location for any buried MH requiring reinstatement prior to the commencement of sewer rehabilitation. The work shall include traffic control, preservation and protection of existing facilities and utilities, shoring, dewatering, disposal of all excess soil offsite, backfilling, and site restoration as specified in the Contract Document. No separate payment shall be made.

The Contractor shall be responsible for accurately determining the exact location of the buried MH prior to excavation. No separate payment will be made for any additional costs incurred due to the Contractor's failure to locate the buried MH.

Maintenance hole frames and covers shall be in accordance with the Peel Region's standard drawing 2-6-1.

Adjustment unit installation shall be in accordance with the Peel Region's standard drawing 2-5-13. Further, the Contractor shall minimize the number of adjusters by no more than three (3) sizes (50, 75, 100 and 150mm) to a maximum height of 450mm is required during the installation. Where depth from cover to chamber wall exceed 450mm, a precast collar (typical 300mm thick) shall be used between chamber wall and new adjuster. The Contractor is responsible for selecting the appropriate number and size of adjuster to achieve existing cover grade elevation in accordance with these requirements.

Waterproofing detail shall be in accordance with the Peel Region's standard drawing 2-5-25.

Measurement for payment shall be by each of the MH required to raise on-grade to facilitate lining and in accordance with the following schedule:

- 10% for shop drawing and work plan approval
- 40% for all necessary removals
- 40% for supply and installation of a new MH pre-cast section, including appurtenances; and
- Balance upon approval of 360° MH Inspection videos and bedding and backfill tests.

46.29. **Item D-5 - Install 4.0m deep of 1200mm Diameter MH (MHRR007-0108A) on Dixon Rd per Peel Std Dwgs (Provisional)**

Where reconstruction of the existing capped storm maintenance hole (RR007-0108) on Dixon Road is not feasible due to utility conflicts, the Contractor shall supply and install a new maintenance hole (RR007-

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

0108A) on the subject sewer, as shown on Contract Location Map-38. The Lump Sum price for this item shall include all labour, materials, equipment, and services necessary to complete the work required to facilitate the new MH installation.

The new precast concrete maintenance hole shall be furnished and installed in accordance with Special Provision SP32.

This item shall also include, but is not limited to: traffic control and management, mobilization and demobilization, bypass, utility locates, protection of existing utilities and adjacent structures, excavation, shoring, installation of the new structure and associated appurtenances, backfilling, and surface restoration, as detailed in the relevant special provisions.

Payment shall be made at the Lump Sum Price bid according to the following schedule:

- 10% for shop drawing and work plan approval.
- 40% for all necessary removals.
- 40% for supply and installation of precast catch basin, including appurtenances and restoration.
- Balance upon approval of 360° MH Inspection videos and bedding and backfill tests.

46.30. Item D-6 – Install 4m long of CIPP spot repair on 300mm storm sewer from RR007-108A to RR007-0108 on Dixon Rd (Provisional)

This item shall include all costs for labour, equipment and materials, including mobilization and demobilization to install CIPPSR on R007-108A to RR007-108) as deemed necessary by the Contract Administrator. CIPPSR shall be carried out in accordance with the Agency's Standard Specification for CIPPSRs (see Appendix 5.11, Supplemental Standard Specifications for CIPPSRs (see Appendix 5.15) and all other responsibilities, obligations, and requirements set out in the Contract Documents, including all other work required for and incidental to the foregoing. No separate payment shall be made for any lining related items such as flow control/bypass, liner testing, site investigations, public notifications, connection reinstatement, grouting to facilitate CIPPSR installation or other work items detailed in the standard and supplemental CIPPSR lining specifications. Special equipment and setup considerations related to sewers with site-specific requirements, such as blind-ends (single access points) shall be included in the cost of work.

Measurement for payment shall be for lump sum installed CIPPSR according to the specified mainline sewer nominal diameter and

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Special Provisions

sequence of 1m spot repair installations within a sewer line up to the required total length, as determined from the CCTV V3 inspection.

Payment shall be made at the unit price bid according to schedule below. Repeated inspections and deficiency rectification work required to satisfy contract requirements shall be performed at the Contractor's own expense.

- 5% upon submission and acceptance of V1;
- 25% upon completion of all pipe preparation and acceptance of V2;
- 50% upon liner supply, installation, and approval of V3 inspection
- balance upon approval of liner test results and submission of QA/QC reporting

46.31. Item D-7 - Additional cost per 1.5mm Liner Thickness Increase (Provisional)

Where the existing liner design is not appropriate for the field conditions, the Vendor shall adjust the liner design accordingly and the liner installed shall meet the requirements of the adjusted design. The adjusted liner design shall be submitted to the Engineer for acceptance.

Where a liner design previously accepted by the Engineer is found needing adjustment due to determined actual field conditions, the Vendor shall advise the Engineer within 48 hours and wait for further instructions.

Where the adjusted design results in a thicker liner to be installed, any additional cost involved shall be determined according to the unit price bid. No liner shall be installed that does not meet the requirements for actual field conditions, including required liner thickness for actual field conditions.

Measurement for payment for the specified mainline sewer nominal diameter shall be per 1.5 mm increase in liner thickness per meter length of CIPP installation. The length of CIPP installation shall be as determined from the chainage indication on the CCTV video.

Thickness increase shall be the difference between the proposed liner tube nominal thickness for installations in accordance with the thicknesses submitted for the base-bid liner design and the field-verified liner design.

Payment at the contract price shall be full compensation for all labour, equipment and material to perform the work according to the payment schedule for base scope sewer lining items.

Special Provisions

46.32. **Item D-8 – Temporary Support for the Existing Pole Structures (Provisional)**

This item includes the provision of temporary support for existing traffic signal poles, hydro poles, light poles and other associated structures where excavation activities encroach within the minimum clearance zone around the pole structures and may adversely impact the supporting soil or foundation conditions.

Prior to commencing any support work, the Contractor shall contact the applicable utility owner and obtain written approval for the proposed temporary support measures.

The Contractor shall be responsible for all costs associated with the temporary support of existing pole structures where required to complete the sewer replacement work. This shall include, but not be limited to:

- Coordination with the utility owner;
- Engagement and payment of third-party contractors authorized by the utility owner to provide “hold-the-pole” services;
- Engagement and payment of a third-party Professional Engineer to design the temporary support system, where required; and
- Supply, installation, monitoring, maintenance, and removal of the temporary support system.

All temporary support systems shall be installed and maintained in accordance with utility owner requirements, applicable regulations, and the approved support design.

Measurement for Payment shall be made for each pole to support onsite.

The price shall constitute full compensation for all labour, equipment, materials, engineering, coordination, third-party services, installation, maintenance, removal, and restoration required to complete the work.

Part E – CONTINGENCY

Contingency allowance for Work not covered within the Contract and ordered by the Agency. This item requires written consent from the Agency’s Project Manager **prior** to undertaking the Work.

46.33. **Item E-1 – Allowance for Extra Labour**

These items shall only apply where the Agency’s Project Manager authorizes extra Work not shown on the plan and where there are no

Special Provisions

other applicable unit price items in the Schedule of Prices because of the delay due to man-made obstructions. The rate should include payroll burden, overhead and profit.

46.34. **Item E-2 - Allowance for Extra Work Ordered by the Agency**

This item shall only apply where the Agency's Project Manager authorizes extra Work not shown on the plan and where there are no other applicable unit price items in the Schedule of Prices.

46.35. **Item E-3 - Allowance for Extra Traffic Control**

The successful Contractor shall supply, place, maintain and remove all traffic control signs, delineators and lights necessary for the protection of the public and the Work, including warning signs of the operations at all ends of the contract, for the duration of the contract and in accordance with the Manual of Uniform Traffic Control Devices, Ministry of Transportation (latest issue) and as outlined in the Ontario Traffic Manual Book 7-Temporary Work.

This item shall only apply where (1) the Agency's Project Manager authorizes extra Work or (2) where additional traffic control requirements over and above minimum requirements set out by Book 7 or the standard terms and conditions for municipal road occupancy permits are placed on the Contractor by the Agency, Engineer, or a municipal traffic authority.

46.36. **Item E-4 - Allowance for Extra Paid Duty Police Officer (PDO)**

As stated in Item A-3, it is the Contractor's responsibility to include the cost of PDOs (personnel and cruiser) as required by Book 7 or the standard terms and conditions for municipal road occupancy permits in the base scope Traffic Control Item. Accordingly, this item shall only apply where requirements for additional PDOs over and above minimum requirements set out by Book 7 or the standard terms and conditions for municipal road occupancy permits are placed on the Contractor by the Agency, Engineer, or a municipal traffic authority. Payment for the Paid Duty Police Officers shall be in the amount of the actual invoices received.

The Regional Municipality of Peel

Document 2026-142T

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND
REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE
REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Appendices

PREVIEW

Appendices

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Appendix 5.1 Agreement to Bond

AGREEMENT TO BOND

We, the undersigned, hereby agree to become bound as Surety for

In a Performance Bond totalling **50 per cent** of the Contract amount and a Labour and Material Payment Bond totalling **50 per cent** of the Contract amount, substantially in the forms required under the *Construction Act* and conforming to the Instruments of Contract attached hereto, for the full and due performance of the Works shown as described herein, if the Tender for

Document 2026-142T

**CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND
REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE
REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K**

is accepted by the Owner.

It is a condition of the Contract that if the above-mentioned Tender is accepted by the Agency, application for a Performance Bond and a Labour and Material Payment Bond, each in the amount of **50 per cent** of the Contract amount, and each substantially in the forms prescribed by the *Construction Act*, must be completed with the undersigned within 10 days of acceptance of Tender related thereto, otherwise this Agreement shall be null and void.

Dated this _____ day of _____, _____.

Name of Bonding Company

Signature of Authorized Person Signing
for Bonding Company (Company Seal)

Position

**The Regional Municipality of Peel
Document 2026-142T**

**CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT
OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF
PEEL, CONTRACT NO. 1 PROJECT 23-2300K**

Appendix 5.2 Digital Bid Bond

DIGITAL BID BOND

BOND NUMBER _____

KNOW ALL MEN BY THESE PRESENTS THAT _____
as Principal, hereinafter called the Principal, and

_____, a corporation
created and existing under the laws of Ontario, and duly authorized to transact the business of Suretyship
in Ontario as Surety, hereinafter called the Surety, are held and firmly bound unto The Regional
Municipality of Peel as Obligee, hereinafter called the Obligee, in the amount of

_____ Dollars,

(\$ _____) lawful money of Canada, for the payment of which sum, well and
truly to be made, the Principal and the Surety bind themselves, their heirs, executors, administrators,
successors and assigns, jointly and severally, firmly by these presents.

WHEREAS, the Principal has submitted a written Bid to the Obligee, dated the _____ day of

_____, 20____
for: _____

DESCRIPTION OF WORK

NOW, THEREFORE, THE CONDITION OF THIS OBLIGATION is such that if the aforesaid Principal
shall have the Bid accepted within ninety (90) days from the Closing Date and the said Principal will,
within the time required, enter into a formal contract and give the specified security to secure the
performance of the terms and conditions of the Contract, then this obligation shall be null and void;
otherwise the Principal and the Surety will pay unto the Obligee the difference in money between the
amount of the Bid of the said Principal and the amount for which the Obligee legally contracts with
another party to perform the work if the latter amount be in excess of the former.

The Principal and the Surety shall not be liable for a greater sum than the specified penalty of this Bond.

Any suit under this Bond must be instituted before the expiration of seven months from the date of this Bond.

IN WITNESS WHEREOF, The Principal and the Surety have signed and sealed this Bond this _____
day of _____, 20_____.

SIGNED, SEALED AND DELIVERED

SIGNATURE OF WITNESS
(if not signed under corporate seal)

By _____ (Seal)
SIGNATURE AND SEAL OF PRINCIPAL
I/We have the authority to bind the Corporation

NAME OF WITNESS (PRINTED)

SURETY (Seal)
By _____
ATTORNEY-IN-FACT

ADDRESS AND PHONE NUMBER OF SURETY

Appendix 5.3
Form of Release at Substantial Performance of the Work

Date: _____
Owner: _____
Contractor: _____
Document Number: _____
Project: _____
Applicable Invoice: _____

Context

- A. The Contractor identified above (the "Contractor") and the Regional Municipality of Peel entity, government, agency, or board identified above as the Owner (the "Owner") entered into a contract dated _____ (the "Contract") pursuant to the procurement document number identified above for the Contractor to provide certain work and services in respect of the project identified above (the "Project").
- B. Capitalized terms used but not defined in this Release have the meanings given to them in the Agreement.
- C. Pursuant to the Contract, the Contractor is providing this Release to the Owner in support of its application for payment of holdback upon Substantial Performance of the Work.

Release

1. Except for the claims set out in section 2, as of the date set out above, the Contractor on its own behalf and on behalf of its successors and assigns hereby irrevocably waives, releases, and forever discharges the Owner and its directors, officers, Region of Peel council members, representatives, employees, contractors, agents, and their respective successors and assigns (the "Released Group") from any and all claims, changes, disputes, complaints, liabilities, obligations, damages, actions, causes of action, proceedings, debts, demands, losses, and expenses whatsoever, at law and in equity, which it may have had, may now have, or may have arising out of or in connection with the Contract ("Claims").
2. The Contractor does not release the Released Group from the following Claims:
- Claims for any sums retained by the Owner for the Warranty Holdback;
 - Claims arising from Work which remains to be completed by the Contractor on the Project as at the date of this Release;
 - Claims which cannot be waived under the *Construction Act* (Ontario); and
 - the following Claims (including any outstanding Claims about which the Contractor has previously notified the Owner and attach additional page if necessary):

The Contractor acknowledges and agrees that if it leaves Section 2.d. blank or responds "none" in Section 2.d., the Contractor is deemed not to have reserved any Claims other than those in Sections 2.a., 2.b., and 2.c.

3. Except for the Claims set out in Section 2.d., Contractor's managerial or senior supervisory personnel do not know, or have reason to know based on good and prudent industry practices, of any potential or actual claims that are required to be notified to Owner according to the requirements of the Contract as of the date of this Release.
4. This Release is freely and voluntarily given and the Contractor acknowledges and represents that it has fully reviewed the terms and conditions of this Release and that it is fully informed with respect to the legal effect of this Release.

General

5. No provision of this Release which may be deemed unenforceable shall in any way invalidate any other provision hereof, all of which shall remain in full force and effect.
6. This Release shall be binding upon, and shall inure to the benefit of, the Contractor, the Owner, and their respective heirs, successors, legal representatives and assigns.
7. This Release and the Contract constitute the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements. No change or waiver shall be valid unless in writing and signed by an authorized representative of the party against whom such change or waiver is sought to be enforced.
8. This Release may be executed and delivered electronically.
9. This Release is governed by the laws of Ontario and the federal laws of Canada applicable therein. Any dispute arising out of this Release shall be governed by the terms of the Contract.

[INSERT FULL CORPORATE NAME OF CONTRACTOR]

By: _____

Name: _____

Title: _____

I have authority to bind the corporation. _____

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Document 2026-142T

CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K

Appendix 5.4 Form of Agreement

THIS AGREEMENT made in triplicate this ____ day of _____, ____.

BETWEEN: _____
(Company Name)

(Address)

hereinafter called the "Contractor"

THE PARTY OF THE FIRST PART

- and -

The Regional Municipality of Peel

hereinafter called the "Region"

THE PARTY OF THE SECOND PART

HEREBY AGREE AS FOLLOWS:

1. Entire Agreement

This Agreement incorporates by reference procurement Document 2026-142T issued by the Region dated _____ (Drafting note: Insert date procurement document was issued) for CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K, all of the documents incorporated by reference therein, and the Contractor's response thereto. Capitalized terms used but not defined in this Agreement have the meanings given to them in such procurement document.

2. Description of Work

The Contractor agrees that it will deliver the whole of the Work set out in the agreement completed in accordance with this agreement within 180 working days weeks from the Region's notification to commence the Work.

The Contractor agrees that any monies due to the Region as a result of non-compliance or non-completion in accordance with this agreement may be deducted from any monies due the Contractor on any account whatsoever.

IN CONSIDERATION WHEREOF, the Region agrees to pay to the Contractor for all work done at the unit prices in the Online Bidding System forms, of the Tender.

The Regional Municipality of Peel

Document 2026-142T

**CONSTRUCTION SERVICES FOR THE TRENCHLESS REHABILITATION AND
REPLACEMENT OF MAINLINE SANITARY, STORM AND CULVERTS IN THE
REGIONAL MUNICIPALITY OF PEEL, CONTRACT NO. 1 PROJECT 23-2300K**

Appendix 5.4 Form of Agreement

This agreement shall enure to the benefit of and be binding upon the heirs, successors, executors, administrators and assigns of the parties hereto.

IN WITNESS WHEREOF, the parties hereto have hereunto executed this agreement on the date above written.

Contractor (Corporate Name)

Name of Authorized Person Signing for Contractor (PRINT)

Title

Signature of Authorized Person Signing for Contractor/Company
Seal

I/We have authority to bind the Corporation

Date

THE REGIONAL MUNICIPALITY OF PEEL

Director, Division, Public Works

Date

Document Execution _____
I/We Have Authority To Bind
The Regional Corporation

**2026-142T - CONSTRUCTION SERVICES FOR THE TRENCHLESS
REHABILITATION AND REPLACEMENT OF MAINLINE SANITARY,
STORM AND CULVERTS IN THE REGIONAL MUNICIPALITY OF
PEEL, CONTRACT NO. 1 PROJECT 23-2300K**

Date Issued: March 17, 2026 3:00 PM

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Schedule of Prices

*Denotes a "MANDATORY" field

Do not enter \$0.00 dollars unless you are providing the line item at zero dollars to the Owner.

If the line item and/or table is "NON-MANDATORY" and you are not bidding on it, leave the table and/or line item blank. Do not enter a \$0.00 dollar value.

PART A - GENERAL ITEMS

All pricing submitted shall include all costs necessary to perform the work. No additional payments will be made to the Vendor for any unforeseen or additional work without prior written consent of the Agency's Project Manager. It is the responsibility of the Vendor to know the extent of the work required to successfully carry out the work. Unit Prices shall be exclusive of HST.

Item No	Spec No	Item Name	Unit of Measure	Estimated Quantity	Unit Price *	Total
A-1	SP	Supply all Bonding and Insurance Required by Contract	l.s.	1		
A-2	SP	Project Signboards	l.s.	1		
A-3	SP	Traffic Control	l.s.	1		
A-4	SP	Pre-Construction and Post-Construction Site Photographs	l.s.	1		
Subtotal:						

PART B - SANITARY SEWER AND MAINTENANCE HOLE ITEMS

All pricing submitted shall include all costs necessary to perform the work. No additional payments will be made to the Vendor for any unforeseen or additional work without prior written consent of the Agency's Project Manager. It is the responsibility of the Vendor to know the extent of the work required to successfully carry out the work. Unit Prices shall be exclusive of HST.

Item No	Spec No	Item Name	Description	Unit of Measure	Estimated Quantity	Unit Price *	Total
B-1	SP, SS and SSS	Preliminary CCTV Inspection (V1)	a) 250mm Diameter Sewers	m	1642.5		
			b) 300mm Diameter Sewers	m	530.6		
			c) 375mm Diameter Sewers	m	8.5		
B-2	SP, SS and SSS	Sewer Cleaning/Preparation, and Post Cleaning/Preparation CCTV (V2)	a) 250mm Diameter Sewers	m	1642.5		
			b) 300mm Diameter Sewers	m	530.6		
			c) 375 Diameter Sewers	m	8.5		
B-3	SP, SS and SSS	Structural Rehabilitation of Existing Sanitary Sewers of Various Diameter Using CIPP Method at Various Locations in the Region of Peel	i) 1785790 to 1785789 on Birch Cres	m	33.0		
		a) 250mm Diameter Sewers	ii) 1785791 to 1785790 on Birch Cres	m	43.0		
			iii) 1785792 to 1785784 on Birch Cres	m	61.8		
			iv) 1785793 to 1785792 on Birch Cres	m	42.6		
			v) 1785794 to 1785793 on Birch Cres	m	10.9		
			vi) 1785795 to 1785794 on Birch Cres	m	36.9		
			vii) 1785796 to 1785795 on Birch Cres	m	43.6		
			viii) 1785797 to 1785796 on Birch Cres	m	90.1		

			ix) 1785798 to 1785797 on Birch Cres	m	91.1		
			x) 1785799 to 1785798 on Birch Cres	m	58.0		
			xiv) 1800440 to 1800418 on Falconer Dr	m	49.4		
			xv) 1800441 to 1800440 on Falconer Dr	m	30.0		
			xvi) 1800442 to 1800418 on Falconer Dr	m	81.4		
			xvii) 1800443 to 1800449 on Falconer Dr	m	60.7		
			xviii) 1800444 to 1800443 on Falconer Dr	m	44.4		
			xix) 1800445 to 1800444 on Falconer Dr	m	41.1		
			xx) 1800449 to 1800442 on Falconer Dr	m	31.9		
			xxi) 1782678 to 1782681 on Greaves Ave	m	93.6		
			xxii) 1782679 to 1782678 on Greaves Ave	m	89.5		
			xxiii) 1782680 to 1782679 on Greaves Ave	m	67.0		
			xxiv) 1783319 to 1783312 on Jumna Ave	m	92.4		
			xxv) 6544128 to 1788950 on Ponytrail Dr	m	61.5		
			xxvi) 1787772 to 1787771 on Shardawn Mews	m	36.3		
			xxvii) 1787774 to 1787773 on Shardawn Mews	m	38.9		
			xxviii) 1784690 to 1784274 on Techumseh Park Dr	m	54.2		
			xxix) 1784691 to 1784690 on Techumseh Park Dr	m	75.2		
			xxx) 1775361 to 1775362 on Vodden St E	m	92.0		
			xxxi) 1775362 to 11775184 on Vodden St E	m	92.0		
		b) 300mm Diameter Sewers	i) 1775184 to 1775183 on Hansen Rd N	m	91.4		
			ii) 1775183 to 1775182 on Hansen Rd N	m	51.6		
			iii) 1775182 to 1775181 on Hansen Rd N	m	40.0		
			iv) 1775181 to 1775180 on Hansen Rd N	m	40.0		
			v) 1775180 to 1775179 on Hansen Rd N	m	90.2		
			vi) 1775179 to 1775178 on Hansen Rd N	m	51.6		
			vii) 1775178 to 1771576 on Hansen Rd N	m	71.0		
			viii) 6539483 to 6582927 on Main St	m	74.6		
			ix) 6582927 to 6539485 on Main St	m	20.2		
		c) 375mm Diameter Sewers	i) 1791042 to 1787455 on Dundas St W	m	8.5		
B-4	SP, SS and SSS	Post-Rehabilitation CCTV (V3)	a) 250mm Diameter Sewers	m	1642.5		
			b) 300mm Diameter Sewers	m	530.6		
			c) 375 Diameter Sewers	m	8.5		

B-5	SP, SS and SSS	Special Site Consideration - CIPP Lining of 250mm Sewers in Private Property on Birch Cres including site restoration a) Preliminary CCTV Inspection (V1)	i) 1785804 to 1785803	m	54.9		
			ii) 1785801 to 1785795	m	55.0		
			iii) 1785803 to 1785802	m	53.1		
		b) Sewer Cleaning/Preparation, and Post Cleaning/Preparation CCTV (V2)	i) 1785804 to 1785803	m	54.9		
			ii) 1785801 to 1785795	m	55.0		
			iii) 1785803 to 1785802	m	53.1		
		c) Post-Rehabilitation CCTV (V3)	i) 1785804 to 1785803	m	54.9		
			ii) 1785801 to 1785795	m	55.0		
			iii) 1785803 to 1785802	m	53.1		
		d) Structural Rehabilitation Using CIPP Method	i) 1785804 to 1785803 (Blindshot)	m	54.9		
			ii) 1785801 to 1785795	m	55.0		
			iii) 1785803 to 1785802	m	53.1		
		e) Site Preparation and Restoration	i) Supply install maintain and remove construction access road and/or mats for access and staging areas	l.s.	1		
			ii) Uncover and Raise Buried MH1785803 to Grade (<1m Deep)	ea	1		
			iii) Remove and Replace Property Line Fence to match existing (all types)	m	30		
			iv) Restore Landscaping Area with Topsoil and Sod	m2	310		
			v) Tree Pruning by Certified Arborists	ea	5		
			vi) Removal and reinstatement of Shrubs along the property line as specified	m	10		
						Subtotal:	

PART C - STORM SEWER AND MAINTENANCE HOLE ITEMS

All pricing submitted shall include all costs necessary to perform the work. No additional payments will be made to the Vendor for any unforeseen or additional work without prior written consent of the Agency's Project Manager. It is the responsibility of the Vendor to know the extent of the work required to successfully carry out the work. Unit Prices shall be exclusive of HST.

Item No	Spec No	Item Name	Description	Unit of Measure	Estimated Quantity	Unit Price *	Total
C-1	SP, SS and SSS	Preliminary CCTV Inspection For Storm Sewers (V1)	i) 200mm Diameter Sewers	m	82.7		
			ii) 250mm Diameter Sewers	m	134.0		
			iii) 300mm Diameter Sewers	m	579.3		
			iv) 375mm Diameter Sewers	m	708.8		
			v) 450mm Diameter Sewers	m	150.4		
			vi) 500mm Diameter Sewers	m	42.1		
			vii) 525mm Diameter Sewers	m	84.2		
			viii) 600mm Diameter Sewers	m	307.0		
			ix) 750mm Diameter Sewers	m	49.0		
			x) 1000mm Diameter Sewers	m	46.4		
			xi) 1050mm Diameter Sewers	m	168.4		
			xii) 850 x 1325 mm Diameter Sewers	m	17.0		
C-2	SP, SS and SSS	Storm Sewer Cleaning/Preparation, and Post Cleaning/Preparation CCTV (V2)	i) 200mm Diameter Sewers	m	82.7		

			ii) 250mm Diameter Sewers	m	134.0		
			iii) 300mm Diameter Sewers	m	579.3		
			iv) 375mm Diameter Sewers	m	708.8		
			v) 450mm Diameter Sewers	m	150.4		
			vi) 500mm Diameter Sewers	m	42.1		
			vii) 525mm Diameter Sewers	m	84.2		
			viii) 600mm Diameter Sewers	m	307.0		
			ix) 750mm Diameter Sewers	m	49.0		
			x) 1000mm Diameter Sewers	m	46.4		
			xi) 1050mm Diameter Sewers	m	168.4		
			xii) 850 x 1325 mm Diameter Sewers	m	17.0		
C-3	SP, SS and SSS	Structural Rehabilitation of Existing Storm Sewers and Culverts of Various Diameter Using CIPP Method at Various Locations	i) RR017-0134 to NODE (Blind Shot) on Cawthra Rd	m	17.5		
		a) 200mm Diameter Sewers					
			ii) RR017-0139 to RR017-0072 on Cawthra Rd	m	16.2		
			iii) RR016-0003 to NODE (Blind Shot) on Kennedy Rd S	m	23.8		
			iv) RR019-0107 to RR019-0075 on Winston Churchill Blvd	m	15.8		
			v) RR017-0002 to RR017-0003 on Cawthra Rd	m	9.4		
		b) 250mm Diameter Sewers	i) RR016-0020 to RR016-0013 on Kennedy Rd S	m	21.8		
			ii) RR016-0031 to NODE (Blind Shot) on Kennedy Rd S	m	13.1		
			iii) RR016-0168 to NODE (Blind Shot) on Kennedy Rd S	m	8.7		
			iv) RR015-0386 to RR015-0302 on Steeles Ave W	m	24.2		
			v) RR015-0235 to RR015-0139 (Transition Liner; DIA change to 300mm at 11.65m from USMH) on Steeles Ave E	m	15.8		
			vi) RR015-0282 to NODE (Blind Shot) on Steeles Ave E	m	4.7		
		c) 300mm Diameter Sewers	i) RR007-0233 to Outfall on Airport Rd	m	9.7		
			ii) STMHRR007-0150 to STMHRR007-0149 on Airport Rd	m	7.3		
			iii) RR007-0121 to RR007-0222 on Airport Rd	m	10.8		
			iv) RR007-0060 to RR007-0059 on Airport Rd	m	18.3		
			v) STINRR024-0014 to STINRR024-0013 on Charleston Side Rd	m	68.7		
			vi) RR005-0034 to NODE (Blind Shot) on Derry Rd E	m	10.2		
			vii) RR005-0002 to RR005-0016 on Derry Rd E	m	12.0		
			viii) STMHRR005-0029 to STMHRR005-0030 on Derry Rd E	m	18.8		
			ix) STMHRR004-0214 to STMHRR004-0216 on Dixie Rd	m	63.4		
			x) STMHRR007-0108 to STMHRR007-0109 on Dixon Rd	m	26.2		
			xi) RR016-0146 to RR016-0145 on Kennedy Rd N	m	11.9		

		xii) STMHRR050-0364 to STMHRR050-0365 on Queen St N	m	13.4		
		xiii) RR020-0092 to RR020-0093 on Queensway E	m	25.4		
		xiv) RR020-0047 to RR020-0054 on Queensway E	m	17.0		
		xv) STINRR015-0254 to STMHRR015-0151 on Steeles Ave E	m	25.8		
		xvi) RR015-0247 to RR015-0146 on Steeles Ave E	m	18.6		
		xvii) STMHRR015-0295 to STMHRR015-0298 on Steeles Ave E	m	33.8		
		xviii) RR015-0393 to RR015-0308 on Steeles Ave W	m	25.3		
		xix) RR005-0183 to STMHRR005-0085 on Vanguard Dr	m	15.4		
		xx) RR004-0071 to RR004-0051 on Dixie Rd	m	22.4		
		xxi) RR015-0256 to RR015-0152 on Steeles Ave E	m	21.8		
		xxii) RR015-0268 to RR015-0162 on Steeles Ave E	m	25.9		
	d) 375mm Diameter Sewers	i) STMHRR007-0136 to STMHRR007-0135 on Airport Rd	m	50.8		
		ii) STMHRR007-0200 to STMHRR007-0198 on Airport Rd	m	61.9		
		iii) STMHRR003-0051 to STMHRR003-0051A on Britannia Rd W	m	146.9		
		iv) STMHRR017-0102 to STMHRR017-0101 on Cawthra Rd	m	88.1		
		v) STMHRR006-0015 to STMHRR006-0014 on Queen St W	m	78.5		
		vi) STMHRR015-0144 to STMHRR015-0146 on Steeles Ave E	m	87.1		
		vii) STMHRR005-0059 to STNDRR005-0217 on Studley St	m	31.6		
		viii) STMHRR004-0422 to STMHRR004-0423 on Dixie Rd	m	86.7		
	e) 450mm Diameter Sewers	i) STMHRR001-0288 to STMHRR001-0287 on Erin Mills Pky	m	92.7		
		ii) STMHRR007-0534 to STMHRR007-0536 on Airport Rd	m	57.7		
	f) 500mm Diameter Sewers	i) STINRR150-0156 to STINRR150-0156A on Coleraine Dr	m	15.4		
		ii) STINRR150-0156A to STMHRR150-0078 on Coleraine Dr	m	26.7		
	g) 525mm Diameter Sewers	i) STMHRR006-0012 to STMHRR006-0010 on Queen St W	m	84.2		
	h) 600mm Diameter Sewers	i) STMHRR050-0373 to STMHRR050-0371 on Queen St N	m	83.9		
		ii) STNDRR007-0619 to STNDRR007-0620 on Airport Rd	m	24.5		
		iii) STNDRR024-0176 to STNDRR024-0175 on Charleston Side Rd	m	29.7		

			iv) STNDRR024-0214 to STNDRR024-0213 on Charleston Side	m	33.5		
			v) STMHRR015-0307 to STNDRR015-0105 on Steeles Ave W	m	47.0		
			vi) STMHRR003-0051A to STNDRR003-0050 (Blind Shot) on Britannia Rd W	m	65.4		
		i) 750mm Diameter Sewers	i) STNDRR007-0669 to STNDRR007-0670 on Airport Rd	m	33.9		
		j) 1000mm Diameter Sewers	i) STNDRR007-0051 to STNDRR007-0052 on Airport Rd	m	46.4		
		k) 1050mm Diameter Sewers	i) STMHRR005-0253 to STMHRR005-0262 on Derry Rd W	m	168.4		
		l) 850 x 1325mm Diameter Sewers	i) STMHRR007-0545 to STMHRR007-0544 on Airport Rd	m	17		
C-4	SP, SS and SSS	Structural Rehabilitation of Existing Storm Sewers of Various Diameter Using UV or Styrene Free Method at Various Locations in the Region of Peel a) 600mm Diameter Sewers	i) STNDRR004-0473 to STNDRR004-0474 on Dixie Rd	m	23		
		b) 750mm Diameter Sewers	i) STNDRR008-0181 to STNDRR008-0182 on The Gore Rd	m	15.1		
C-5	SP, SS and SSS	Structural Rehabilitation of Existing Storm Sewers of 300mm Diameters Using CIPP Spot Repair (CIPPSR)	a) RR001-0315 to NODE on Erin Mills Pky	m	5.4		
C-6	SP, SS and SSS	Structural Rehabilitation of Existing Storm Sewers of Various Diameter Using Fold and Form Method at Various Locations in the Region of Peel a) 250mm Diameter Sewer	i) RR107-0005 to RR107-0405 on Bovaird Dr E	m	45.7		
		b) 300mm Diameter Sewer	i) RR014-0070 to Outfall on Mayfield Rd	m	8.2		
			ii) STMHRR007-0115 to STMHRR007-0114 on Dixon Rd	m	30.8		
			iii) STMHRR007-0108 to STMHRR007-0109 on Dixon Rd	m	26.2		
			iv) RR005-0002 to RRR005-0016 on Derry Rd E	m	12.0		
C-7	SP, SS and SSS	Modifications of Ex. MH (any type) to Facilitate CIPP Lining, as Required	a) STMHRR005-0253 to STMHRR005-0262 on Derry Rd W, approx. 1.0m deep	I.s.	1		
			b) STMHRR007-0545 to STMHRR007-0544 on Airport Rd, approx. 1.0m deep	I.s.	1		
C-8	SP, SS and SSS	Rebuild Existing Capped and Buried Maintenance Hole on Grade	a) Rebuild Capped and Buried MH for STMHRR003-0051-STNDRR003-0050 at 146.5m from the USMH, approx. 1.5m deep	I.s.	1		
			b) Rebuild Capped and Buried MH for STMHRR007-0108-STMHRR007-0109 at 26.8m from DSMH, approx. 2.0m deep	I.s.	1		
C-9	SP, SS and SSS	Remove and Reinstall 600x600mm Catch Basin (RR016-0099) as per Contract Drawings Plan C12 on Kennedy Rd and Queen St		I.s.	1		

C-10	SP, SS and SSS	External Point Repairs (EPRs) prior to CIPP Lining	a) STMHRR017-0102 to STMHRR017-0101 on Cawthra Rd 375mm Dia, up to 2.3m deep, approx. 61.3m DSMH, Replace up 2m of PVC	I.s.	1		
			b) RR015-0386 on Steeles Ave W 250mm Dia, up to 2.0m deep, approx. 22.8m USMH, Replace up to 1m of PVC	I.s.	1		
C-11	SP, SS and SSS	Partial Sewer Replacement Prior to CIPP Lining	a) STINRR150-0156 to STINRR150-0156A: Remove Ex. 250mm PVC and Replace with 500mm Corrugated HDPE pipe in 1m deep and 6m long as per Map No.5	I.s.	1		
			b) STNDRR024-0214 to STNDRR024-0213: 7m of Partial Replacement with 600mm Diameter HDPE as per Contract Drawings, Plan No. C6 on Charleston Side Road and Main St	I.s.	1		
C-12	SP, SS and SSS	Standalone Full-Length Replacement as per Contract Drawings	a) STNDRR008-0601 to STNDRR008-0602: Remove and Replace 16.4m of Ex. Culvert with 600mm Diameter HDPE per Plan No.C7 on The Gore Road	I.s.	1		
			b) STNDRR012-0195 to STNDRR012-0196: Remove and Replace 34m of Ex. Culvert with 600mm Diameter HDPE per Plan No.C9 on Old Base Line Road and Ingview Rd	I.s.	1		
			c) STNDRR022-0085 to STNDRR022-0086: Remove and Replace 29.2m of Ex. Culvert with 600mm Diameter HDPE per Plan No.C3 on Old Church Rd and Hwy No.50	I.s.	1		
			d) RR016-0099 to RR016-0100: Remove and Replace 16.2m of Ex. Storm Lead with 300mm Diameter per Plan No.C12 on Kennedy Road and Queen Street E	I.s.	1		
C-13	SP, SS and SSS	Re-ditch existing culvert both inlet and outlet as per OPSD 810.010-Type B as specified on Contract Drawings (Various Sites)		m2	150		
C-14	SP, SS and SSS	Post-Rehabilitation CCTV (V3)	a) 200mm Diameter Sewers	m	82.7		
			b) 250mm Diameter Sewers	m	134.0		
			c) 300mm Diameter Sewers	m	579.3		
			d) 375mm Diameter Sewers	m	708.8		
			e) 450mm Diameter Sewers	m	150.4		
			f) 500mm Diameter Sewers	m	42.1		
			g) 525mm Diameter Sewers	m	84.2		
			h) 600mm Diameter Sewers	m	307.0		
			i) 750mm Diameter Sewers	m	49.0		
			j) 1000mm Diameter Sewers	m	46.4		
			k) 1050mm Diameter Sewers	m	168.4		
			l) 850 x 1325 mm Diameter Sewers	m	17.0		
C-15	SP, SS and SSS	Environmental and Erosion and Sediment Control Measures	a) STNRR022-0085-STNDRR022-0086 - Old Church Road - Contract Drawing Plan No.C3	m	15		

			b) STNDRR004-0473- STNDRR004-0474 - Dixie Road - Contract Drawing Plan No.C8	m	15		
			c) STNDRR007-0051- STNDRR007-0052 - Airport Road - Contract Drawing Plan No.C10	m	15		
Subtotal:							

PART D - PROVISIONAL ITEMS

All pricing submitted shall include all costs necessary to perform the work.

All Provisional Items for any extra work encountered during the project shall be used only where specifically ordered and approved in advance in writing by the Agency's Project Manager. The Agency is not committed to any work under the provisional allowance or for any unapproved provisional work.

Item No.	Spec No.	Item Name	Description	Unit of Measure	Estimated Quantity	Unit Price *	Total
D-1	SP, SS and SSS	Additional Bypass Pump Requirements, per Diem		ea	5		
D-2	SP, SS and SSS	Hydro Vac Excavation		hr	40		
D-3	SP, SS and SSS	Additional Sealing of Infiltration at Mainline Joints, Cracks, and Lateral Connections, not identified in the Contract Documents	a) Mainline Sewers, any Size	ea	5		
			b) Lateral Connections, any Size	ea	5		
D-4	SP, SS and SSS	Locate buried Maintenance Hole, including Excavate and Reinstall Frame, Cover and Adjustment Units up to 1m deep, not identified in the Contract Documents		ea	5		
D-5	SP, SS and SSS	Install 4.0m deep of 1200mm Diameter MH (MHRR007-0108A) on Dixon Rd per Peel Std. Dwg.		ea	1		
D-6	SP, SS and SSS	Install 4m long of CIPP spot repair on 300mm storm sewer from RR007-108A to RR007-0108 on Dixon Rd		l.s.	1		
D-7	SP, SS and SSS	Additional cost per 1.5mm Liner Thickness Increase	a) 200mm Diameter Sewers	m	50.0		
			b) 250mm Diameter Sewers	m	100.0		
			c) 300mm Diameter Sewers	m	200.0		
			d) 375mm Diameter Sewers	m	200.0		
			e) 450mm Diameter Sewers	m	50.0		
			f) 500mm Diameter Sewers	m	50.0		
			g) 525mm Diameter Sewers	m	50.0		
			h) 600mm Diameter Sewers	m	100.0		
			i) 750mm Diameter Sewers	m	50.0		
			j) 1000mm Diameter Sewers	m	50.0		
			k) 1050mm Diameter Sewers	m	100.0		
			k) 850 x 1325 mm Diameter Sewers	m	10.0		
D-8	SP, SS and SSS	Temporary Support for the Existing Pole Structures		ea	5		
Subtotal:							

PART E - CONTINGENCY ITEMS

All Contingency Items for any extra work encountered during the project shall be used only where specifically ordered and approved in advance in writing by the Agency's Project Manager. The Agency is not committed to any work under the Contingency allowance or for any unapproved contingency work.

Item No	Spec No	Item Name	Description	Unit of Measure	Estimated Quantity	Unit Price	Total
E-1	SP	Allowance for extra Labour	a) Foreman	hr.	40	\$112.9700	\$ 4,518.8000
			b) Foreman's Vehicle	hr.	40	\$34.2500	\$ 1,370.0000
			c) Operator	hr.	40	\$109.9200	\$ 4,396.8000
			d) Labourer	hr.	40	\$101.0100	\$ 4,040.4000
			e) Truck Driver	hr.	40	\$98.1700	\$ 3,926.8000
			f) Flagperson	hr.	40	\$91.9800	\$ 3,679.2000
E-2		Allowance for Extra Work Ordered by the Agency		I.s.	1	\$200,000.0000	\$ 200,000.0000
E-3		Allowance for Extra Traffic Control		I.s.	1	\$20,000.0000	\$ 20,000.0000
E-4		Allowance for Extra Paid Duty Police Officer (PDO)		I.s.	1	\$10,000.0000	\$ 10,000.0000
Subtotal:							\$ 251,932.0000

Summary Table

Bid Form	Amount
PART A - GENERAL ITEMS	
PART B - SANITARY SEWER AND MAINTENANCE HOLE ITEMS	
PART C - STORM SEWER AND MAINTENANCE HOLE ITEMS	
PART D - PROVISIONAL ITEMS	
PART E - CONTINGENCY ITEMS	\$ 251,932.0000
Grand Total (exclusive of taxes):	

Bid Questions

Please provide in the space below your GST/HST Registration Number. Please note that all invoices provided to the Agency must show the GST/HST Registration Number and show this tax on a separate line.

Bidder Name (provide full legal corporate name of the Bidder):

Specifications

CONTACT INFORMATION

In the space provided please list the contact names and numbers during the times indicated below.

Line Item	Description	Regular Hours Service (7:00 a.m. - 5:00 p.m.) *	After Hours Service (5:00 p.m. - 7:00 a.m.) *	Saturdays, Sundays and Holidays *
1	Name			
2	Phone Number			
3	Cell Number			
4	Email Address			

BIDDER ORIGIN ATTESTATION

Bidders shall note the definitions contained in the Instructions to Bidders, Prioritization of Canadian Goods and Services clause. In the Bidder Origin Attestation table below, the Bidder shall provide the name of the representative authorized to bind the organization on behalf of the Bidder and select the applicable Bidder origin definition.

The Agency reserves the right to verify any Bidder provided information in the Bidder Origin Attestation table, by any means deemed appropriate by the Agency. The Bidder's failure to provide accurate information in this Bidder Origin Attestation table may result in disqualification of the Bidder Submission and/or termination of any resulting Contract.

Bidder Origin Attestation Statement	Bidder Origin *	Bidder Representative Name (authorized to bind the organization) *
I have the authority to bind the organization and I, on behalf of the Bidder, acknowledge and confirm that I have read the definitions contained in the Instructions to Bidders, Prioritization of Canadian Goods and Services clause and hereby attest that the Bidder meets the definition of:	Select A Value ▾	

BID PRICE IMPACT FROM TARIFFS

To understand how tariffs affect different commodity categories, the Agency is asking the Bidder to estimate what percentage of their submitted price is due to current tariffs by selecting the applicable percentage range from the options provided below. Information from Bidders on the estimated pricing increase resulting from tariffs is collected solely for the Agency's internal analysis will not be taken into consideration in the bid evaluation.

Line Item	What is the estimated percentage range of the submitted overall price that is attributed to current tariffs? *
1	Select A Value ▾

MANDATORY OCCUPATIONAL HEALTH AND SAFETY MANAGEMENT SYSTEM (OHSMS) ACCEPTABLE CERTIFICATION

Bidders shall confirm valid standing of an Acceptable OHSMS Certification in the full legal corporate name of the Bidder or, in the case of a joint venture or consortium Bidder Submission, for, and in the name of, each member of the joint Bidder team.

Only those Bidders with valid standing of an Acceptable OHSMS Certification as stated in the Contract Documents will be considered for Contract award.

Line Item	Bidder Declaration	Acceptable OHSMS Certification *
1	The Bidder confirms valid standing of an Acceptable OHSMS Certification through:	Select A Value ▾

Sub-Contractors

PREQUALIFIED SUBCONTRACTORS

Bidders (General Contractors) shall carry prequalified subcontractors from 2025-102PQ for the respective work. Bidders shall ensure that they select and indicate in the table below a prequalified subcontractor for the by-pass and open-cut replacement works.

The Bidder agrees, that if awarded the Contract, it will only carry, utilize, and contract with subcontractors and suppliers to perform the Work and provide deliverables, that meet the defined requirements of a Canadian Vendor or Canadian Business Subsidiary or Non-U.S. Business Subsidiary or Trade Partner Vendor, unless otherwise approved in writing by the Agency in its sole and absolute discretion.

Line Item	Discipline	Prequalified Subcontractor *	Prequalified Subcontractor Origin *
1	Bypass Works	Select A Value ▾	Select A Value ▾
2	Open-Cut Replacement Works	Select A Value ▾	Select A Value ▾

Documents

It is your responsibility to make sure the uploaded file(s) is/are not defective or corrupted and are able to be opened and viewed by the Owner. If the attached file(s) cannot be opened or viewed, your Bid Call Document may be rejected.

BONDING UPLOAD SECTION

- Agreement to Bond * (mandatory)
- Digital Bid Bond * (mandatory)

PREVIEW

YOU MUST BE A REGISTERED PLAN TAKER
TO DOWNLOAD AN UNMARKED VERSION OF THIS FILE
WWW.BIDSANDTENDERS.COM – ORIGINAL DOCUMENT SOURCE

Declarations & Addenda

This Bidder Submission is made entirely in accordance with the Document. By completing the information below and by submitting an online response to the Document, it is deemed that the Bidder has read and agreed to abide by all of the terms and conditions contained in the Document and that you have the authority to bind the Bidder and submit this Bidder Submission on behalf of the Bidder.

I acknowledge in my acceptance of the terms and conditions below the following requirements for Accessibility for Ontarians with Disabilities, [Health & Safety Compliance Certificate & Appendix A](#) and [Code of Conduct](#):

Contracted employees, third party employees, agents and others who deal with members of the public on behalf of the Region of Peel or participate in the development of policies, practices and procedures governing the provision of goods or services to members of the public must meet the requirements of the Accessibility for Ontarians with Disabilities Act 2005 and its Regulations with regard to training and the provision of goods or services to persons with disabilities. A document describing the training policy, a summary of the contents of the training and details of training dates and attendees must be submitted to the Region of Peel upon request. If a training policy is not yet in place, complete the training module at the following website: accessforward.ca.

☐ **I/WE agree to be bound by the terms and conditions in the Document and have authority to bind the Bidder and submit this Bidder Submission on behalf of the Bidder.**

The bidder shall declare any potential conflict of interest as defined in the Standard Terms and Conditions that could arise from submitting a bidder submission for this document. Do you have a potential conflict of interest?

☐ **Yes** ☐ **No**

The Bidder acknowledges and agrees that the addendum/addenda below form part of the Bid Document

Please check the box in the column "**I have reviewed this addendum**" below to acknowledge each of the addenda.

File Name	I have reviewed the below addendum and attachments (if applicable)	Pages
There have not been any addenda issued for this bid.		